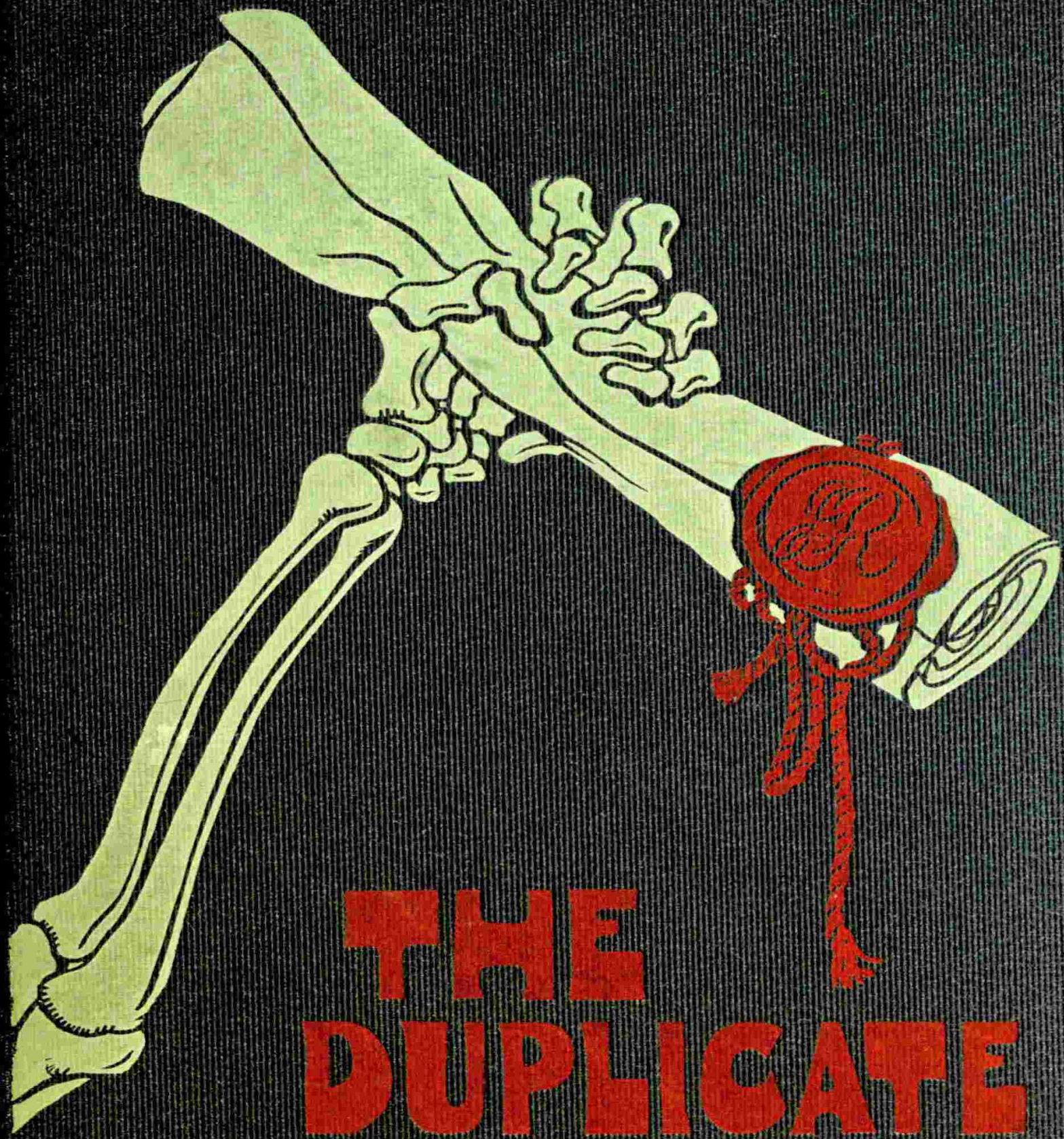
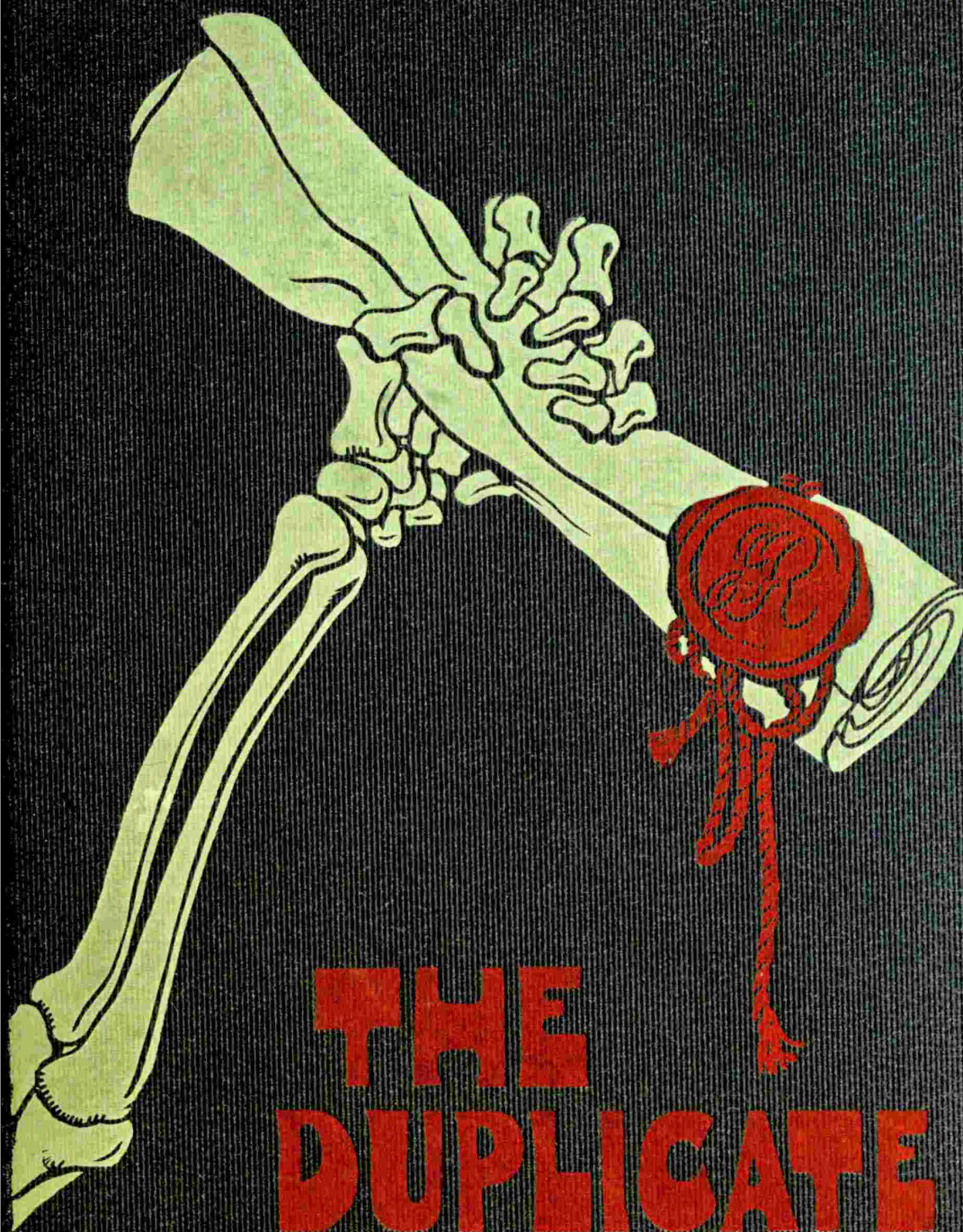




THE DUPLICATE DEATH

BY A. C. FOX-DAVIES



THE DUPLICATE DEATH

BY A.C. FOX-DAVIES

The Project Gutenberg eBook of The duplicate death

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The duplicate death

Author: Arthur Charles Fox-Davies

Illustrator: Hermann Heyer

Release date: March 8, 2023 [eBook #70233]

Language: English

Original publication: United States: The Macaulay Company, 1910

Other information and formats: www.gutenberg.org/ebooks/70233

Credits: deaurider, David E. Brown, and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK THE
DUPLICATE DEATH ***

The Duplicate Death

By the Same Author

THE DANGERVILLE INHERITANCE

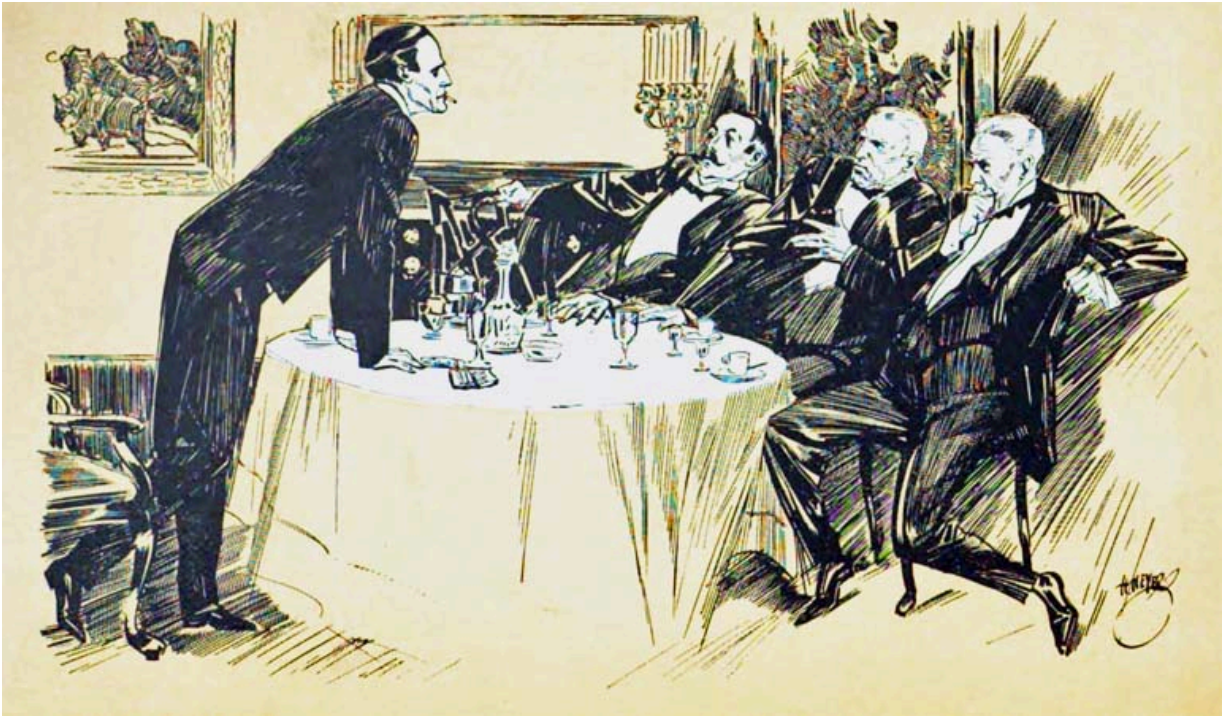
THE MAULEVERER MURDERS

THE AVERAGE MAN

THE FINANCES OF SIR JOHN KYNNERSLEY

THE TROUBLES OF COLONEL MARWOOD

THE SEX TRIUMPHANT



“One or other of you three, if not all of you, will be accused of the murder”

THE DUPLICATE DEATH

BY
A. C. FOX-DAVIES
AUTHOR OF "THE DANGERVILLE INHERITANCE,"
"THE MAULEVERER MURDERS," ETC.

*Illustrated by
Hermann Heyer*



NEW YORK
THE MACAULAY COMPANY
1910

THE DUPLICATE DEATH

BY
A. C. FOX-DAVIES
AUTHOR OF "THE DANGERVILLE INHERITANCE,"
"THE MAULEVERER MURDERS," ETC.

*Illustrated by
Hermann Heyer*



NEW YORK
THE MACAULAY COMPANY
1910

COPYRIGHT, 1910, BY
THE MACAULAY COMPANY

THE PREMIER PRESS
NEW YORK

CONTENTS

	PAGE
CHAPTER I	<u>9</u>
CHAPTER II	<u>33</u>
CHAPTER III	<u>45</u>
CHAPTER IV	<u>83</u>
CHAPTER V	<u>120</u>

ILLUSTRATIONS

““One or other of you three, if not all of you, will be accused of the murder”” [*Frontispiece*](#)

FACING PAGE

“The maid found the dead body of her mistress” [22](#)

“Sir John was found still seated at his writing-table, but dead” [46](#)

“Line for line, feature for feature, the face was that of Dolores Alvarez” [90](#)

““Look there!’ he almost shouted, as he pointed to the miniature” [188](#)

““I object to anyone tampering with the witness”” [300](#)

The Duplicate Death

The Duplicate Death

CHAPTER I

OLD Lord Madeley had taken unto himself a wife—one of the beautiful Sisters Alvarez of the Pavilion Theatre of Varieties and the other West-end halls. Whereat the world of Society wondered for ten days. His relatives never ceased to wonder.

He was always called “Old Lord Madeley,” but as a matter of fact he had but turned the half-century some four or five years previously. The man and his history were curious. The twenty-fifth holder of the ancient Barony of Madeley, he was a legitimate scion of the Plantagenets and an illegitimate one of the Stuarts; and he had been born the youngest child of his parents’ marriage.

In these later times the ancient and historic houses of Norman England have fallen upon impoverished days, and a younger son succeeds to but a pittance. The land is there for the eldest, but each generation leaves it more burdened than did its predecessor, and there is little if any margin realisable in hard cash.

Such a pittance had been the fortune to which Charles de Bohun Fitz Aylwyn had succeeded at the death of his father. Hoarding his few poor hundreds per annum, he had turned his back upon the society into which he had been born, settled himself in dingy lodgings in Bloomsbury, and lapsed into an eccentric recluse, with not a single thought beyond the study of the science in which his soul delighted.

His eldest brother died childless after a brief but brilliant reign, bequeathing the whole of his personalty to his widow in an attempt to increase the meagre jointure which was her portion. In the realisation of that personalty every stick of furniture and each single spoon in the old Manor House, save the portraits on the walls, were passed under the hammer of the auctioneer. The second brother was an absentee landlord, never going near his property, and draining it to the last penny. Strangers hired his house from him until he died.

At his death the title and estates passed to Charles de Bohun, then and thereafter twenty-fifth Baron Madeley in the peerage of England.

With a mild curiosity his relatives and the world at large wondered what on earth he would do with the inheritance. For months he never went near the place.

Then, without a word or hint of warning, he left London, and travelled down into Shropshire by the evening train. He had never heard of slip coaches, he had forgotten where an obsequious porter had told him he would have to change, and at nine o'clock at night he had been turned out of the train at Shrewsbury, twenty miles beyond his destination.

By the time the lumbering cab he engaged at the railway station deposited him at the Manor House, it was long past midnight. After continuous knocking a sleepy caretaker descended, only to open the door, tell the visitor to be gone, and slam it in his face. It had needed the thunderous assistance of the cabman applied both to bell and knocker and with boots upon the door panels to recall the caretaker. Lord Madeley had discharged him and his wife there and then, and neither knew, cared, nor ever inquired whether the couple left the house in the darkness or waited until the following day. Such had been the home-coming of Lord Madeley.

Instructing his lawyers to refurnish the house, engage servants, and appoint a properly qualified agent to manage the estate, Lord Madeley reorganised and required in his household a reversion and rigid adherence to the studied solemnity of state which he remembered from the dignified days of his father and grandfather. That he regarded as a duty attaching to his rank, his caste, and his family.

Personally he remained wedded to his pursuit of science, and continued his experiments and investigations. A recluse he had been in London—a recluse he remained at Madeley, and for the first five years of his enjoyment of the family heritage he never once set foot outside the doors of the Manor House. Absorbed in science, his mind deep and recondite in those directions, simple, straightforward, and lovable in all the matters of a more worldly nature, the old peer had probably never given a thought to either any woman in particular or to the female sex as a general proposition. It is quite probable that it had never crossed Lord Madeley's mind that there really were two sexes, save as a scientific proposition, of which scientific proposition he, as a man of science, was naturally cognisant. As a social problem he had never thought of it, knew nothing of it, and cared less.

But peers have obligations thrust upon them, from which lesser mortals are exempt. The exact circumstances which had produced it are immaterial to the story, but a royal command had left Lord Madeley no alternative, and he had in obedience thereto betaken himself to town. That it was the first time he had recrossed the threshold of the Manor House since he had entered it was a thought which probably never presented itself to his mind; and that he was returning to the scenes in which the greater part of his life had been spent quickened his pulse not at all. He was irked by the command, bored by the anticipated absence of his scientific interests, and, in the hope of avoiding ennui, he cast about in his mind for a companion to share with him the suite of apartments he had engaged in the hotel at which his father and grandfather before him had been accustomed to sojourn whilst in town. Probably for the first time in his life his utter loneliness in the world made itself manifest. He had one relative, and one only, a young unmarried cousin, the son of a distant cousin, and from the point of pedigree the future head of the house of Fitz Aylwyn.

Lord Madeley wrote and invited him. The invitation was accepted.

Young Billy Fitz Aylwyn was one of those men—there are such men—whom to see was to like. Lord Madeley liked him wholeheartedly, and, in the courteous attempt to give pleasure to the younger man, the old peer had consented to a tentative suggestion of his relative that they should spend the evening by going to the Pavilion Theatre. It was the first time Lord Madeley had ever been inside a theatre. The meretriciousness of things theatrical was not laid bare to the old peer by reason of experience and knowledge, and he was fascinated by the beauty of the Alvarez girls.

A passing comment on their beauty—for they were beautiful, judged by any standard—had provoked in the younger of the men a confession of a personal acquaintance with the sisters.

Absolutely in ignorance of the manner of man Lord Madeley was, and thinking the pure artistic admiration of classic beauty was an interest of a totally different kind, Fitz Aylwyn had suggested asking the sisters to supper.

Lord Madeley, unsophisticated in the ways of the world, and merely desiring to give pleasure to his relative and guest, whom he supposed was

putting himself out to relieve the ennui of an old man, made no objection, and the supper party had taken place.

The Sisters Alvarez—Eulalie was the elder and Dolores the younger—of pure Spanish descent, but of entirely English birth and domicile, were stars of the music-hall world, but stars of no great or exceeding magnitude. Calling themselves comedienues, their turn was the usual song and dance of no particular or more than average merit. On the other hand, it was useless to attempt to deny the fact that the sisters were unquestionably the most beautiful women upon the stage at that time. Descended in a left-handed way from some of the bluest blood of Andalusia, their beauty had nothing in common with the thick-lipped, teeth-displaying, plebeian prettiness, which, by reason of picture postcard advertisement, one is now asked to believe represents a type of the beauty of this country.

Alike in feature, the two sisters were as wide apart as the poles in character and temperament. Eulalie, strong, compelling, masterful, and passionate, controlled the lives of both; Dolores, gentle, trusting, and submissive, intensely admired her sister, worshipped her ability, and did whatsoever she was told.

The girls themselves—the outspoken frankness of their world—the utter novelty of the whole thing—the novelty of young female society—the awe-struck deference of the music-hall singer for a real peer of England, who accorded to them the courtesy and deference to women which he vaguely recollected from the world of his distant youth—interested Lord Madeley.

With charming but unsophisticated hospitality he invited the sisters to visit the Manor House, thinking it an obligation of hospitality owing by him to Fitz Aylwyn. The invitation was accepted.

Eulalie, with a keen eye to opportunity, made up her mind that the position of Lady Madeley, mistress of the rent roll of the great Manor of Madeley and of Madeley Manor House, was within the possibilities. She played for that position for all she was worth, with every atom of knowledge she possessed or could acquire, played her game without the opposition of tangible rivals, played her game as a clever and beautiful woman of the world, knowing every wile and every blandishment that was permissible, played her game against an old man to whom had been given no weapon of defence and from whom had been withheld the worldly knowledge out of

which such weapons could have been fashioned and which would have indicated their necessity. The result was never in doubt. Lord Madeley married, or was married, as Eulalie had intended should happen.

Let it here be said, for Lord Madeley soon passes out of the story, that never for one single instant did he ever regret his marriage. Save that his house was better ordered, his wishes more carefully respected, his comfort more scrupulously provided for, Lady Madeley was wise enough to recognise that the ingrained ways and habits of a lonely man of fifty-five are fixed, and are altered only at the cost of much discomfort. She contented herself with the rank and position, the wealth, and the house which the marriage had brought her, and left Lord Madeley to pursue his life as he inclined and much as he had done theretofore. Two years after their marriage their only child—a daughter, Consuelo—was born, and a few years later Lord Madeley died. Inertia, even if productive of a contented mind, is not especially conducive to length of years.

His widow raised a costly marble monument over his grave, mourned for a decently prolonged interval, and re-emerged in the world; whilst Consuelo, in her own right Baroness Madeley, figured in her father's place in the peerage books.

But there had been an incident shortly after the marriage which for some time had thrown a blight upon the new-found happiness of Lord and Lady Madeley.

Passing through London on their return from a honey-moon spent upon the Continent, Lady Madeley had visited on two occasions her unmarried sister at the small flat in Kensington which had been taken for her and furnished by Lord Madeley.

The second visit was the last time the sisters met. Two hours afterwards the maid found the dead body of her mistress stretched upon the bed in her room, stark nude, and on the table by the bedside an opened half-bottle of champagne and a glass from which some of the wine had been drunk.

At the inquest which was held, however, everything was made plain by the evidence of the maid, who described the arrival of Lady Madeley at the flat. She had prepared and taken in tea, and had then been sent to Bond Street to change the library books and to purchase stalls at one of the theatres, Lady

Madeley having come to invite her sister to spend the evening with her husband and herself in that manner, and having postponed the purchase of the stalls until she had ascertained to which theatre her sister would prefer to go.



“The maid found the dead body of her mistress”

On her return from Bond Street, the maid had found her mistress alone—Lady Madeley having already left—and she described how her mistress had at once sent her out again to order a carriage from the livery stables, and to purchase flowers and gloves for that evening. When she returned a second time she had found the drawing-room empty, and the dead body of her mistress lying naked upon the bed.

In cross-examination the maid had denied having heard the least quarrelling between the sisters, and could not suggest any reason for her mistress having taken her own life.

Lady Madeley, obviously deeply affected by the tragic death of her sister, had corroborated the evidence given by the maid; and distinguished surgeons and analysts had deposed the death to have been due to prussic acid, and that the same poison could be traced in the wine remaining in the glass.

The coroner summed up, emphasising the evidence which had been given, and which, he remarked, pointed conclusively to suicide. Alluding to the fact that the body was unclothed, the coroner added that he thought the jury would find therein ample justification for coming to the conclusion that the mind of the deceased had become unhinged. With such plain evidence of fact before them he assumed the jury would have no difficulty in arriving at a verdict. If the evidence of the maid had stood alone, they might well have had reason for some hesitation and might have wished to probe further into the matter for a motive to account sufficiently for self-destruction. But the maid had been for some years in the employment of a family, members of which had testified to the exemplary character she bore, and her evidence was in every way corroborated not only by Lady Madeley, but also by witnesses from the library in Bond Street, the livery stables, and the other places to which she had been sent by her mistress. There could be, therefore, not the smallest suspicion attaching to the maid. As far as they were aware, the only other visitor Miss Alvarez had had that afternoon had been her sister, Lady Madeley. Now, the evidence of the maid had clearly established the fact that when she returned on the first occasion Lady Madeley had already gone, and the maid then saw her mistress alive and spoke to her. The only other alternative which remained was that during the second absence of the maid some unknown person had entered the flat and had administered the poison. That alternative could not be dismissed as an

impossibility. Miss Alvarez was certainly alone in the flat at the time when this might have occurred, but there was much evidence which all tended to negative the likelihood of such an explanation being the correct one. For murder by an unknown person to be the explanation, motive, and a strong motive, became essential. Robbery was disproved by the fact that nothing whatever had been removed from the flat, not even the purse which was found lying on the table by the bedside; nor the money, some six or seven pounds, which still remained in the purse. That disposed of any hypothetical stranger calling, demanding money, being refused, and committing a murder. Besides this, there were no signs of any struggle. "Lady Madeley," the coroner continued, "has told us of the intimate terms of affection upon which she and her sister had always lived; and Lady Madeley, out of her resulting knowledge, has assured us that there was nothing in her sister's life, and no one amongst her sister's acquaintances, that could provide or account for any sufficient motive for such a crime. Of course, it is common knowledge that Lady Madeley and Miss Alvarez were, until very recently, members of the theatrical profession; but the many letters to Miss Alvarez, which remained undestroyed in the flat, and which have all been carefully examined, the tone of those letters, and the evidence we have had from so many artistes of the high moral character both the sisters were known in the profession to have, altogether negative, and it gives me sincere pleasure even on this sad and melancholy occasion to say it, they emphatically negative any supposition that there was an illicit side to the life of Miss Alvarez to which we can turn in the hope of an explanation. There was no such side. Therefore, I think any idea of murder may be dismissed. Motive, of course, must always equally precede self-destruction, but there motive need not be that outside motive which must be looked for, and for which logical explanation must be found, where another person is concerned to compass the death of a victim. As I have already indicated, we have some actual evidence of a disordered mind, and such a mind would imagine and accept as real quite non-existent facts and weave those into a self-compelling motive. Every fact that has been given in evidence is perfectly compatible with suicide. There is no fact within our knowledge which conflicts with that supposition, there is no single detail that raises any suspicion to the contrary."

Without hesitation the jury returned a verdict of "Suicide during temporary insanity," a verdict with which the coroner remarked that he entirely

concurred.

Ashley Tempest, then a romantic but rising young barrister, had been present at the inquest, holding a watching brief which had been sent him by the solicitors of Lord Madeley. He had been fascinated by the beauty of the dead woman whom several times he happened to have seen and greatly admired upon the stage. The little smile which still seemed to play upon the lips, the long dark eyelashes resting upon her cheeks, the profusion of long black hair, the delicately chiselled features bit themselves in upon his brain, and for days afterwards the face with its haunting beauty formed and reformed itself before his eyes, no matter upon what he might be engaged. The face threatened to become an obsession. The dead mask was eliminating his remembrance of the living woman, whereas he would have had it otherwise; and partly for that reason, but chiefly because it was the first cause célèbre in which he had been engaged, he purchased all the photographs he could obtain of the dead actress, and, sending them to a miniaturist, ordered a miniature to be painted from them, and hung it in his chambers.

As time passed slowly on, Tempest's fascination decreased; but through all his busy life, amongst his multitudinous cases, weird and mysterious as so many of them were, he never forgot the strange story he had heard unfolded at the inquest upon the body of Dolores Alvarez. Many a night when, pushing books and papers on one side, he had lighted his final cigarette before turning into bed, the miniature would catch his eye, and, gazing again at the beautiful face, his thoughts would revert to the familiar story, and once again he would puzzle over the facts he knew, in a vain attempt to find a solution of the mystery. Why had she poisoned herself? As the succeeding years brought him fuller knowledge of men and of women, and of their motives, as case after case widened his experience, so time after time would he again place together the pieces of his puzzle, arranging and rearranging them as crime after crime passing through his hands revealed to him new motives, new characters, any one of which might prove to be analogous and afford him the clue he wanted. Suicide it seemed plain enough to him it must have been. He always remembered how closely he had followed at the time the reasoning of the coroner. He always felt convinced it was logical and conclusive, save in one little detail. Tempest had started his legal career with a certain fixed opinion concerning suicide

which he never altered—never had reason to alter—an opinion that grew into conviction. Suicide of itself he held never was and never could be evidence of insanity. He maintained his conviction in argument on many occasions—at the Hardwicke—at the Union—in the courts. He carried his theory further, though not with equal certainty. But he laid it down as a proposition, yet to be disproved, that save in exceptional cases an insane person never commits suicide; and he confined those exceptional cases to cases of previously provable delusions of fact, which facts, if true, would have created a logical and sane motive sufficient to have resulted in the suicide of a sane individual. He maintained that the act of suicide was in itself a sane act, for which cause was required to be shown, and could always be shown if the facts in full were available.

Such was the theory upon which he always relied whenever in the course of his profession he was brought face to face with a necessity for the elucidation of a death. He never found his theory at fault. Tempted he often was at first sight to depart from it, but always in the end the case would prove but a renewed confirmation of its accuracy.

Yet what was the motive which had caused Dolores Alvarez to destroy herself? Why did she do it? Why? And ever would come that eternal Why? to which he could suggest no answer.

CHAPTER II

“UNDERSTAND me once and for all, Evangeline, I absolutely forbid it.”

Head in the air the girl walked out of the room, slamming the door behind her.

Lady Stableford, thoroughly upset by the discussion which had taken place, sank into a low easy-chair and put her handkerchief to her eyes. She had married her husband at an early age, and had passed up the social ladder with him, as a rapidly developing business had increasingly provided him with the wealth which had opened the doors of Parliament to the successful merchant, and finally brought him the baronetcy which he had been permitted to pay for, so that his political and party services might be rewarded therewith. No child had blessed their marriage; and as time drew on, and unlikelihood dissolved itself into impossibility, the old lady yearned the more for the child to mother and take care of which was denied to her. As parliamentary duties appropriated an increasing portion of her husband's time, Lady Stableford, after much opposition, at length obtained Sir James' consent to her adoption of a child. Finally she advertised under an assumed name, stipulating that the child must be a girl, must be completely and irrevocably transferred, and thereafter remain in ignorance of her real parentage: and she required that the child must be of gentle birth.

The advertisement was answered by a solicitor on behalf of a client. Lady Stableford attempted to insist on a substantiated disclosure of the parentage, and in consequence the negotiations terminated with the refusal of the information and the consequent withdrawal of Lady Stableford's offer of adoption. Within a week Lady Stableford, returning to the drawing-room after a solitary dinner, found that during her absence from the room, a child, plainly only a few days old, had been left upon the sofa. The flapping of the blind drew her attention to the still open French window, the obvious means by which access to the room had been obtained. At once summoning assistance, Lady Stableford had her park and gardens carefully searched, but without results. For some time the child slept, and Lady Stableford was puzzled what course to adopt. She objected to an unknown child being

thrust upon her in that way and without her consent; but the tiny atom of humanity woke with a plaintive cry, and Lady Stableford's decision was made at once. All the motherliness of her nature welled up, and from that moment she regarded the child as her own and treated it precisely as if it had been.

Assuming, rightly or wrongly, she never could determine, that this must be the child concerning which she had been in communication, she again wrote to the solicitor. After an interval the letter was returned to her from the Dead Letter Office, marked "gone; address unknown." An appeal to her own solicitors to help her at once revealed the fact that there was no solicitor of the name upon the roll.

Carefully Lady Stableford had examined the clothing the child had worn and the shawl in which it had been wrapped. Everything was new and of good quality, and every article was scrupulously clean; but there was no tell-tale coronet upon the clothing to suggest romance, nothing by which identity could be traced. Even the clever brains of her solicitors could suggest no steps she might take to put an end to her doubts. Of birth-marks the child had none.

The identity, as Lady Stableford, of the lady who had advertised the offer of adoption she knew of course had been disclosed only to the supposititious solicitor with whom her own advisers had been in correspondence. There could be little if any doubt the child was the same; but that gave her no further knowledge than the bare fact, if her supposition were correct, that the baby girl for whom she had now accepted the responsibility was born on the 18th of August, 1881. From what her doctor could tell her there could be no doubt that if that were not actually the child's birthday, her birth must have occurred within the margin of a day or two on either side of it.

The child, as she grew up, was not a lovable child; and long before the fair-haired baby had reached that stage of lankiness, when, a few days after they were new, her frocks always seemed to shrink above her knees, emphasising the spindle legs which needed so little of that emphasis, the girl was a dark-haired little fury, with a perfectly ungovernable temper.

Increasing years, and the chronic irritability of a constant invalid, had all helped to diminish the patience of Lady Stableford; and a child of the temper and temperament of the wayward Evangeline needs an endless

patience in her bringing up, which patience Lady Stableford had ceased to possess. The result was that as time went on the child was left more and more under the care and control of servants, none too wisely chosen, and such affection as Lady Stableford had originally had for the lonesome little baby had degenerated into the loveless duty to the child whose future she had taken into her own hands.

Her schooldays over, Evangeline came back to her home—a tall, aristocratic-looking beauty; and, in the hope of companionship, Lady Stableford turned again to the girl. But it was then too late. Of duty the girl knew nothing, and the keen memory of her youthful mind matched against any present show of affection which was made to her, the vivid recollections of the scoldings and punishments of her nursery days. The two women were out of sympathy. The old lady ceased her efforts, the girl never attempted to make any.

The pair lived together in the same house. The girl's life was one constant rebellion against the irritable, irritated, and irritating attempts at her own control made by the elder woman.

Bored to extinction by the life she was apparently expected to lead, exasperated by the querulous exactions of the irritable old lady, driven inexorably by the exuberance of youth and the nervous restlessness of her own excitable temperament, Evangeline had made up her mind that it was a necessity to her that she should find occupation in a working career. The girl was probably right, but it by no means followed that her choice had been made in the right direction. That choice had fallen upon the stage—had been expressed to Lady Stableford—and the interview had terminated with an emphatic refusal of consent and an emphatic forbidding of further thoughts in that direction.

Sir James, now long since deceased, had been a stalwart among Nonconformists. Lady Stableford, always despising in her heart the social position of Nonconformity, had nevertheless lacked the moral courage to adopt a change of religious persuasion, and, until increasing years relieved her from the necessity of the great mental effort involved in the framing of plausible excuses for absence, continued, Sunday by Sunday, to “sit under” the long succession of electro-plated divines who held forth in the building which her husband had built, endowed, and opened. To say that Lady

Stableford was religious would not be accurate, because all that a lifetime of Nonconformity had endowed her with was a restriction of her mental aspect to the intolerant narrowness of the bigoted orthodoxy of her own particular brand. Hatred of the theatre, which she regarded as a forcing house of sin, was one of those fixed ideas she had absorbed and accepted. Degradation in this world and damnation in the next she believed to be the foreordained and inevitably resulting consequence of any association with things theatrical.

To the inherent inclination of Evangeline towards a theatrical career was now added not only the attraction of the forbidden thing, but also the fascination of that which has been declared to be wicked. To this composite and powerful temptation the girl succumbed. The thing was inevitable—probably would have happened in any case; the happening was in all likelihood no more than precipitated by Lady Stableford's attitude and prohibition. But these affected the relations of the two when the separation came, and caused the elder woman many a long month of pain and unhappiness, of stubborn anger, which step by step had mellowed into regret, forgiveness, and then into comprehension and keen remorse. Drilled by her loneliness the old lady at last swallowed her pride and wrote asking the girl to come back to her.

Lady Stableford had waited too long. There had been occasions, many and oft indeed, when Evangeline, cowed by the pitiful hardships in the poverty-stricken existence of the provincial travelling company in which she was striving to master her profession, would have jumped at the invitation. There had even once or twice come times when, heartbroken by illness, by lack of employment, and utter weariness of spirit, the girl's pride had been broken, and she had penned piteous appeals to be allowed to return home; but the letters had never been sent, and at last had come success. The girl's reviving spirit soaked up like a sponge the adulation that success brought in its train, and her parched soul again expanded into the proud, high-spirited temperament which had been her inheritance. But hardship bravely borne had chastened her, taught her forbearance and charity of thought and had given her some control of her hot temper.

The invitation when it reached her was not refused, but was accepted only for a visit. A tentative suggestion to settle a suitable income, and in return that Evangeline should leave the stage, was gently but firmly put on one

side, and Lady Stableford perforce had to content herself with the consent of the girl to make her old home her headquarters, living there whenever her profession did not require her presence elsewhere, and with the acceptance of a liberal allowance. Once again the old lady altered her will, and once more the name of Evangeline Stableford stood as chief beneficiary and residuary legatee.

CHAPTER III

FROM time to time in the ever-recurring sequence of murders of which the details are given to the world by a vigilant and busy Press, one will be found which stands out and grips the public attention. Sometimes it is the gruesome detail of the crime which awakens the interest of the world at large. More often it is the mystery which envelopes its circumstance and stands between the general curiosity and the satisfaction thereof by a full explanation of the motive. But the greatest excitement always occurs when the victim of the crime happens to be an individual already, on other grounds, well known to the public and more or less a celebrity. Such a murder occurred a few days before Easter, in the year 1902. Sir John Rellingham, a well-known solicitor—one of the most prominent men in his profession—stayed on late at his offices one afternoon, busily engaged in writing. One by one his junior partners and managing clerks had drifted away, and, after the office clock had indicated the hour of six, Sir John and his confidential secretary were the only ones who remained in the building. The solicitor rang his bell, and his secretary presented himself.

“There’s no need for you to stay any longer, Smith. Don’t wait for me. I shall be busy for some time.”

“I’ve just been working on those Trentbeck leases, and I may as well finish them. I’m really in no hurry to go, sir.”

“Oh, those can wait, Smith. I’d rather you went. Just lock up everything before you go.”



“Sir John was found still seated at his writing-table, but dead”

“Very well, Sir John,” had been the answer; and the man, in obedience to the directions given him, had put books and papers away, locked up the safe, and gone. Of what took place afterwards no one had any knowledge. On the following day Sir John was found still seated at his writing-table, but dead: shot through the temple.

No weapon of any kind was found in the room, and the appearance of the wound left no doubt that the shot must have been fired from only a short distance. That it was murder there could be no doubt. Suicide was perfectly impossible.

Before the coroner’s jury had brought in their verdict of “Wilful murder by some person or persons unknown,” the whole of the public Press was seething with excitement. The firm of Rellingham, Baxter, Marston & Moorhouse stood at the head of the profession. It had behind it more than a century of untarnished and honourable repute; half the peerage employed the firm in those parts of their legal necessities which were of a reputable character, and the name of one or other of the partners in the firm was to be found as a trustee in a very large proportion of the great family settlements which were in operation. The capital for which the firm somehow or other

stood in the relation of trustee ran into many millions. But the public had become suspicious of solicitor trustees, and every one waited for the impending crash to which the mysterious death of Sir John appeared to be the usual prelude. Men whispered, "How much will they break for?" But the crash never came. An immediate and searching audit, required at once by the surviving partners, disclosed the facts that there was not a penny missing, not a single suspicious circumstance in the affairs of the firm. Its repute was as untarnished, its integrity as unchallengable as had been the case throughout the long history of the firm; and the public really began to believe in the truth of the verdict at the inquest. The murder, of course, engaged the keenest attention of the police; but as the weeks flew by without producing any explanation of the mystery, the partners of Sir John commenced to take steps of their own. Sir John, they knew, was a widower, without children, and with few relatives, but many friends. Carefully and methodically his partners, who were his executors, examined and scrutinised every paper left by Sir John both at his house and at his office. Everything was perfectly open, straightforward, and free from any trace of suspicion upon which a clue could be founded. Everything was ordinary, humdrum, and usual, with one exception.

This one exception was a clause in Sir John's will, and this clause ran as follows:—

"I give and bequeath, free of all charges and legacy duty, the sum of £20,000 to my partners, Arthur Baxter, Charles Marston, and Edward Moorhouse, upon trust, to be applied by them to and for the purposes which I have taken steps to sufficiently indicate to them, such trust to be executed according to their honour and integrity, of which I am well satisfied, and without the interference, check, or control of any person or persons whomsoever; and I direct that if at any time, in the absolute exercise of their unfettered discretion, they or the survivors or survivor of them shall at any time decide that the further existence of the trust which I have hereby constituted and created has become impossible, then and forthwith the said trust shall immediately cease and determine, and my said partners or the then survivors or survivor of them shall stand possessed in their or his own right and for their or his own use and benefit of the capital moneys of the said trust, and shall not be required by anybody to render accounts or explanations of their or his dealings with the trust or of their or his action or

actions in regard to it. And I further direct that if at any time this trust or the capital moneys of this trust shall be or shall become the subject matter of litigation through the interference or intervention of any party or parties other than my said partners, or the survivors or survivor of them, then and forthwith and from the commencement of such litigation the said trust shall cease and determine, and the capital sums of the said trust shall be distributed and applied in the form and manner above provided.”

In due course of time the will of Sir John Rellingham was proved, and, as was only to be expected, this curious clause was reprinted in the Press pretty widely. The mystery of Sir John’s murder had remained unsolved, and was passing into the oblivion of public forgetfulness, when curiosity was again aroused by the strange wording of the clause in Sir John’s will. All other clues had failed. Here was the chance of a clue. The sensational Press thundered for a full revelation of this secret trust, arguing speciously that the mystery of Sir John’s death was a matter of public concern, and private interests must bow to public necessities. The partners met the demand by a point-blank refusal to disclose any information whatever. As one of them—Arthur Baxter—said to an inquisitive reporter: “The public know of the clause in the will—the law has compelled us to disclose it; but if we could have avoided doing so, we should not have made even that much public. It would have been possible, by making other arrangements for Sir John, to have obviated even that disclosure; but you can take it from me that a secret trust in a will is not an uncommon occurrence. If Sir John had not been murdered, the clause would never have attracted any attention. But Sir John was a clever lawyer, and he knew perfectly well, when he drew that clause, that public curiosity as to its meaning need not be satisfied, and no doubt he preferred to run the risk of that curiosity rather than constitute the trust in his own lifetime. So you can tell your editor, with my compliments and the compliments of the firm and my partners individually and collectively, that we will see him and his paper and all of the rest of the Press a good deal further on its way to an undesirable place before we give one word of explanation of that clause.”

It was an unwise remark to have made. Mr. Baxter, a steady-going solicitor, in the security of his knowledge of the law, scoffed at the possibility of interference. He had no experience of the inquisitive prying of a sensational evening paper. The latter, irritated by the contempt of the solicitor, laid itself

out to teach him a due and proper respect for the power of the Press. Day after day it returned to the attack, demanding, in the interests of justice, a full disclosure. So reiterated became the demand, so irritating to the public curiosity was the blank *non possumus* of the solicitors, that at last the inevitable happened and the public came to believe (a perfectly unwarranted hypothesis) that in the details of the trust which had been created lay the explanation of the murder, and the partners and executors were publicly hounded into the position of accomplices in the crime, on the assumption that by keeping the trust secret they were assisting the culprit to evade the claims of justice. It is not difficult for an energetic newspaper to create such an impression, and the obstinate silence of the surviving partners of Sir John fanned the flame of public curiosity. So rooted did this conviction become that at last it took hold of Scotland Yard. Once a settled conviction obtains a footing in that quarter, it usually sticks, and the Home Office took a hand in the game and asked for an assurance from the firm that the secret trust had no connection with the murder.

The firm replied that they were unable to give that or any other assurance.

A lengthy correspondence followed, which culminated in a personal letter from the Home Secretary, egged on by Scotland Yard, asking the partners of the firm to disclose in confidence the terms and purposes of the secret trust, and conveying concurrently an intimation that the disclosure could be made personally to the Home Secretary without witnesses, and his personal assurance that, no matter what the trust might be, no action against any member of the firm should be based upon any such disclosure.

The letter was misunderstood. The promise of the indemnity was made *bona fide*. The Home Secretary was perfectly cognisant that many secret trusts are illegal or made for illegal objects, and his only desire was to let the firm know that he personally would respect that trust and their confidence, if they would show him that this particular trust had nothing to do with the murder.

Knowing the high reputation the firm deservedly enjoyed, the partners were perfectly furious at the bare suggestion that they might be parties to either illegal or dishonest actions, and the reply to the Home Secretary was brief and to the point.

“SIR,—On behalf of myself and the other surviving partners of this firm, I beg to state that we resent the tone and contents and the insinuations of your letter. We point-blank decline to supply you with any information whatsoever.—I am, sir, your obedient servant, (ARTHUR BAXTER) for Rellingham, Baxter, Marston & Moorhouse.”

The Home Secretary replied in another personal letter, regretting that his letter had been misunderstood, and stating that he felt assured the letter of Mr. Baxter had been written in momentary irritation, and that the firm, upon reconsideration, would see that the most satisfactory course to pursue would be a compliance with his suggestion. The answer to the second letter was still briefer than had been the former.

“SIR,—You can go to the devil or wherever else you feel inclined.—Yours faithfully, ARTHUR BAXTER.”

And the Home Secretary was on the horns of a dilemma. Afraid to litigate and thus end the trust—for the terms of the will were before him—worried by Scotland Yard to compel a revelation, which the determined opposition he was meeting seemed only to intensify the apparent necessity of—he nevertheless clearly saw there was another possibility. Were the partners in the firm with diabolical cunning simply doing all they knew to compel him to litigate, and by so doing convey to them the actual property in the capital moneys of the trust, free from any legal or moral liability? And with the ingrained suspicion of the Government official he decided this must be the true explanation.

Finally, on an *ex parte* motion, he obtained an injunction pending proceedings, restraining the trustees from taking any steps in regard to the dissolution and realisation of the trust. Having done this he served notice upon them of his intention to apply for a rule requiring them to show cause why the trust should not be disclosed and the capital moneys paid into court.

And then Mr. Baxter went and consulted Ashley Tempest.

“It isn’t often you come here on business, Baxter,” said the barrister, as he rose to greet his caller.

“No; our work isn’t often in your line. I think it’s nearly fifty years since we litigated a criminal case, and we don’t often litigate on the King’s Bench side either. To be perfectly frank with you, Tempest, I’ve come here as much for your advice as a man of the world as a barrister.”

“There are a good many men better qualified to give that kind of counsel than I am.”

“Possibly, but they haven’t your knowledge of criminal law. Do you know anything about trusts, Tempest?”

“A bit—I daresay as much as most of the men on our side of the hedge. But if it’s a trust, why don’t you go to Overhill?”

“I’m going on to him presently—when I’ve heard what you’ve got to say. But these chancery men always seem to me to be machines without humanity. To be candid, my partners and I want to know exactly where we stand over this infernal secret trust which old Sir John strapped on our shoulders. I suppose you’ve heard about it?”

“I’ve seen what the newspapers have had to say, and I’ve heard the usual gossip that’s gone on. What’s the trouble? But are you wise in coming to me? Suppose it is—of course I don’t know—suppose it is mixed up with Sir John’s murder, and the defence brief were to come along to me, it might prove very inconvenient to you?”

“I don’t think so. My partners and I talked it over, on the supposition that in such a case you would get the brief, and I have come to you, at the express wish of the three of us. You see, we don’t know yet what the real objects of this secret trust are.”

“What on earth do you mean?”

“Just what I say, Tempest. The trust, as it appears from the clause of the will, is a holy terror of a mystery; but when you come to read our instructions you’ll find that it’s twenty times as much a mystery. Here, read this!” and the solicitor passed across a letter.

“To ARTHUR BAXTER, CHARLES MARSTON, EDWARD MOORHOUSE,
my partners and friends.

“Forgive me if I remind you that your partnerships in the firm
were not purchased in cash, but were given to you by myself in

testimony of my high appreciation of your several abilities, of your worth, your integrity, and discretion. I have always had and still retain my high opinion of you all. As you will be aware, from my will, my remaining half share in the proprietorship of the firm I have bequeathed equally amongst you, and I have in my will also bequeathed to you jointly the sum of £20,000 upon trust. May I rest assured you will repay the obligations I remind you of, by accepting the trouble this trust may entail? The object of the trust is to pay the annual income arising from the capital moneys of the trust to the partners in the firm for the time being, as an annual payment for their services in preserving that capital intact. Whatever changes may take place in the firm after my death at any time during the continuance of the trust, I desire that the necessary steps shall be taken for its proper preservation. A certain eventuality may at some time arise, for which I wish to provide, should it ever happen. But I cannot provide for it, save by a disclosure which would amount to a breach of honour, a breach of confidence, and a breach of trust. That eventuality may never arise. Writing calmly and deliberately I say, for your guidance, that it is probable that it never will arise; but if it ever does, then certain information is necessary to enable you to act justly and as I desire. That information is contained in the sealed packet which you will find herewith; but, if you have any gratitude to my memory, then I solemnly charge you to respect my wishes that that packet shall remain sealed and its contents unexamined until events compel this by the occurrence of the eventuality for which I am providing. I cannot indicate what that eventuality will be, or in what manner it will arise, and I leave the point entirely to your discretion to determine whether it has arrived or not. I say only, that if it does you will at once recognise it. It will be plainly apparent beyond doubt that it has arisen, and I warn you that any eventuality as to which you have doubt cannot be the one I am providing for. If at the end of a hundred years, from the 18th August 1881, no such eventuality has arisen, it will by then be impossible for it ever to occur, and I then desire that this packet shall be destroyed unopened. The commencement of any

litigation which may involve the disclosure of the information in the packet is to be held to be the termination of the trust, and I desire this my wish to be regarded as a vital part of the trust, and I leave it as a sacred charge upon you all that the packet shall be immediately destroyed. Offering you my gratitude, not only for your past devotion to the firm, but also for the personal friendship of yourselves, which it has been my privilege to enjoy.—I remain, your affectionate partner, JOHN RELLINGHAM.”

“You are right about the mystery, Baxter.”

“Yes. I wonder if any such trust has ever been created before!”

“I doubt it. Still, it’s all pretty plain sailing. You three are just to draw the income till some overpowering circumstance occurs which advertises itself as the occasion Sir John refers to.”

“I haven’t told you quite all, Tempest. The Home Secretary has commenced litigation, and he has also obtained an *ex parte* injunction, restraining our firm from destroying any documents or dealing with the trust, pending an order of the court.”

“Then by the terms of the will the trust is already at an end, and you rake in and divide the capital. But it’s rather awkward about the documents. By the terms of the trust they must at once be destroyed, and yet you say the Crown have got an injunction to prevent you. What have you done?”

“What should you have done, Tempest?”

The barrister laughed. “Are you here for a professional opinion?”

“Well, suppose you give me that to begin with?”

“Then I’m bound to tell you you must obey the order of the court, which overrides the terms of the trust, and I’m bound to advise you that disobedience would be flagrant contempt of court, for which the penalty is imprisonment until the contempt is purged. Still, all that’s ancient history to you and your firm. You didn’t come here, I’ll warrant, just for me to tell you that much.”

“No, Tempest, I didn’t.”

The two men looked at each other, and gradually a smile formed itself on each face.

“And I’m pretty certain,” said the barrister, “you did not come here for me to tell you what to do. What have you done?”

“Tempest—frankly, now—tell me what you think we ought to have done. I’ve told you our legal difficulty; but there’s the other one, and that’s why I came to you. Are these documents likely to be a clue to the murder? If so, ought we to disclose them? You are an adept at murders—or rather at elucidating them. What do you think?”

“What a situation!”

The barrister rose to his feet and lit a cigarette as he began to pace his room, backwards and forwards along the well-marked path across his carpet. The solicitor sat and watched him—watched his impassive face—watched the quick, nervous fingers as they clicked the rings upon them backwards and forwards—watched the cigarette smoked to the end and thrown away as another was lighted from it. At last the barrister came to a pause in front of his fireplace.

“Baxter, the murder has proved an insoluble mystery, depending upon an unknown motive. You know everything about Sir John’s affairs, except what those papers may disclose. You cannot find a basis for a motive in what you know. The odds are the clue is hidden in those papers.”

“I agree with you. I should say that is probable.”

“But no man contemplates his own murder without taking steps to avert it, if that be possible. Sir John took no steps at all. No man would sit down to be murdered, and content himself with providing evidence to catch his murderer afterwards. Sir John never created the trust for that purpose. You can rest assured this is not the eventuality to provide for which that trust was created. It exists for some widely different purpose. And there’s another thing, Baxter. Sir John says a disclosure would be a breach of faith. That would involve a third person. It is that third person on whose behalf Sir John has gone to all that trouble. It wasn’t himself he was bothering about. So long as he was alive he could have dealt with the thing himself, or he might have been waiting for the knowledge that it never would arise. That was why he did not constitute the trust during his own lifetime, but

preferred rather to run the risk of public curiosity about the clause in his will.”

“What should you have done, Tempest?”

“I should have destroyed the papers, I think; but there is one awful risk. Suppose they do contain the clue to the murder, and through the lack of that clue an innocent person gets hanged?”

“Well, as a matter of fact we burnt them yesterday.”

“Then you elected to run that risk?”

“Tempest, it isn’t fair to a lawyer to tell him only half the tale. Wrapped round the papers was another slip. As nearly as I remember, the words written on it were as follows:—

““This paper is to be burnt the moment it has been read. I desire that no memorandum of it shall ever be put into writing. If litigation is threatened, this packet is to be burned immediately. A duplicate set of the papers is deposited in the name of the firm at the Chancery Lane Safe Deposit. The existence of this duplicate set is not to be disclosed. I leave it to the honour and integrity of my partners that if under litigation the trust ceases to exist, it shall at the earliest safe opportunity be again reconstituted.””

“That does away with the risk I spoke of. You were certainly right to destroy the papers.”

“In spite of the court?”

“Yes, I think so. I’m sure of it. The old boy intended you to stand the racket. I should fancy he anticipated it, though it’s more likely he expected litigation from the heir-at-law than the Crown.”

“That is the conclusion my partners and I came to. But, Tempest, ought we to disclose the other simply to catch the murderer?”

“No, I think not. Sir John is dead. You can’t bring him to life again. All you can do is to regard his wishes. I bet he’d prefer that to the stringing up of some poor devil.”

When the motion came on in court the trust was upheld. As constituted under the will it had been perfectly valid; but now under the terms of the

will the litigation had put an end to it, and the court ruled that the capital moneys had now vested in the surviving partners for their own benefit.

“Come and dine with all of us to-night, Tempest,” said one of the partners, as they left the law courts after hearing judgment given. “We’re in a deuce of a quandary!”

The invitation was accepted, and after dinner the four men sat over the walnuts and the wine in the sumptuously furnished bachelor chambers of Arthur Baxter.

“You see, Tempest,” said the host, “the secret trust is already reconstituted. We did it this afternoon. We can’t afford to run the risk of one of us dying and his executors claiming any proprietorship in the money. So the position now is exactly as it was when the will was first proved. But now that the court has declared the money to belong to us personally, the state of affairs isn’t particularly pleasant, because that infernal evening rag is bound to adopt the standpoint that by preventing the elucidation of the murder we have advantaged our own pockets, and that we took the line we did for that reason.”

“Is that as far as you’ve got, Baxter?”

“Yes, but what do you mean?”

“My dear man, don’t you see what the logical consequence is? Don’t any of you see it?”

The three solicitors looked at each other in surprise, and then glanced back at Tempest, as his grave face filled with concern, and they looked the question to him which they waited for the barrister to answer.

“Moorhouse, I saw you at Epsom, so I suppose you bet? Well, I’ll lay you a pound to a penny that unless the real murderer of Sir John is discovered pretty quickly, one or other of you three, if not all of you, will be accused of the murder—very likely arrested for it, if they can find the semblance of any circumstantial evidence. If you’ll take my advice, you’ll look pretty carefully to your alibis on the evening and night Sir John was murdered.”

“You cannot mean that seriously, Tempest?”

“I do mean it, and I’m perfectly serious. You three men are not in an enviable position.”

As Tempest spoke he looked across the table to where Marston was sitting. His face had gone as white as a sheet, and his fingers were trembling as mechanically he eased the collar at his throat.

“What’s the matter, Marston?” said one of his partners.

“It’s three months ago. I’ve no more idea than the man in the moon what I was doing that evening.”

“Keep an engagement book?” asked Tempest.

“No—not private things. Just stick the cards up on the mantelpiece till the shows are over and then pitch ’em away.”

“Nor a diary?”

“No. Never did such a thing.”

“Would your wife know?”

“Haven’t got a wife.”

“Do you think your servants would be likely to?”

“No. What can I do, Tempest?”

“Well, praying seems to be about all that’s left.”

“Why do you think we are any of us likely to be accused?”

“Simply because you must have motive for a murder. No one knows or can suggest the shadow of a motive in regard to Sir John. You three who knew him intimately and all his private affairs know of nothing that even hints at a motive. You have gone through all his papers since his death, and you can find nothing there to give you a clue. Nobody, as far as you know, stood to profit by Sir John’s death except——”

“Except whom?”

“Except yourselves. Now, remember the police know less than you do, so they can guess at no motive, save the obvious one I have pointed out to you—that halfpenny rag has hounded Scotland Yard on till they got the Home Office to interfere about the trust. They will go on now—mark my words—on the basis that the line you three took was dictated by your desire to bring the trust to an end. They will point out how you all stood to benefit by Sir

John's death. They will assume—no matter how much you may deny it—that being his partners you three were aware beforehand both of the terms of the will and of the trust. Don't forget what the terms of the will were—'to be applied by them to and for the purposes which I have taken steps to sufficiently indicate to them'—and don't forget he divides his share of the partnership with you. Just think what the obvious meaning of that is—what nine men out of ten would assume to be the meaning——”

“What do you say that is, Tempest?”

“Simply that he had already told you. Nobody would, by the wildest guess, be likely to imagine the existence of such a letter as he left. And even the letter you can't in honour disclose till it becomes a matter of life and death.”

“It doesn't seem to be very far off being that even now.”

“There's another thing you fellows have overlooked. That shot was obviously fired inside the room. There was nobody in the offices when Smith left, except Sir John. How many keys are there?”

“We've each got one. Smith has one and the cleaner has one. The clerks come whilst she is there. She does their rooms first and then does ours afterwards. They arrive before she has finished.”

“Had Sir John a key?”

“Yes. We found it on his bunch in his pocket after he was dead.”

“Then his key wasn't used. Now, Smith locked the door when he left. It's a spring latch—that came out at the inquest. So did Smith's alibi that evening. So did the old woman's. That only leaves the three keys you chaps have. There's no difficulty about getting out afterwards—it's the getting in that matters.”

“God! Tempest, you are building up a case against us.”

“Well, there's only one loophole; and that's the possibility that Sir John himself opened the door to his murderer. I really think that's the true explanation, because he had previously told Smith he wished him to go. I'm pretty certain myself that Sir John was expecting somebody whom he wished to see without the visit being known. But the police will try the other tack first, and they will try and fix the responsibility on one or all of you three. Don't let me frighten you too soon. They couldn't get a

conviction on what we or they know at present; but once, by accident or by research, they can get any fact that seems to corroborate the theory, then the position is changed. You can rest assured they are looking for such a fact already. That's what I meant in warning you about your alibis."

"Well, mine's good enough," said Baxter. "I was at the club."

"What time did you go there?"

"About eight, and I stayed playing cards till nearly midnight."

"Baxter, don't forget Smith left Sir John soon after six. His dead body wasn't found till next morning. You've got to account for the time from six to eight and after midnight. Then Marston has absolutely forgotten. How about you, Moorhouse?"

"Oh, I was at the theatre."

"That's only another partial one, then. Why on earth don't you people try to find out who did murder the man and not wait till you are in sight of the rope yourselves before you start?"

"But what can we do?"

"You can offer a reward for one thing. You can engage Dennis Yardley, the detective, for another."

"Tempest, can we make it worth your while for you to take a hand in it?"

"No. I'm not keen at playing detective professionally. It's not my profession. But I don't mind helping Yardley, as I've done in other cases, if that's what you want."

"Will you take a retainer from us?"

"What do you mean?"

"In case any of us are accused."

"Oh, certainly. Fix it up with my clerk in the morning. Book it as *in re* Rellingham. Now, don't do anything to draw suspicion upon yourselves, but do your utmost to account for how you all spent that particular night. Of course, I may be quite wrong in what I've said. I hope I am, but I can't help seeing the risk."

The four men separated, each going his lonely way home. But justification of all Tempest had said was to follow quickly. Step by step, on the very lines the barrister had indicated, the case was argued the following day in a leader in the same paper that had previously taken up the matter, and the article wound up with a definite demand for the arrest and trial of the three surviving partners in the firm.

That a conviction could be obtained was a proposition which few cared to admit; but, on the other hand, the bulk of the public were quite willing to commit themselves to the ready admission that "there might be something in it after all." And, day by day, as the suspicion grew, the position of the three solicitors became almost unbearable. They felt themselves slowly but only too certainly drifting into the position of social lepers. And there was nothing more that they could do. They thought of libel, and the thing went to Lake Rodgers, K. C., for an opinion. His opinion was that the article had been so carefully written that it contained no libel, and the opinion ended with the friendly hint that a failure to obtain a verdict would probably be more damaging under the circumstances than inaction.

CHAPTER IV

THE summer of 1902 slowly slipped away. Twenty years had now passed since Ashley Tempest had hung up the miniature of the dead Dolores in his chambers—to him twenty busy and eventful years. He was by now one of the leading members of his profession—the busiest junior at the bar. The courts had risen for the vacation which Tempest was to spend with the Shifnals. Securing his seat in the train at Euston, he had bought the evening papers and pitched them in a heap in the corner he had appropriated, and after doing so was standing in the fresh air until the last moment, smoking one of his perpetual cigarettes.

As the doors were being noisily slammed along the train, he jumped in and soon was smoothly gliding towards his destination. He heaved a sigh of relief, for with the start from London he felt his holiday had begun, and he could put the worries of his work behind him. Opening a copy of the *Globe* his attention was caught by the leaded capitals announcing a “Sensational Tragedy.” The report that followed was not very lengthy:

“A gruesome discovery has been made this afternoon at the Charing Cross Hotel. A chambermaid, on entering one of the bedrooms in the annexe which had not been let and which was supposed to be unoccupied, was horror-struck to find lying upon the bed the dead and nude body of a young woman. On the table by the bedside was an opened half-bottle of champagne and a glass, evidently that from which the wine had been drunk. We are informed that the victim of this tragedy, the facts of which plainly point to suicide, was of surpassing beauty, but is unknown in the hotel. No one can identify the body, and all the staff of the hotel emphatically declare the lady was not registered there as a visitor. Life had only been extinct for a short time, as the body, when found, was still warm.”

Tempest read the account with amazement, for in every detail it reproduced the story which was so deeply engraved on his memory. Here was what he had been waiting for for twenty years—a case of suicide, with a nude body. Save in cases of drowning, that one detail had differentiated the case of Dolores Alvarez from all others he had ever heard of, and it had always

puzzled him. He had waited and waited for a similar case, hoping that by some chance the motive or some other circumstance might give him the clue to an answer to the perpetual Why? which was ever in his mind as often as his eyes turned to the miniature over his mantelpiece. He had waited in vain, until here at last was what he had looked for, and that a more exact reproduction of the former story than his wildest dreams had ever led him to imagine could possibly occur. He put the paper down, and as the train ran into Willesden his mind was made up. Calling a porter to look after his luggage he wired to Lady Shifnal, postponing his visit, and returned to town by the underground. Leaving the train at Westminster Station he walked into Scotland Yard and asked for Inspector Parkyns.

“Parkyns,” he said, “I want you to do me a favour.”

“Delighted to, if I can, Mr. Tempest.”

“You’ve seen the account of this suicide at the Charing Cross Hotel?”

“Yes. As it happens, the case is in my hands.”

“That’s lucky. I want you to take me and let me see the room and the body without making any fuss about it. Can you do it?”

“Well, perhaps it can be managed. Why are you so keen about it, sir? You are not briefed by anybody yet, are you, sir?”

“No, Parkyns. Honest injun—I’m not. It’s purely curiosity. Look here, inspector! Do you remember the suicide of the actress Dolores Alvarez—the sister of Lady Madeley, you know—about twenty years ago?”

“Of course I do. I was in that as well; but I’d really forgotten all about it.”

“I was in that case too, Parkyns. I had a watching brief at the inquest from Lord Madeley’s solicitor, and ever since then that case has stuck in my mind, because I never could see why she committed suicide, and I want to know why. I don’t know whether you have noticed, now; but in this case today, saving locale, you get every single detail of that other case duplicated in this one. Of course, coincidences do occur in the world. I don’t suppose or suggest there is any connection between the two; but the details are so alike, that if this one can be explained it may give me a hint I can build on, and so find an explanation of the other.”

“I see what you mean, sir. Can you come along now, at once?”

“Yes, if that will suit you: any time you like.”

“We’d better go at once, as they will be removing the body to the mortuary in an hour or two.”

Together the two men walked to the Charing Cross Hotel, and Parkyns led the way to the bedroom, outside of which a constable was stationed.

“Has anyone been in since I left?”

“No, sir. The door hasn’t been opened,” answered the policeman.

“Well, then, Mr. Tempest, you’ll find everything exactly as I left it, and I left it exactly as I found it, except that we got a sheet to cover the body with. The hotel people say nothing was touched after the body was found before I got here, and they sent for me at once. Just as I arrived, the doctor came, and he just made certain that life was extinct, and told me to send the glass and the bottle to the analyst, and get the body removed to the mortuary, and I went away to make arrangements. The people here are positive she was not staying as a guest in the hotel, and none of them recognise the lady. Now, Mr. Tempest, you know as much as I do. Would you like to look at the body, sir?”

“Yes, I want to.”

The inspector turned down the sheet, and Tempest stared in astonishment. Line for line, feature for feature, the face was that of Dolores Alvarez, as he remembered seeing her. The little smile upon the lips, the long dark eyelashes resting upon the cheek, the profusion of long black hair lying loose upon the pillow, the same delicately aristocratic features were here again, exactly reproduced. Were it not that for twenty years the one woman had been dead, and lying buried in her grave, Tempest would have sworn it was the same body he had seen once before, under circumstances so similar. The likeness and identity were uncanny, and the barrister knew it was no freak of his imagination, for was not the face of Dolores hanging over his mantelshelf, where he had looked at it that morning?

“What’s the matter, sir?”

“Parkyns, you say you were in the Alvarez case?”

“I was, sir; but, as I told you, I’d forgotten it.”

“And you haven’t noticed the likeness?”



“Line for line, feature for feature, the face was that of Dolores Alvarez”

“I never saw the body of Miss Alvarez.”

“Well, I did see her, and I remember her face. I’ve got a miniature of her hanging in my chambers, so I know it well. Now, you can take it from me, inspector, that the two faces are so similar that they might be the same woman. If we didn’t know the one was dead, and had been buried twenty years ago, I would have taken my oath they were the same. The likeness is as strong as that. I never saw such a likeness in my life. Talk about doubles, it’s an absolute reincarnation.”

The inspector was silent as Tempest, leaning on the foot of the bed, gazed fascinated at the face of the dead woman.

“How are you going to identify her? You’ll have to try.”

“I’m going to have the body photographed here, before it is moved, and then we shall take a cast of the face, and thoroughly examine the body. That’s all that we can do, as far as I can see. We shall examine the teeth, and I think we shall try and get finger-prints; but she hardly looks as if her finger-prints are likely to be in our collection.”

“No. There’s nothing of the criminal in that face. Was she married?”

“The doctor says not, and there is no mark of any wedding-ring.”

“What colour are her eyes?”

“Very dark blue.”

“Ah, that’s funny again! So were the eyes of Miss Alvarez, and she was a Spaniard. When’s the inquest?”

“To-morrow, at eleven.”

“I shall be there. What’s the poison?”

“Prussic acid, so the doctor says. He said he could plainly smell it in her mouth when he came.”

Tempest moved to the side of the bed and leant over the face. The faint odour of almonds was still perceptible.

“Yes, I can smell it myself. There won’t be much mystery about the manner of death.”

Tempest stayed until the body was removed, and wondered at the reverence with which it was handled by men who must have long been accustomed to death and callous at its manifestations, and then, saying good night to Parkyns, he left. As he did so he turned back. "I say, Parkyns, tell Yardley about it, and send word I'd particularly like him to come to the inquest, if he can manage it, as I think it will be an interesting case. There's more here than there looks at first sight."

"What do you mean by that, sir?"

"Ah, I'd like to think things over a bit."

"Shall you give evidence or anything to-morrow, Mr. Tempest?"

"Oh, Lord, no! You needn't be afraid of me getting a rise out of any of your people. I'm not going to do that. To be perfectly frank, Parkyns, I don't approve altogether of coroner's inquests. They serve a useful purpose in deciding whether a death is a natural one or not. But I think they ought to stop there. They must hamper your people fearfully, if it is a case that has to come to you. I myself don't believe in making things public till you can go straight and arrest your man. The coroner's inquests only too often warn him to keep away."

"I quite agree with you, sir. But still it's the law, and we have to put up with it."

"Yes, I know. But as it is the law, get 'em over, and a verdict given as quickly as possible, to leave your crowd with free hands. That's what I think."

The inquest took place in due course the following day. The proceedings were brief and formal. The body had been identified in the meantime as that of Miss Evangeline Stableford, a well-known provincial actress; and after evidence of identity and of the finding of the body, the medical evidence which followed left no room for any doubt as to the cause of death. The verdict of the jury was unanimous and immediate: "Suicide by poisoning with prussic acid during temporary insanity," in spite of the remarks in the summing up of the coroner, that they had no evidence before them of the state of mind of the deceased. But then a coroner's jury so often takes the bit in their teeth. The girl was too beautiful to be buried with a stake driven

through her body, which many people still believe is even yet the legal consequence of a bare verdict of suicide.

The public and the jury drifted out of the room; and the coroner, as he left, noticing the barrister, said:

“Were you briefed here to-day, Mr. Tempest?”

“No—just curiosity; like the ’busman who takes his holiday by riding on another man’s ’bus.”

“Well, from what one hears, I should have thought you were too busy to bother about us.”

The barrister laughed. “The courts aren’t sitting.”

“Of course not. I’d forgotten. Inquests, you know, aren’t postponed over vacations. Good morning.”

Tempest joined Yardley and Parkyns on the pavement outside.

“Well, Mr. Tempest, what do you think of it all?” said the inspector.

“Parkyns, you’ve known me a good many years now. It must be nearly twenty years since I first cross-examined you at the Old Bailey.”

“Yes, it must be quite that long.”

“And we’ve been interested together or against each other in the same cases a good many times since then, haven’t we?”

“We have, sir.”

“Well, have you ever known me to make a positive statement without being fairly certain of it?”

“I don’t call one to mind.”

“And when I do make a positive statement, I’m not often wrong. Now am I, inspector?”

“I’ve never known you wrong yet, sir.”

“Oh, I don’t say as much as that, Parkyns; but I’m going to make a definite assertion now, and I think you can depend upon it.”

The two detectives listened with rapt attention as the barrister continued.

“That woman no more committed suicide than I’ve done. It isn’t suicide at all. She was murdered.”

“Why do you think so?”

“Just think, Parkyns. The body is found nude.”

“Quite so, sir; but so was Miss Alvarez, and you’ve never said that case wasn’t suicide——”

“I agree, Parkyns, I never have said so; but when the body of Miss Alvarez was found in the bedroom of her flat, her clothes were there in the room. Now, it’s never dawned on you, or on the coroner or on the jury, that Miss Stableford’s clothes were not in the bedroom or in the hotel. There was nothing whatever in the room in the way of personal belongings; there was not even a hairpin, and yet her hair was undone and loose on the pillow. Now, a decent respectable woman, as we know Miss Stableford was, doesn’t walk about the corridors of a decent respectable hotel as this is, in broad daylight, with even her hair undone. And she certainly doesn’t walk about the corridors without her clothes on. I think that’s sound argument.”

“Then,” said Yardley, “do you think she was murdered somewhere else and taken there afterwards?”

“No, not in the least. You can’t carry a dead body into a hotel without it being noticed, nor dare anyone risk carrying a nude dead body along the corridor from one room to another. No, the girl was murdered in the room where her body was found, and only an hour or two before she was found, and her clothes, belongings and hairpins were taken away afterwards.”

“Why?” asked Yardley.

“Ah! now we get to speculation; but I think it was an attempt to hide her identity. There you have your clue, Parkyns. At any rate, it’s the only clue I see at the moment, and it’s one well worth your while to follow up.”

“But in what way is it a clue?”

“It’s a clue, because whoever committed that murder—and mind you it was murder, I’ve not a shadow of a doubt about that—whoever committed that murder took pains that the body should not be identified. Therefore, they feared that identification might throw suspicion in their direction. You must first make certain that the body is that of Miss Stableford. You say there

were two teeth stopped with gold in the upper jaw. Advertise for her dentist, and see if you can identify that stopping. If you do that, then trace back the history of Miss Stableford till you find someone likely to have desired her death; someone upon whom the mere proof of identity can throw suspicion."

The barrister nodded to the two detectives and went his way.

They watched him disappear in the crowd, and as they parted Parkyns said:

"Jove! I wish we'd got him in the force."

"Yes. He'd be a jewel for you, wouldn't he? I often wonder how it is he always puts his finger on the spot, and generally a spot nobody else ever thought of."

"Yes, it's funny. I've no doubt whatever he is right, and that it's a case of murder. Why didn't you and I think of that? Honour bright, I'd have cheerfully taken the jury's verdict if it hadn't been for what he said."

"So should I," answered Yardley. "Parkyns," he continued, "if the girl were murdered, somebody did it. Who was it?"

"Yes, that's just the little detail you and I have got to try to find out."

Tempest left town to pay his postponed visit. With the verdict of suicide the public rested content; and after the natural publicity of the funeral, the public interest in the case quickly died down. This was what Yardley and Parkyns desired, and quietly and unostentatiously they then began to prosecute their inquiries. The stage history of Miss Stableford was general knowledge in the profession, and it was a simple matter to get into touch with Lady Stableford and learn all she knew of the girl's life. She could tell them, too, of the stopped teeth, and with that all doubt as to the identification ended. Putting the accounts together it was evident that they had the complete story, and that with an accuracy of full detail amply sufficient to demonstrate that ostensibly there was nothing in the life of Evangeline Stableford which they could legitimately regard as a starting point for an investigation with any hope of this resulting in an explanation of the mystery. The thing was an absolute blank. Their inquiries showed beyond doubt that Miss Stableford was a young provincial actress of some talent and of great promise, leading an exemplary life, and possessed of such means that inducement to the contrary on that score was in her case

wholly lacking. Lady Stableford, bitterly distressed at the fate which had overtaken one who to all intents and purposes was her own daughter, had placed ample funds at Yardley's disposal, in the hope of finding a clue to the mystery, and Yardley and Parkyns prosecuted their research with zeal and vigor. But all to no purpose.

With the end of the vacation, Tempest returned to town, and Yardley lost no time in making him aware of the result of their investigations.

Tempest, sitting in his chambers, listened attentively to what the other men told him, and frankly confessed that he was absolutely puzzled. But in his own mind he felt that the explanation lay in the mystery surrounding the girl's birth and in the great likeness which existed between Evangeline Stableford and Dolores Alvarez. He went to Somerset House, and, knowing the date of the birth of Miss Stableford, he hunted for the certificate. No child named Alvarez had been born in that year. That did not surprise him. He even went to the trouble of getting copies of every certificate of the births of an illegitimate child within a month on either side of the day on which a child apparently evidently less than ten days old had been found by Lady Stableford on the couch in her drawing-room. Tempest knew that from the child's clothes it was evident that the mother must have been financially in comfortable circumstances at the time, and so was able to eliminate the bulk of the children of whose births he had certificates, by reason of the places of birth. The remainder Yardley investigated one by one. It was a long and unpleasant task, but in the end it had been possible in every case to trace each child—for a period sufficiently prolonged to establish it as quite impossible that Miss Stableford could be one of these children. But the likeness between the two women haunted Tempest, and he wondered whether the real explanation was that Evangeline Stableford was the child of Dolores Alvarez. But an interview with the surgeon who had made the post-mortem examination, and a reference by the latter to his case book, left no doubt of the fact that Miss Alvarez had never had a child. Utterly puzzled, Tempest turned to the only remaining possibility that Miss Stableford might be the daughter of Lady Madeley; but a few careful inquiries showed that Lord and Lady Madeley had been married some days before Lady Stableford had found the child. By the fashionable intelligence in different papers, and by the succession of hotel registers, Tempest was able to trace the movements of the married pair as day by day in easy stages

they journeyed overland to Southern Italy. The last supposition, therefore, was an absolute impossibility, and Tempest finally could see no other conclusion than that the amazing likeness was after all only coincidence.

So that they had nothing to go upon save the details of the tragedy. These were strangely destitute of any enlightening clue.

Late one evening, Yardley and Parkyns called at Tempest's chambers in order to keep an appointment for which Parkyns had asked.

"Well, what is it?" asked the barrister.

"Mr. Tempest, I'm at my wits' end about the murder of Miss Stableford. I've done everything I can think of, so has Yardley. We haven't found out a thing, and the mystery is at the precise point it was when we started. I've come to say that unless you can suggest anything, I'm afraid I must give it up. You see, sir, this isn't the only thing I have to attend to. Have you thought of anything, sir?"

"Yes, Parkyns, many things, and I've done a little bit of inquiry myself; but I must say all to no purpose, I'm afraid."

"I don't like to give it up, if you think there is anything more to be done. Are you going to give it up, sir? Because if you do, there isn't much use of our going on."

"Oh, it isn't quite fair to me to say that, inspector. I'm only an amateur. My interest in it isn't professional."

"What is your interest then, Mr. Tempest?"

The barrister turned and took from its nail above the mantelpiece, in front of which he was standing, a miniature, which he passed to the detective.

"That's the explanation of my interest, inspector."

"Where did you get this from, sir? Did Lady Stableford give it to you?"

"No. Who do you think it is?"

"Well, it's a portrait of Miss Stableford, isn't it."

"No, not at all. It's a portrait of Miss Alvarez. It's been hanging on that nail for twenty years. It's the miniature I told you of. Your mistake proves how

great the likeness is. Now, do you understand how my curiosity has been provoked?”

“I think I do, sir.”

“So far so good. Now, I’ve not given it up yet. There are two little details that might pay for investigation. It’s no good trying to trace the prussic acid, but you’ve got the champagne bottle. You might try and trace that, and find out where that was bought and by whom. It’s labelled Veuve Cliquot ’93, but I remember the cork. You’ve got it still, I suppose?”

“Oh, yes, sir.”

“Last night I ordered a bottle of Cliquot ’93 at the club, and I saw the cork of that. It’s got a totally different brand on it. Here it is.” And the barrister passed the cork to the two detectives.

“But what do you make of that, sir?”

“Simply this—that one bottle or other is spurious. It’s not very likely the club one is wrong, but still find out which is spurious; and if it’s the one found in the hotel—you know the hotel people say they didn’t sell that bottle—then you must hunt round and find out where the spurious stuff is being made and sold. Then there’s another thing. The bedrooms at the hotel all have self-closing doors, locking with spring latches. They need the right key to open the doors.”

“Quite so.”

“Well, from the inquiries you made at the time it was perfectly evident that no one had had the key of that bedroom, for the key had not left the office for more than a week. The body had not been dead more than a few hours even when I saw it. The scent of prussic acid will disappear under twenty-four hours. Now, somebody entered that bedroom with a key. There are two master keys to find. One will open all doors on that corridor. That is in the possession of the head chambermaid, who has charge of that corridor. The other, which will open all doors in the annexe, the manager has. It is locked in his safe, and it is quite impossible that that one can have been used.”

“Then that proves the chambermaid’s key was used?”

“It looks like it; but in that case the chambermaid herself used it, for if you remember in her evidence at the inquest she said the key which she wore on

the chain attached to her belt had never been out of her possession all day. She volunteered that evidence which is so damning that she would never have said it except on the assumption of its entire truth and her absolute innocence when she easily might have overlooked the conclusion it pointed to. So I don't think the chambermaid's key was used."

"Then there must be another key?"

"Wait a bit, Yardley. Suppose that murder was premeditated? The murderer would not have done it without making arrangements, and thinking out his plans and seeing that they were possible. You can't walk blindly into an hotel and make certain that things will fall out so absolutely as you require them to, that you can let your safety and escape after committing a murder depend upon such a coincidence. The thing isn't reasonable. The chambermaid thinks that murder must have been committed between two and three in the afternoon, because that is the only time during the day when there is no one actually on duty in the corridor. In the morning they are attending to the rooms, and they have to stay about till two o'clock to answer the bells of those people who come to their rooms to wash or change for lunch. About three o'clock people come to their rooms to dress to go out calling, then others change for tea, and again others change for dinner, and from two to three is the only slack time during the day."

"How do you know all this, Mr. Tempest?" put in the inspector.

The barrister laughed. "I had a long and interesting interview with that chambermaid two days ago."

"Then where was she during that time—from two to three on the day of the murder?"

"Yardley, I'll make a real detective of you some day; you're getting quite promising in the way you reason out things. Well, I'll tell you. She was having her *dinner*, and had got the key with her. Now she says it is a regular thing that all the maids are at their dinner between two and three. The murderer probably knew that, and if so there you get premeditation again. The most likely way for that to be known would be for the murderer to have himself stayed in the hotel and found it out."

"But how could he get the key?"

“That’s what I’ve been wondering, Yardley, and I can suggest one way. Suppose the man goes and stays in the hotel in that very room, and whilst the room is in his occupation, and the key legitimately in his possession, suppose he had a duplicate made of it? Then he can keep and use that duplicate when he likes.”

“But suppose all you say be true, Tempest. The girl was not staying in the hotel. How in the name of fortune could he lure a respectable girl up to his bedroom?”

“My dear Yardley, how was the girl to know it was his bedroom? There are always suites of rooms in a hotel. Take it, for example, that the man was an impresario, or said he was, and, deluding her into the idea that he wished to talk business, invited her to go to his sitting-room. The girl would go fast enough.”

“Would she stay when she got there and found it was a bedroom?”

“H’m—never thought of that. You’ve caught me out there, Yardley. But—but—wait—wait a moment;” and the barrister picked up another cigarette and lighted it, and the two men watched him as he began unconsciously to pace up and down the room. Yardley knew the trick and waited in silence.

“Yardley, you’ve brought it one step nearer. It must have been a woman who murdered the girl. Any story would be sufficient excuse for her going to a woman’s bedroom, and for her staying there after she got into the room. Now there is another point, Yardley. All the keys have stamped on them the name of the hotel and the number. No shop would deliberately duplicate such a key. They would know it could not be wanted for any legitimate purpose. A model must have been taken in wax and the key made from that. I wish I had thought of that before. Still, it may not be too late. The room had been empty for a week before the body was found there. The chambermaid told me nobody had been put in it since. Yardley, go to the Charing Cross Hotel at once, ask to see that key, and examine it carefully, and see if there is any sign of wax on it. If there is you will know I am right, and it will prove something else besides.”

“What else will it prove?”

“Just this, that the previous occupant of the room is the guilty person, for if anyone has used the key in between there will be no wax on it. At least the

odds are a hundred to one.”

The two detectives took their leave and went straight to the hotel. It was exactly as Tempest had anticipated. There were still traces of wax in the wards of the keys. It was a simple matter to ascertain that the last occupant of the room had been a lady who had given her name as Mrs. Garnett. A little investigation elicited the fact that she had complained of her room being very dark, and had, by her own request, been moved into one on the opposite side of the passage. She had remained in the hotel until after the dead body had been discovered, and had left, declaring vehemently that she would never be able to sleep after her experience. The clerk and the other hotel servants had no very definite recollection of the lady, save that she was always dressed in black, and was dark and middle-aged.

As her own room was only just across the passage she could, of course, easily make certain the other room was not occupied. A stranger to the hotel wouldn't know that.

“Yes, it all seems very simple now, doesn't it, Parkyns?”

“Yardley, it makes us look rather amateurs. There's nothing in it all that we couldn't have found out. Here you and I have been working on it for weeks, and we draw everything quite blank, and that man just lights one of his everlasting cigarettes and walks up and down his room in front of us and gets the thing first try—talks it out—even thinks it out before us.”

“Are you sure of that, Parkyns? It's quite as likely he'd thought it all out beforehand and made inquiries himself, and just sends us to look for what he knew we should find.”

“He may have begun it, but he'd never have let you trip him up as to its not being a man if he had done. He made a mistake there, and Mr. Tempest doesn't particularly care about doing that.”

“No, I agree with you on that point—he doesn't. Still, the next move is to find Mrs. Garnett, and I'll tell you one certain fact, Yardley, about her. The thing was premeditated, so you may be quite certain Garnett is an assumed name, and probably a name assumed for the purpose of the murder and consequently one that carried no clue in itself.”

A few days later, Tempest and Parkyns dropped across each other at the Old Bailey, and the inspector told the barrister what he had ascertained.

“Yes, I thought it would turn out that way. Now, you’ve got to try to put your hands on Mrs. Garnett, and the only way I see of your doing that is to find out some woman who will answer and whose life somehow touched that of Miss Stableford. It’s a pretty little problem, inspector. Here I must be off,” said the barrister, as his clerk brought him word that the judge was summing up in a case that preceded one in which he was himself briefed.

CHAPTER V

FOR some time Yardley and Parkyns devoted themselves diligently to the search for Mrs. Garnett, but the effort proved like seeking a needle in a bundle of hay. They had nothing to go upon—no detail from which they could make a start. The hotel porters had not the smallest recollection of the lady's departure, and could give no hint how she had left the hotel nor what might have been her destination.

At length, Yardley, confessing himself conquered, applied to Tempest.

"I know it isn't fair to come bothering you," he had said to the barrister; "but the thing's beaten me. If it were ordinary professional work of mine, I should just report a failure and drop it. I really don't think it's any good worrying over it any more, and Parkyns says he's had enough of it too. But you sent for me to go to the inquest, and you say you are interested, so I decided I would see you again before actually reporting to Lady Stableford."

"I'm not sure I can help you much. I'm certainly not going to drop it myself, but I don't at present see how I can put you much further along the road at present. Still, there's one point. You remember what I suggested as the reason Miss Stableford's body was stripped?"

"You said it was an attempt to hide her identity; and that if we could find any person upon whom suspicion attached, merely because the body was that of Miss Stableford, that we should then have a clue. That was what you said, wasn't it?"

"Yes, exactly. But you couldn't find any such person in relation to Miss Stableford?"

"No, we couldn't."

"Well, here's a suggestion. I tell you frankly, I don't think it could be substantiated in court. I don't give it to you as a certain deduction—it's only a suggestion. The only mystery you can learn of in connection with Miss Stableford is the mystery of her birth."

“Yes, that is so.”

“Well, now, it’s pretty certain that the murderer of Miss Stableford was a woman—this Mrs. Garnett.”

“Granted. What next?”

The barrister paused. “How old was Mrs. Garnett? The hotel people say middle-aged, forty to forty-five.”

“Old enough to be Miss Stableford’s mother?”

“Yes, the girl was a bit short of twenty-one.”

“Well, Yardley, suppose you’ve got it now?”

“What on earth do you mean?”

“Suppose Mrs. Garnett were Miss Stableford’s mother, she would naturally be concerned in the mystery of the girl’s birth? Yardley, I tell you, if you can find out who was that girl’s mother, you’ll be a big step onwards towards finding out the clue to this mystery. I am fairly certain you will know then who Mrs. Garnett is.”

“Whatever made you think of that, Tempest?”

The barrister made no answer as he walked to the table, picked up a cigarette and lighted it. Apparently he had dismissed the subject from his mind. His next question had no relation to it.

“Have you done anything in the Rellingham murder case, Yardley?”

“How did you know I was working on it?”

“Oh, I advised them to retain you.”

“Then you’re in that as well, are you, Tempest?”

“It all depends what you mean by ‘in’ it. I’m not hunting for the murderer, if that’s what you mean.”

“But you know all about it?”

“I do. What did they tell you, Yardley? You can speak frankly, for I know all there is to be known about it, and I’m curious to know how much they disclosed to you.”

“I think they told me all they knew themselves.”

“About the secret trust?”

“Oh, yes, they told me that;” and Yardley briefly recapitulated the details Tempest already knew.

“I’m glad they told you, Yardley, else I should have had to hold my tongue. You’ve seen the letter Sir John wrote?”

“I’ve got a copy,” and the detective produced it from his letter-case. “Can you give me any tips about that? I want some badly, though I’m not at the end of my tether with that case yet.”

“Well, Yardley, there’s one very curious sentence. Sir John says that if the eventuality the trust is to provide for doesn’t turn up in one hundred years from the 18th of August, 1881, it never will. What do you make of that?”

“If you want to know my candid opinion, I think it’s all damned rot! I believe Sir John was insane, and I’ve been interviewing his doctors. I can’t say they welcome the suggestion, but that’s what I think. Look here, Tempest, how can you call such a trust sane? Did you ever hear of one like it before? It just seems wildly preposterous to me. I think the fact that he could create such a trust—the will’s all in his own handwriting, so he couldn’t have had advice—is just the best proof you could want to demonstrate the truth of his insanity.”

“Yardley, I’m a lawyer—you aren’t. You can take it from me—even if it were not a judgment in court—that the trust is legal, and I think it is perfectly sane. The difficulty is this. Sir John had to deal with a secret, and he did his best to make that secret sacred. But Sir John knew nothing apparently about deduction, for it’s possible to get a good deal of explanation out of the thing as it stands. All I am doubtful about is how far one is justified in trying to find any explanation at all. You see, he leaves things to his partners, trusting blindly in their honour and integrity, and they accept the matter as sacred. I don’t blame them. It’s what they ought to do. They retain me in one way and you in another, and they disclose to us what they decline to make public. You see, you and I in all decency—paid by them, working in their interests—must adopt their standpoint. If they are not justified in ferretting, neither are we.”

“Well, Tempest, your morality is chalks above mine; but take it as you say, I don’t see what you are driving at.”

“I’m simply trying to decide what is the point at which we must stop; but I think we are justified in going this far. It seems to me pretty certain Sir John was considering the honour or the reputation of some third party.”

“That’s so. I’ll admit that, if you bar insanity, I think the same.”

“Very well; that’s one step. Now, he speaks of an interval of one hundred years. What can you connect one hundred years with?”

“It’s a blooming century, if that’s any help.”

“It isn’t, Yardley. To be perfectly candid, I have racked my brains for days over it, and I can think of nothing in which one hundred years from any given date is an integral and essential part of any fact, idea, or supposition.”

“Well, Tempest, if you can’t think of anything, I’m willing to bet there is nothing.”

“I distrust your premise, but I agree with your conclusion, Yardley. What I believe is that it is an outside interval which is sufficient for one to be certain it covers some other known but uncertain interval. Now, what does a hundred years cover?”

“As much as charity. I’ve no doubt you’ve settled it to your own satisfaction. Go on; don’t wait for me.”

“Well, Yardley, I think I can tell you. What’s the length of a man’s life?”

“‘The days of our years shall be three score years and ten, and if by reason of strength they be four score years’—there, you’ve got Bible authority for that, Mr. Tempest.”

“Precisely. An interval of one hundred years is bound to embrace and cover the whole period of any person’s life—to include his birth and his death.”

“How about the centenarians?”

“They are too rare to take into consideration.”

“Well, take it then, Tempest, that you are right. The hundred years is to cover some person’s life. Whose?”

“The life of some person born on the 18th of August, 1881. Now, Yardley, who was born on that day?”

“Really, I’m not the Registrar-General.”

“No, of course not; but I wouldn’t give tuppence for your memory, my dear Yardley.”

“Oh, go on; don’t beat about the bush. Take it for granted I’m as stupid as an owl. I assure you I feel I am when I’m talking to you.”

The barrister laughed, and, taking his cigarette from his mouth, he watched it as the smoke curled away from the burning end.

“Yardley, the water-tight compartments of your mind get locked a bit too tightly. The 18th of August, 1881, is probably—pretty certainly—the date of the birth of Evangeline Stableford. At any rate that is the date of the birth of the child which was offered to Lady Stableford for adoption, and the probabilities are overwhelming that the child that was planted on her was that child.”

“Then do you mean to say Mrs. Garnett murdered Sir John as well?”

The barrister’s eyes half closed, and he spoke slowly and deliberately.

“No, Yardley, I don’t; but mark you, I do say this, that that secret trust refers to Evangeline Stableford, and that Sir John was safeguarding the honour of that girl’s mother, and her mother I am pretty certain was Mrs. Garnett. Now, find the explanation of the one, and you’ve explained the other. The two mysteries are one and the same; of that I’m positive. What we have got to do is to trace Mrs. Garnett, and find out who she is. The more I think of it the more convinced I am that the papers Sir John left, which have been destroyed, would give us the clue. But this also I am certain of, that they were never preserved to clear up murder mysteries.”

“What do you really think, Tempest?”

“No; that’s not fair. I’ve told you what I feel certain about—the things that it seems to me one is justified in arriving at by pure deduction, and justified in acting upon. What I’ve told you already I’ll stand to. Anything beyond that is just guessing, for which I won’t be held responsible.”

“Quite so; but what do you guess?”

“Well, if you will treat this as no more than a guess, and not bracket it as equally a certainty with all the rest that I’ve told you, I don’t mind your knowing what I do think. I believe that Miss Stableford was the daughter of Sir John and Mrs. Garnett, and that the secret trust is an attempt by Sir John to secure that his daughter should be provided for.”

“But that doesn’t explain his death or hers?”

“I grant you that: and that’s precisely why I doubt the accuracy of my guess. Still, it’s the only logical conclusion I have argued out so far. Look here, Yardley. Take it for granted that Miss Stableford was Sir John’s daughter. He can disclose his own position as the father, but he stands to hurt his daughter by labelling her a bastard, and he also stands to damage her mother by labelling her to be immoral. Now, either risk is considerable whilst the two women are alive. Neither matters twopence when they are both dead. Sir John must have known Evangeline was for the present well provided for. The probability was that Lady Stableford would leave her a fortune, and in that case no further provision would be necessary. With that probability it was, it would certainly be, a positive shame to label Evangeline Stableford as illegitimate or her mother as immoral. It would be so absolutely unnecessary.”

“But, steady on, Tempest, how on earth was Sir John to be sure Lady Stableford would leave the girl a fortune? Suppose the girl had lived, and Lady Stableford had left her nothing? How was Sir John to know? How were his partners to know from what you presume—assume it all to be true—that the occasion had arisen when the trust came into operation?”

“They wouldn’t know.”

“Then your argument falls to the ground?”

“No, Yardley, it doesn’t. Your remark takes it one step further forward.”

“How do you make that out?”

“Assume it all to be true, then something else has to be done to bring about the occasion for the intervention of the trust. You can argue it out, and think it over till the crack of doom, Yardley, but I am positive that that trust cannot come into operation by mere fortuitous circumstance. Somebody else has still got to do something; therefore, Yardley, mark this—there is somebody else alive now who knows the whole of the circumstances which

were known to Sir John, and that somebody else will create at the proper time, *if it be necessary*, such an occasion that resort to the trust will be essential. That person is the person whose honour Sir John was safeguarding. Now, that person's honour is precious in his or her lifetime—it will matter little or nothing after death. Therefore, the other person was watching Miss Stableford's career. If Evangeline had been provided for by Lady Stableford, nothing would ever have been done. But supposing the old lady had left her unprovided for, then that person by his or her will could and was intended to disclose sufficient to bring the trust into operation for the benefit of Evangeline. You can discuss the thing for a century, Yardley, but you will find that it is the only logical conclusion you can come to on what we know. It's the only one possible."

"Why didn't Sir John simply hand over £20,000 in his lifetime to Miss Stableford? It could have been done anonymously, if there were any secret to be guarded."

"Very likely he meant to when she came of age. Don't forget she died a minor."

"Well, then, why didn't he hand the money to this other person whom you say knows everything and is now alive?"

"I don't know, Yardley; but it was probably because he didn't trust that person. He did trust his partners. Look here, there are scores of people in this world who can be trusted to do a specified thing who are absolute fools over money. They are not necessarily dishonest. It simply is that they muddle money away. Pay it all into a single banking account, and find to their horror, when it is too late, that they have overdrawn their accounts. That's how half the trust funds which are lost go. That is what Sir John was afraid of."

"Who do you think that other person is, Tempest?"

"You can take it for granted Sir John never gave away a client in his life. The child's mother is bound to have known. I expect that other person was the mother."

"Still, after all, Yardley," said the barrister, as he helped himself to another cigarette from his case, "you see, if it were merely the providing for the welfare of a certain person, there are hundreds of ways in which this could

have been done without exciting any suspicion at all. Sir John was a clever lawyer, and knew of those ways. The secret trust was so unnecessary. Therefore, though I am still inclined to think my guess correct, I'm certain that if it be correct, there is a lot more to come out. You see, it is quite possible no provision will ever be claimed under the trust—which makes one doubt the daughter idea. What we know or can guess won't properly explain everything. Yardley, you must find out Mrs. Garnett and who she is."

"Can't you set me something easier to do? Working with you somehow always seems to involve these forlorn hopes, wild-goose sort of hunts. How *am* I to find the woman?"

"God knows, Yardley; I don't. I think the most likely way would be to trace the birth of Miss Stableford."

"But we've tried that, and failed."

"I know; but we've only tried England. I've never been in such a position myself, and perhaps I don't know, but it's always a standing mystery to me, why the illegitimate child of a woman who wants to cover up its birth is ever born in England. A few pounds take you over to France, where not a soul knows you. The mother can call herself Mrs. anybody, and register the child as the child of any father or a mythical father, if you like. The fraud couldn't possibly come out till afterwards, when the mother is safe back in England. I've never looked it up, but I doubt if they would extradite for such an offence. It's forgery here by Act of Parliament, but I don't suppose it is in France."

"You might say the same of any country in Europe?"

"Yes, I agree; but don't forget the child was only ten days old when it was left with Lady Stableford. The baby was already born, for her sex was disclosed when the first letter was written to Lady Stableford. Between the date at which the lady disclosed her name and address and her finding of the child, there was no time for the infant to have been brought from any great distance. The baby was probably born in France."

"Do you think it's worth while going to France and making inquiries there?"

“Hardly; for the odds are 20,000 to one against the birth being registered in the correct or any genuine name. Nor do we know what name to look for. Obviously it couldn’t be Stableford.”

“Up against a blank wall again. Which way round are you going?”

“Well, you’ve got the remarkable likeness between Evangeline Stableford and Dolores Alvarez. Dolores was certainly not the child’s mother. She had never had a child; but it’s worth your while to work out the Alvarez pedigree, for I shall be everlastingly surprised if there proves to have been no blood relationship at all between the two women. I don’t promise you that you’ll find the solution; but that’s the only channel I think of at present, and it’s worth trying. Still, there’s one other alternative. Suppose Sir John is trying to protect the honour of a man, and that the child is not his at all? Suppose Sir John himself were only a trustee, and that he did not create the trust, but only passed it on?”

“Suppose indeed, Tempest! However do you think of things as you do?”

“Think! One can’t help thinking. The alternatives jump at you. But you can take it for granted that if Sir John were protecting a man, that man was no ordinary client. Any man will go to any lengths in the interests of a woman, particularly if she be a pretty woman; but I’m hanged if I think many men would go to the bother Sir John did simply in the interests of a man. Besides, a man’s interests never get so important in this avenue that they are worth such procedure. In fact, it is hardly a very likely solution.”

“Tempest, suppose her father were a king?”

“I’ve thought of that, but then kings’ mistresses are always the wives of other men, who father their children for them. Added to which, Yardley, a king lives his life so much in the open that his bastards are known to many people, often to all the world. They can’t be hidden up. No, it isn’t a king. Do you remember the story of poor Parnell? It’s always been a mystery to me that the Irish have ever tolerated the English Liberal Party since. The Irish were more powerful under Parnell than they have ever been before or since. Yet they let the Radical Nonconformist conscience fire the ultimatum at them that they must throw Parnell over. And so they broke him and broke themselves. It was such sickening cant—that ultimatum. Yardley, she was far more likely to be the child of a man in the position of Parnell than the

child of a king. You see, a king is not dependent on public support for his position. A public man is, and the whole of his private life is expected to be white as driven snow. If it isn't, he's got to whitewash over the shady places till the public can't spot them. And that takes some doing. What I doubt is that Sir John would lend himself to it. You see, both the alternatives are unlikely. Which is the least unlikely?"

"Hanged if I know!"

"I'm sure I don't, Yardley. As far as we know at present, it's just a case of 'you pays your money and you takes your choice.'"

"Tempest, what sort of a man was Sir John?"

"Can't tell you. I've seen him in court a few times. Just knew the old boy to nod to, but that's all. I never held a brief for him. You see, he was one of the beastly respectable sort of solicitor. A divorce case or anything nasty or criminal he'd send on at once to another firm. Nice stodgy conveyancing, chancery work or family trust deeds and things of that kind were all he would do. He was a splendid father to unregenerate cubs."

"And all the time—as likely as not—he was a hot 'un at home, eh?"

"May have been, for all I know; but I never heard a whisper of that kind of thing about him. He wasn't a Wesleyan or a class leader or any other advertised kind of humbug. He would play cards at the club. I've seen him at Ascot and Good-wood. He was a great first-nighter, and all that sounds pretty decent and ordinary."

"Have you asked his partners if he had any private clients?"

"Yes, I did. They know of none. As far as they are aware, all the business he did went through the office in the regular way. Occasionally he would press-copy a letter himself in a private letter-book he kept. But Baxter has been through that, and he says there is nothing suspicious in it and nothing the other partners didn't know about."

"Then why did he keep the letter-book private?"

"Baxter told me that the letters certainly were private—the sort of letters you wouldn't let the office boy see, but nothing more than that."

"I'd like to see that book, Tempest."

“So should I. But in the face of what Baxter says, I hardly see how we could press the point. We mustn’t let them get the idea that we are merely curious, or they will all just shut up like oysters. Still, Baxter isn’t a fool; and if he says it wouldn’t help us, the probabilities certainly are that he is right. To sum it all up, Yardley, you’ve got the mystery of the death of Sir John, the mystery of the secret trust, and the mystery of the death of Miss Stableford, and I am convinced that all the lot are really only one mystery. But all the same, we haven’t got the explanation of that mystery.”

Some days later, Arthur Baxter came round to Tempest’s chambers.

“I haven’t any idea,” he said, “whether there is anything in it or not, but you asked me about Sir John’s private letter-book. Yesterday I found a letter had been copied in it which I had never previously noticed; and as I can’t explain it, and as neither of my partners know or can even guess to what it refers, we three have all come to the conclusion that you had better be told about it, in case there may be any clue to be got from it.”

“How did you come to miss it before?”

“Well, the old boy didn’t copy it following on the others. It was on a page quite by itself, very nearly at the end of the book. I was looking in the index. I wanted some figures from a certain letter which I knew Sir John had copied in his own book, and I came across the reference ‘S. T. 477.’ Now, it is a 500-page letter-book. The last copied letter is on page 304. Naturally we didn’t look on through a lot of blank pages, and so we missed it. I can’t imagine why he copied it there and not in its proper place.”

“Probably he half meant to tear it out. It was most likely copied for *temporary reference*, and when the opportunity for its use was over he probably intended to destroy it. That would be why it was only indexed under initials.”

“What do you suppose ‘S. T.’ means?”

“Secret trust, I should guess. Would that fit the letter? Let me see it,” said Tempest.

“Well, here’s a copy of it.”

“Sir John Rellingham has received and carefully considered the letter. In the exercise of his discretion he must decline the request. He cannot but think

that the interview is essential.”

“Who was it written to?”

“There isn’t a hint, and it isn’t dated.”

“When was it written?”

“Some time during the week before his death.”

“How can you prove that?”

“Well, it’s rather funny. The copying-ink we used to use in the office was a sticky purple kind of stuff. But we changed to Stephen’s blue-black copying-ink for some reason or other a week before he died, and this letter was written in the new ink.”

“Did Sir John open his own letters at the office?”

“No, the confidential clerk opened everything addressed to anybody. It was the understood thing amongst the lot of us that everything that arrived at that address must be the common interest and knowledge of the firm, so nobody used the address for his private purposes.”

“But suppose a letter marked ‘*Private*,’ and addressed to one of you personally arrived. What would happen?”

“Oh, Smith would open it!”

“Has Smith seen this copy?”

“Yes, and he says no letters arrived at the office for Sir John, within the last month of his life, that this could possibly have related to.”

“Then Sir John must have received it at his own address?”

“That’s probable. You see, the letter carries over to the second page. Sir John’s private notepaper (he kept some at the office) would fit this letter. The office paper won’t. So much of our stuff is typewritten that all the office paper is the single sheet, square quarto stuff. Our paper never does carry over, because one sheet is one page. Therefore, as he used his private notepaper, with his own address on, to answer it, I should guess it was a reply to a letter which had reached him at home.”

“Baxter, I suppose you haven’t found any letters this could possibly be a reply to?”

“No, there’s nothing. I’ve been through all the letters in his pocket, or that came to the office during the last ten days of his life, and there was nothing at his house. It couldn’t possibly fit anything. Still, Sir John often said that the safest place for a secret was in the fire.”

“Then we had better take it that whatever letter it was a reply to has been destroyed?”

“That seems pretty certainly so. Tempest, can’t you think of any explanation? Can’t you unravel the business? They say you’ve never failed with any one of these murder cases that you’ve tackled. Why have you failed us?”

“No, Baxter, that isn’t cricket. I’m not a detective, and I never undertook to play detective for you. When I have had to get a prisoner off, there’s precious little I stick at. I’ve done all that lay to my hand. I’ve sometimes gone out of my way and done a bit more, but I don’t undertake to do detective work.”

“Tempest, for God’s sake have pity on us! Since this bother cropped up, forty-five clients have formally removed their business from us. Goodness only knows how many more have quietly dropped us without making a fuss and intend never to come back. In twelve months’ time we shan’t have a client left. I’m not married, no more is Marston, and he’s young, but Moorhouse has a wife and family. It’s serious enough for all of us, but it’s Gehenna for him. Can’t you suggest something? What do you think?”

Tempest and the solicitor walked out of Lincoln’s Inn together, and slowly across the fields, and as they went the barrister repeated the story he had argued out with Yardley.

The solicitor stopped and turned and faced the other man on the pavement.

“Tempest, you were present when that trust case was on. Do you remember that woman in court, sitting by herself, heavily veiled at the back, and we wondered what brought her there?”

“Remember! Damn! damn! damn! Why didn’t I think of it? What an asinine fool I was. That must have been Mrs. Garnett. Baxter, why don’t you kick

me?”

“I ought to be kicked myself. We were a pair of fools.”

“That explains why she was so interested. Yes, she wanted to know about the trust.”

“Tempest, had you thought all this out when that case was on? If you had, then I will kick you.”

“No, old man, I hadn’t. I was arguing it out with Yardley a few days ago. To be perfectly frank, I tried to put a certain proposition to him, and he kept on objecting and objecting; and all the time, as I was explaining away his objections to him, I was step by step arguing myself further on. That’s the real truth.”

“I wish we had got hold of that woman. Her presence in court that day seems to confirm your theory, Tempest.”

“Baxter, go back to your office and make inquiries whether any of your clients have altered their wills since the date of Evangeline Stableford’s death.”

“I’ve asked that already. We know of no alteration of a will by any client. Of course, we’ve made a good many wills since; but, as far as I can find out, none of them are for any client for whom we held a previous one. But Sir John was a clever lawyer, and I don’t for one moment suppose that the firm would hold such a will as you suppose exists, if we held the other ends of the tangled thread, as apparently we do. It’s all amazingly funny, Tempest.”

“I think it is,” began the barrister, as with his eyes on the ground he slowly paced on along the pavement.

“I’ve a warrant for your arrest, Mr. Baxter!” and both the men turned, as an inspector of police, overtaking them, placed his hand on the solicitor’s arm.

“It’s really come, then?” he gasped, as he turned, his face blanching deathly pale.

“Damn you, Baxter! hold your tongue!” said Tempest, whose mind, accustomed to criminal work, at once saw the danger of the ghastly remark

the solicitor had made. "Robson," he added, for he recognised the inspector, "what's this arrest for?"

"Murder of Sir John Rellingham, sir."

"But I understood Parkyns had got that case in hand?"

"So he has, Mr. Tempest. I'm simply making the arrest for him. He's ill in bed."

"What's your evidence, Robson?"

"There's a lot, Mr. Tempest—all that secret trust business."

"Oh, that's only the halfpenny rag stuff! You haven't arrested Mr. Baxter on that. What's turned up fresh? Come on—out with it. You'll have to tell the magistrate under twenty-four hours."

"Well, Mr. Tempest, a revolver has been found in Mr. Baxter's rooms, with one chamber empty, whilst the other bullets match the one Sir John Rellingham was killed with."

"It's a——" began the solicitor, but Tempest's hand closed on his arm like a vice. "Be quiet," he said; adding, "I can't do much before the magistrate, but I'll be there."

"Tempest, try and get me bail?"

"Hopeless, old man. It's a charge of murder."

The inspector formally gave his prisoner the usual warning; and Tempest asked, "Where are you going to charge him?"

"Bow Street, sir."

"When?"

"Now, at once."

"Then I'll come along with you."

The clerk of a friend of Tempest's passed at the moment, and the barrister stopped him. "Just go into my chambers, and tell my clerk to come along to me at Bow Street at once, will you?"

The three men got into a four-wheeler, and were rapidly driven to the police station. A few minutes of brief formality and Arthur Baxter was charged

before the magistrate and remanded. Evidence of arrest and of the finding of the revolver was given.

Tempest knew that, as the necessity for further investigations had been alleged, it was purposeless to try to break up the case at that stage, and he merely contented himself with reserving his cross-examination of the witness.

The inspector asked for a search warrant, to enable a search to be made of the offices of the firm.

Tempest at once objected, pleading the privilege of the solicitor.

“Is there any case on this point, Mr. Tempest?” said the magistrate. “It seems rather an interesting one.”

“I know of none, sir; and, even if there were, his partners could plead the same privilege.”

The inspector urged the necessity of the search strongly, but Tempest strenuously objected.

“I am not sure you are not right, Mr. Tempest. Still, it’s a point that ought to be authoritatively settled. Would you be content if I grant the application of the inspector, subject to an undertaking that no attempt to execute it is made till your appeal is decided? I suppose you will appeal?”

“Certainly.”

“Then that is how it had better stand.”

“But papers may be destroyed meanwhile, your worship?” objected the inspector.

“You must take that risk, inspector. It doesn’t amount to much, for if there ever were anything compromising, I’ve no doubt it was destroyed long ago. Still, it’s an interesting point that ought to be settled. Who issued the search warrant for Mr. Baxter’s rooms, inspector?”

“That was done at Scotland Yard, your worship. But because of this privilege I was told to apply to you, sir, for this other warrant.”

“Quite so—quite so,” assented the magistrate, and Arthur Baxter was led away to the cells.

“Mr. Tempest,” said the magistrate, as the barrister, picking up his hat and stick, was preparing to leave the court, “I’ve no doubt this appeal will take some time. I quite appreciate the reason why you did not ask for bail. It is never ordinarily granted in a charge of murder. But *prima facie* it seems so unlikely that anyone in the position of Mr. Baxter would be likely to be guilty of the crime, that I look with a good deal of apprehension at the possibility of retaining an innocent man in custody until that appeal can be argued. Between now and next week you will doubtless have an opportunity of consulting your client; and if you find there is any really satisfactory explanation of the discovery of the revolver, and you are in a position to then substantiate it with proper evidence, I am at present inclined to think I might favourably consider an application for bail, providing there is not then any additional evidence. But, of course, it will need to be very substantial bail.”

“I’ll undertake it shall be forthcoming to any amount, sir,” answered the barrister.

The next day Tempest had an interview with the prisoner. “Now, how about this revolver?” he asked.

“My dear man, I know no more about it than you do. I’ve never had a revolver in my hand in my life, much less fired one. I never put it there. I never knew it was there.”

“The inspector swore he found it in your empty suit-case in your bedroom. When did you last use your suit-case?”

“About a fortnight before Sir John was shot. I stayed a week-end with the Trelawneys at Ashover.”

“Haven’t you been away from town since?”

“Oh, yes; but I’ve got a larger case, which I generally use.”

“Who unpacked for you when you came back from Ashover?”

“My man, Bailey.”

“Well, the inspector says the suit-case was not locked—just strapped.”

“That’s how it always is. Do you think the police put it there, Tempest?”

“Oh, no. Parkyns was present when Robson found it. I know Parkyns well, and I’d trust him anywhere. Besides, the police don’t do that kind of thing. They try to get convictions, of course; and if a simple constable makes a mistake he can always get his pals to come and back him up. But higher up in the force they wouldn’t even do that. They are a fine lot of men. Can you trust Bailey?”

“If I find I can’t, I’ll never believe in anyone else so long as I live. I’d have cheerfully trusted my life to him.”

“Well, Baxter, it’s simply this, unless that revolver can be explained it won’t be much good asking for bail. Can you suggest anything? I’ll go and cross-question Bailey, and I’ll see if Parkyns will tell me whether the police have found out where it was purchased. That may help us.”

The barrister left the prison, puzzled and troubled. After the broad hint the magistrate had given him it was disheartening to him as an advocate, and damning to his client, that he could put forward no explanation.

He went straight to Baxter’s rooms and interviewed Bailey. As he had expected, he learned that, of course, the revolver was not in the case when Bailey had unpacked it.

“Did you lock it up then?”

“No, sir; just strapped it. To be quite frank, Mr. Baxter has lost the key of it. That happened years ago. If he ever uses it he always takes it in the railway carriage with him.”

“Were you in the room when the police found it?”

“No, sir, I wasn’t.”

“Bailey, what are Mr. Baxter’s arrangements here? Who are the other servants?”

“There’s only my wife and myself, sir. It’s quite a small flat. The dining-room, the sitting-room, the kitchen, and three bedrooms.”

“Is it ever left entirely empty?”

“Not as a rule, sir; if one’s out the other’s in. Mr. Baxter makes a point of that, unless sometimes when he’s been in himself he’s told me to take my wife out for a walk.”

“Then it’s never been quite empty?”

“Well, I can’t say that. Some time ago my wife’s mother was very ill, and she went home to nurse her. You know, sir, I used to be soldier-servant to Mr. Baxter’s brother—the one who was killed in South Africa. He was in the Army Service Corps. So I could do most things. So Mr. Baxter said that if I could manage his breakfasts he would dine out till my wife came back. That was how we managed it; but, of course, I often had to run out to do shopping, and then the flat would be empty.”

“There would be the chance then that somebody could enter the flat without you knowing?”

“Yes, sir, at those times.”

“But you wouldn’t leave the flat unlocked?”

“No, sir, of course not; but there was only the one latch;” and the man led the way to the door.

Tempest wondered at the array of bolts and chains which was there, and doubtless brought into use every night when three people were sleeping in the flat; whilst all the time a single drop latch was the only protection when the place was unoccupied.

“Who carries the key?”

“There are two, sir. I carry one and Mr. Baxter has one.”

“Has yours ever left your possession?”

“Never, sir.”

“Well, Bailey, unless you or your master are hiding something from me, the explanation of this revolver business must come from you. Can you suggest anything? Look here, I’m on Mr. Baxter’s side, so you needn’t mind what you say to me. Tell me anything you know or can think of—no matter how black it looks. The truth always helps, no matter what it is, when a prisoner is innocent.”

The man hesitated, and Tempest saw at once there was something to come out. He began once or twice in a stammering way, and then stopped.

“Now, what is it?”

“Please, sir, perhaps you ought to know Sir John Rellingham came here the day before he was murdered.”

“Came here! Whatever for?”

“I don’t know, sir.”

“What time of day?”

“About nine o’clock in the evening, sir.”

“Well, why shouldn’t he?”

“No reason at all, sir—only what he said when he left.”

“What was that?”

“I think Mr. Baxter was trying to persuade him to something; for, as he stood in the doorway, I heard Sir John say—‘No, Arthur; don’t say any more. It’s quite final. I will not; I can’t;’ and then I let him out and called a cab for him.”

The barrister’s face grew grave. “Had there been a quarrel?” he asked.

“No, sir. They didn’t seem to have been quarrelling. They seemed to part quite friends, but they had had a long argument. I could hear that much.”

Tempest turned away and moodily walked down the stairs. What had been the point of difference between the two men? When he got back to his chambers in Lincoln’s Inn he found a note from Inspector Parkyns.

“DEAR SIR,—In reply to your inquiry, there is no reason at all why I should not tell you. All identification marks on the revolver have been carefully filed out, and we are quite unable to trace it.—Yours respectfully, S. PARKYNS.”

Another clue had failed.

When Baxter was again brought up at Bow Street, Tempest was compelled to admit he could at present offer no explanation of the presence of the revolver in the prisoner’s rooms. Not only had he failed in this direction, but evidence was now given by the bankers of Sir John Rellingham, that since the death of Sir John a bill for £2000 had been presented for payment purporting to bear his signature as acceptor. They had never previously known Sir John to accept a bill, and his current credit balance was always

so large that it seemed strange he should have done so on this occasion. They had also grave doubt as to the signature. The bill had been presented by a well-known firm of money-lenders, whose endorsement appeared on the back. A member of the firm in question, when called to give evidence, deposed that three months previously they had had dealings with the prisoner, who, professing to be acting for a client, had taken up before maturity a bill bearing the signature of a well-known peer. They had had doubts as to the genuineness of that particular signature, but had discounted it on the strength of the name with which it was endorsed.

Tempest left his seat and went over to the dock.

“Baxter, is this true?” he asked in a low tone.

“Perfectly true. I did deal with them, but I was acting for Lord Deverell, and I did it at his request.”

“Then the papers in the office will explain that?”

“I’m afraid not. He came and called on us, and I saw him. The bill was only £500, and he brought the money in gold. He seemed very upset and anxious about it, so I went off there and then to Isaacson’s—got the bill, and Lord Deverell waited in my room whilst I was away. Consequently there was no note of any kind made about the case. He asked me not to, in fact, and he burnt the bill in my room as soon as he got it back.”

“But you’ll charge him for doing it, won’t you? It will be in your ledger or somewhere?”

“No. You see, we do all his estate business—that’s hundreds a year. So as he seemed very anxious there should be no record made of the case I let it slide. I told Marston and Moorhouse, and they quite agreed.”

“Well, we shall have to get Lord Deverell to give evidence for you.”

“He died three weeks ago.”

Tempest returned to his seat to cross-examine the money-lender.

“How did you get that bill?”

“We discounted it in the ordinary course of business.”

“For whom did you discount it?”

“It was brought to us with this letter,” and the witness produced a letter for inspection. It was handed to the magistrate, who passed it on to Tempest for inspection. To his amazement he saw that it was written on the notepaper of the firm of Rellingham, Baxter, Marston & Moorhouse—obviously in a disguised handwriting.

The note merely stated that the firm were requested by one of their clients to ask Messrs. Isaacson to discount the bill enclosed on the best terms they could, and hand the proceeds to the bearer.

“Who was the bearer?” asked counsel. The witness was unable to say. He had assumed it was one of the firm’s clerks. He had not taken any particular notice of the man.

“How did you get the other bill—the one bearing Sir John Rellingham’s signature?”

“That reached us in the same way, brought by a messenger with a note.”

“Have you got that note?”

The witness produced it. It was similar to the other, but merely asked Messrs. Isaacson to oblige the firm by discounting it, saying that on behalf of a client the firm had to find the money in the course of a few hours, to meet a heavy payment, and their client required time to realise money to meet his liability.

“Was it the same messenger who brought it?”

“I don’t know. I didn’t see the man myself.”

“Would your clerks know?”

“I hardly suppose so. They would simply receive a note, and bring it in to me in each case. There would be nothing in either instance which would give them any special reason to connect a given messenger with any particular transaction. They would know nothing of the transaction or from whom the messenger came.”

“Would there be no entry they would make in your books? Wouldn’t they be aware of the transaction in that way?”

“I always keep my own books.”

“How did you pay these bills?”

“In bank notes.”

“Did you keep the numbers?”

“Yes;” and the witness handed them in.

“Have the notes been traced?” asked the magistrate.

“Yes, sir. I’m going to call evidence,” replied the prosecuting solicitor.

A bank clerk next proved the opening of an account by a Mr. Everard Clarke, who had given references. They had communicated with the references given, and had received satisfactory replies. All the notes had been paid in by Mr. Clarke. In each case the bulk of the money had been withdrawn in gold shortly afterwards, but not all in one sum. The account was now practically closed. Their own charges would more than absorb the small remaining balance. They had since tried to trace Mr. Clarke, but the address he had given had proved fictitious, and the same with his references—these, it was now found, having been written from accommodation addresses.

“Could he recognise Mr. Clarke?”

“He was afraid not. He believed the gentleman only came to the bank once—when he opened the account.”

“Was it the prisoner?”

“I really couldn’t say. I don’t recognise him.”

The barrister sat down in despair, and the prisoner was again remanded. The two men had an interview in the cells immediately afterwards.

“Tempest,” immediately began the solicitor, “those letters are absolute forgeries. There isn’t one of us would have dreamed of doing such a thing. If Lord Deverell had wanted £500 he could have had that much, or £5000, for the mere asking, and we should have paid it out of our current account. We are constantly financing our clients, and we keep a big floating balance for the purpose. Besides, we should never have sent any client to Isaacson’s, and as for sending for £2000 for ourselves, it is ridiculous. Fancy a firm of our standing touching such a crowd or that kind of business!”

“How could they get your notepaper?”

“Easily enough. They could get a heading engraved like ours for a few shillings, if they could find a man they’d trust to do it.”

“Baxter, what did Sir John go to your rooms about the day before he was murdered?”

“Who told you that?”

“Bailey did.”

“Oh, it was simple enough,” the solicitor answered, speaking very slowly. “He—he just came in for a smoke and a chat.”

“Baxter, that’s a lie, and you know it. What was it that he refused to do?”

The other man flushed a dusky crimson. “I’d asked him,” he stammered, “to help me to float a little syndicate I was interested in. He said solicitors ought not to gamble, and so he declined to have anything to do with it.”

From his half-closed eyes Tempest watched the other as he had invented the story. He felt certain the tale was perfectly untrue, and that the solicitor was hiding something. What was that something?

Thinking it all out quietly afterwards, Tempest came to the conclusion that, whether Baxter were innocent or guilty, probably the interview with Sir John had no relation to his murder. Presuming that it had, the motive for the crime was the desire to profit financially by Sir John’s death. The only financial matter that could possibly be on the tapis, and be in issue between Baxter and Sir John, involved the supposition that Baxter had forged Sir John’s signature and that Sir John had found this out. Because the Deverell bill had been taken up and settled, that matter was closed. But the two had parted on quite friendly terms, an impossible supposition if the one had discovered that the other had forged his name. There might be—as there probably were—many private matters which Sir John and his partner could have been discussing which had no relation to the crime. But supposing Baxter’s story were true as regards his interview with Lord Deverell, then there was fraud regarding the inception of the matter in the forgery of the letter on the strength of which the bill had been discounted.

Assuming that fraud, how had Lord Deverell ever got to know of the existence of the bill? Isaacson’s had admitted they did not communicate

with him. And why had he wished to take up the bill? His desire to do so was an admission of the signature. Yet why, if that were so, had Lord Deverell troubled to forge a letter from his own solicitors? His own name was on the bill, so there could be no question of an attempt to cover up his identity of his participation in the matter. His interest in it being admitted, it would have been simple enough for him to get it discounted by his own bank, or even by Isaacson's, who would have jumped at the chance of temporarily obliging a person of his financial stability, even supposing it to be necessary for him to draw a bill at all. There were all these improbabilities in the way of accepting Baxter's own story. On the other hand, the prosecution alleged that Baxter had himself forged the bill, and written the letter bearing his firm's name, and then had himself taken the bill up to prevent its presentation. Against that supposition there was only the character of Arthur Baxter. And if Baxter would forge one bill he would forge another. He would know the signatures of both Lord Deverell and Sir John.

But then—and the thought flashed across Tempest's brain—so would any of the clerks in the office. They could get at the key of the office. It was by no means unlikely that one of them might have had access to Baxter's rooms. Picking up the telephone, he at once rang up the Exchange and asked to be put on the number which he knew was that of the solicitor's flat.

"That you Bailey?—I'm Mr. Tempest. Have any of the clerks from the firm's offices ever been down to Mr. Baxter's in his absence?—Just ask your wife then.—Yes?—Which of them—Smith, do you say?—When did he come?—Can she fix the day?—What excuse did he give?—Was he allowed to go in?—Oh no, I don't blame her—of course she knew who Smith was.—Tell her not to say anything."

Tempest put down the receiver, and sat at his table, puzzled and worried to distraction. Should he have Smith arrested? To all intents and purposes, the evidence against Baxter and Smith was practically the same. If the revolver was found in the suit-case of the former, the latter had had an opportunity of putting it there, and, to all intents and purposes, was the only person who, as far as he could see, had had such an opportunity.

But he felt certain that no jury would convict Smith, and release Baxter, on the evidence as it stood. Smith had had a perfect alibi at the inquest. He had

been at home all the evening. Both his father and his brother had given evidence of it, and other evidence was offered, as a party had been taking place at their house that night. Still, they had Smith's admission that, save Sir John, he was the last to leave, and he might have shot Sir John before he left. If Smith were guilty, he would have to be convicted out of his own mouth, and Tempest believed this would be easier to do, when cross-examining him as a witness, than if he were a prisoner. One can go to greater lengths with a witness than one can in cross-examining a prisoner. Decency compels a prisoner to be given fair play, and a judge would take good care he had it. Picking up a pen, Tempest wrote a note to the inspector:

"DEAR PARKYNS,—I take it you will have to call Smith (Sir John Rellingham's confidential clerk) as a witness when Mr. Baxter is tried. I very particularly wish to cross-examine him. I don't want to arouse his suspicions by doing it before the magistrate, and I don't want you to put him on his guard by any obvious attentions. But I wish you would pass the word along that care must be taken that he doesn't slip through our fingers. I shouldn't be surprised at this, if he thought it likely he would be asked certain questions which I intend to put to him. Could you also make an opportunity of taking that bank clerk to the firm's offices, and let him see Smith, on the chance of his recognising him as Everard Clarke? If you'll ask for Mr. Marston, I'll arrange with him that Smith shall be called in on some excuse whilst you are there.—Yours faithfully, ASHLEY TEMPEST."

A few days later came the reply:

"DEAR SIR,—I did as you requested, but Jenks (the bank clerk) evidently did *not* recognise Smith. I also took Isaacson's clerk there the next day. He was certain he had never seen Smith before. I will have Smith watched, as you suggest.—Yours respectfully, S. PARKYNS.

"P. S.—At Bow Street to-morrow we are calling evidence as to the state of Mr. Baxter's banking account. He had only a very small balance—far less than one would expect—but he had a

balance. I cannot find, however, that he was in debt, and I hear he spends a lot of money in buying pictures, etc.”

“Yardley,” said Parkyns the following day, when the prisoner had been again remanded, “do you think Mr. Tempest knows young Deverell—the young brother of the new Lord?”

“Why?”

“Because there’s one line I’m puzzled to think why your lot don’t try to follow up.”

“What’s that?”

“Well, I don’t know that it’s any particular business of mine to help you with the defence, but it seems so obvious to me. Young Deverell’s a rank bad lot. Oh, I know he hasn’t lost caste, or anything of that kind,” added the inspector, as Yardley attempted to interrupt; “but all the same he’s a bad lot. We’ve had a good many inquiries about him at the Yard over one thing and another, and I know he is hard up. It may not mean anything, and nothing has ever been brought home to him, but he has been mixed up in several fishy transactions that never came into court. You see, Deverell would know who his father’s solicitors were. I know myself he has borrowed money from Isaacson’s. Suppose he forged his father’s name to that bill; and then suppose he got frightened and told his father? The old man, at any rate if it were the first time, might very well try to hush it up according to the evidence Isaacson gave, and there’s no doubt whatever that young Deverell left England between that time and his father’s death. He wasn’t mentioned in Lord Deverell’s will, at least not in the newspaper note of it. I haven’t bothered to see the will itself.”

“But that doesn’t account for the Rellingham bill, Parkyns?”

“No, I quite admit that; and, of course, Mr. Tempest may know a lot of other details that upset what I’ve told you. But just ask him if he knew young Deverell.”

Yardley passed on his conversation with Parkyns to Tempest at the earliest opportunity.

“No,” the barrister at once said. “I know nothing about Deverell. What you tell me is most important;” and once again Tempest’s wits were started in a

new direction. That such a person as young Deverell existed he did know, but of his character he was entirely ignorant. The man belonged to a younger generation, and the two had never happened to meet.

The hint of Parkyns opened up a new position. Deverell might have forged the one bill. Whoever did had had access to or had copied the firm's notepaper. Having successfully discounted one bill it was quite likely a second attempt might be made; and Sir John Rellingham, likely enough, would write personal letters to Lord Deverell, from which his writing and signature could be copied. But Tempest could not think out that supposition any further: nor could he fit it in any way with the discovery of the revolver in Baxter's suit-case. Involuntarily his suspicions harked back to Smith, and the barrister turned his mind to the possibility of breaking up the alibi which Smith put forward. The alibi given at the coroner's inquest had certainly never been subjected to cross-examination. Such was the point at which matters stood when an entirely new development occurred. Marston came round to Tempest's chambers, and, their greeting over, placed a gold watch and chain on the table. "Tempest, this was Sir John's," he said.

"Well, how can they help?" said the barrister, picking them up.

"Open the back. I only saw that the back opened yesterday. It's a keyless watch; and though I bought it at the sale of Sir John's things I never thought of opening it till yesterday." Tempest opened the watch, and almost jumped from his seat in his astonishment.

"Look there!" he almost shouted, as he pointed to the miniature hanging on the wall, and then held out, for the other man to compare with it, the portrait inside the case. The two faces were identical.

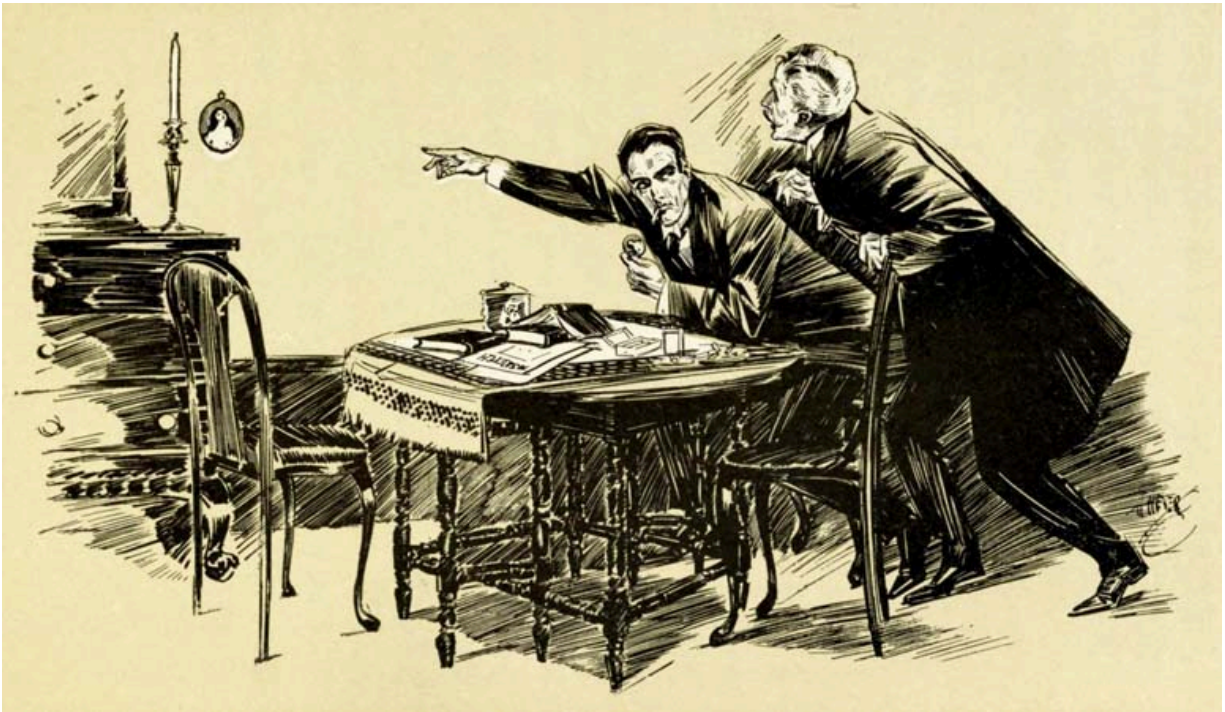
"Who is it, Tempest?"

"That miniature is Dolores Alvarez, who died twenty years ago, and it's the living image of Evangeline Stableford, who was murdered the other day."

"Then, which of the two did Sir John know? Whose portrait was he carrying?"

"You can soon settle that. If it be the younger woman, then this miniature of Sir John's must have been painted within the last three or four years. Otherwise it could not be a full-grown woman, but would be a picture of a young girl. If the miniature was fitted in by the firm who made the watch,

then it's the portrait of Dolores. I've been confident all along—at any rate of late—that the mystery of Sir John's death and the mystery of Evangeline Stableford's death was one and the same mystery. This likeness between the three can't be pure coincidence. Marston, Yardley will tell you that weeks ago I came to the conclusion that Evangeline was Sir John's daughter, and this portrait in Sir John's watch is probably that of Evangeline's mother."



“‘Look there!’ he almost shouted, as he pointed to the miniature”

“Then do you think that Evangeline was the daughter of Dolores Alvarez?”

The barrister lighted a cigarette, and dropped into his habit of pacing up and down his room. At last Marston broke the silence by repeating the question.

“Marston, everything points to that—if there is anything in deductive reasoning when applied to the solution of this kind of problem—it would seem that that is the certain fact. Over and over again I come back to it. Argue it out, reason it out by any chain of reasoning, by any sequence of argument you like to adopt, you must come back, as I always do, to that conclusion. It seems as certain to me as the mathematical answer to a problem in algebra. There is no other conclusion. It's the logical solution of every argument, but it's wrong somewhere, for it doesn't happen to be right.”

“Why not? Why’s it wrong?”

“Simply because Dolores never had a child. The doctors who made the post-mortem are positive about that. It’s a matter that can’t admit of any doubt. It’s a fact that cannot be questioned. Dolores never had a child. So our reasoning is at fault, though I can’t see where.”

“Had she a sister?”

“Only Lady Madeley. Yardley has made inquiries that settle that.”

“Then could Evangeline have been a child of Lady Madeley—unacknowledged, of course?”

“No, that can’t be true either.”

“Why not?”

“Evangeline is left at Lady Stableford’s House on a certain date—within ten days of the date of the marriage of Lord and Lady Madeley. The child that was left was less than ten days old. That much the doctors can swear to. I’ve seen the case book of the man Lady Stableford called in. The child must have been born within a margin of two days on either side of the date of the wedding. Lord Madeley dined with his fiancée at the Langham Hotel the night before the wedding. Obviously a woman could not have been dining out within twenty-four hours of having had a child. The day before that she came to town from Cornwall. After the wedding they went to Paris. The child could not have been born on the wedding day. The day after they dined at the Embassy in Paris. The next day they went on further south. No, Lady Madeley could not have given birth to a child at that time.

“Besides, Marston, the hundred years in the secret trust was to run from 18th August, 1881. That was the date of the wedding day, and that was stated to be the date of the birth of the child originally offered to Lady Stableford, and in all probability that was the child she did adopt. The secret trust was for the benefit of Evangeline, of that I am certain. By the way, I suppose your firm aren’t Lady Stableford’s solicitors by any chance?”

“As it happens we are—or at any rate were. We still have a lot of her papers. She was one of Sir John’s old original clients. Sir John acted for her when she was negotiating for the adoption of that child which you say is Evangeline.”

“Did you make her will?”

“Sir John did.”

“Why didn’t you tell me that?”

“How was I to know there was any connection?”

“What’s the date of Sir John’s will?”

“September, 1900.”

“When did Lady Stableford make her will?”

“Oh, I can’t tell you off-hand. I’ll send you word.”

“No, I’ll come round now.”

Together the two men went to the offices of Messrs. Rellingham, Baxter, Marston & Moorhouse, and Marston turned up the letter-books. “Here you are, Tempest. Lady Stableford must have written, because here, you see, Sir John writes, suggesting Lady Stableford should reconsider her suggestion, and pointing out that going on the stage is not necessarily an abandonment of all morality. Then here’s the next letter in which he sends the will for execution, and again refers to the injustice of leaving the girl penniless, after having brought her up to regard herself as heir. That’s the end of July, 1900.”

“And then Sir John, evidently knowing that Evangeline was cut off with a shilling, I suppose by Lady Stableford, a month or more later creates this secret trust. The thing is self-evident.”

“That may be so, Tempest; but some six months before Sir John died, Lady Stableford and Evangeline were reconciled, and the old lady made another will, by which the girl would have got nearly everything. I remember that will, for I drafted it. Now, Sir John never altered his will or cancelled the secret trust which then became unnecessary, if your theory were right.”

“Oh, that doesn’t matter. He very likely thought it quite probable Lady Stableford might possibly change her mind again.”

“Well, granted it’s all as you say—granted Evangeline was Sir John’s daughter, what’s it all come to?”

“Nothing as yet, Marston; but who was the girl’s mother? Who was or is Lady Rellingham?”

“Did he marry the mother?”

“Quite likely. Let’s look it up. It must be before August, 1881. Come along down to Somerset House.”

Together the two men made the search, and found that early in 1880 John Rellingham, solicitor, had married Sarah Jane Manuel, daughter of Pedro Manuel of Dublin, hairdresser. His second marriage to Georgiana Drury, as they knew, had not taken place until 1890.

“That’s put the stopper on any Alvarez business, Tempest, at any rate.”

“It looks like it certainly.”

Tempest paid for another search ticket, and turned up the marriage of Lord Madeley. Lady Madeley had been married in the name of Eulalie Alvarez.

“I think we must put Yardley on to an investigation of Pedro Manuel and his family. That is obviously the thing to do.” “What earthly chance is there of his finding out anything?”

“Precious little, I’m afraid,” said the barrister. “But there’s one thing we might do, Marston. Bring that trust into court again, and paragraph it as an approaching case, and see if we can tempt the lady to turn up again.”

“I wonder if she would?”

“She might do; for, of course, she can’t have the slightest suspicion that we have guessed she has some connection with the case.”

“How will you bring it on, Tempest? There isn’t much time.”

“Give notice of a motion for Friday next, and put up somebody, and I’ll have enough of a wrangle with him in court to get it into the papers, and then we’ll ask his lordship to adjourn it for a week, on the chance of a mutual settlement. It must be well reported, and I daresay that can be arranged. Very likely the lady will turn up on the following Friday.”

“But can you get the trial of Baxter postponed till afterwards?”

“Yes. I’ll put up some sort of defence, and address the magistrate at great length, and then get another remand. That will throw us over the coming

sessions of the Central Criminal Court. There aren't any sessions in August, so we will have over five weeks. We ought to know where we stand then."

In due course affidavits were lodged; and Tempest moved on behalf of Marston, for an appointment of a receiver of the trust funds pending the decision of the court on an issue shortly to be raised as to a division of the trust funds between the surviving partners of the late Sir John Rellingham. Other counsel had been briefed for Baxter and for Moorhouse, and for three-quarters of an hour the three men wrangled before the judge. Hints of sensational disclosures, veiled comment, and flat contradiction, all did their work.

"Mr. Tempest," said the judge, "I'm very much in the dark. Cannot you indicate in some way the nature of this trust? I'm not suggesting you should disclose anything obviously intended to be kept secret; but why was the trust created? Was it to benefit a person or persons, or was it to carry out a purpose? Obviously, under the terms of the will, and by the decree of this court, the money now belongs to the surviving partners of the firm. Why not divide it? Does a purpose still exist to which the partners desire to apply it?"

"Strange as it may appear, my lord, I can only ask your lordship to accept my word that the partners have not and have never had the remotest idea of what object was in the mind of Sir John Rellingham when he created the trust."

"Surely that cannot be so. The will says, 'to be applied by them to and for the purposes which I have sufficiently indicated to them.' You see Sir John says he has indicated. It's the past tense."

"Quite so, my lord. The instructions were in a sealed packet. This packet was not to be opened until certain eventualities occurred; and there were certain stringent instructions left with it that the moment litigation began the packet was to be destroyed. Your lordship will remember the Crown did begin litigation, and consequently the papers were destroyed. It seems to me, my lord, that Sir John's first idea, overriding everything else, was to preserve the secrecy he enjoined upon the trustees he appointed; and rather than that that secrecy should be waived, he preferred that the object of the trust should suffer and his partners benefit. His partners have loyally adhered to his wishes, and the money is theirs. They claim it, and they

repudiate any claim to it by anybody else; but, nevertheless, they feel that the past action of the Crown could not have been anticipated by Sir John, and they are disinclined at present to dissipate what were originally trust funds. There has been no quarrel, but at the same time they differ amongst themselves as to the course which should now be pursued. May I put it that they are in a friendly state of doubt and uncertainty?"

The discussion went on; and finally, at the end of an hour, Tempest threw out a suggestion that perhaps, if his lordship would adjourn the case for a week, it might be possible to agree to terms which could then be submitted for the approval of the court. The judge at once consented; and in view of the newspaper interest which had previously been excited on the subject of this secret trust, all of the evening papers and most of the morning ones the next day reported the proceedings with some detail.

Nothing remained to do but to wait patiently for the week which must ensue before they could know whether or not the bait had been effective.

On the following Friday morning Tempest was early in his seat in Chancery Court No. 3. The benches were always packed on a motion day, and Tempest had no desire to take part in the jostling scrimmage for seats, which was usual on such occasions.

A belated K. C. struggled through the crowd in the doorway, his gown half torn from his back in the crush. Seeing Tempest, he turned and said:

"Look here, old man, why can't you keep your beastly sensational cases out of our way here? Just look at this menagerie of a place instead of the usual staid and sober appearance of a chancery court? It's demoralising!"

Tempest laughed. "For pity's sake, don't blame me. I didn't bring 'em."

"No, but your case has."

"Well, they'll be awfully disappointed. It's all arranged between us now."

"Silence!" called out the usher, and their conversation ended, as everybody rose, and returned the bow of Mr. Justice Barker.

"Mr. So-and-So," and the judge called on the leader in his court. Tempest turned in his seat and eagerly scanned the faces of those present in court and in the gallery. At last, right at the back of the court, he caught sight of the person for whom he was looking. Dressed in black, and heavily veiled,

he saw the same woman who had excited his curiosity on a previous occasion. He looked at Yardley wedged in the crowd near the doorway, and caught the detective's half-veiled nod which showed that he had also found his quarry. Next to Yardley was standing Craven, his assistant, a perfect sleuthhound of a tracker; and before Tempest's gaze had dropped again to his papers, he had seen Craven leave the court, to reappear in a moment at the other door, within a yard or two of the woman they wanted.

One by one the King's Council present in court were called upon; and then, after one or two of the junior bar—habitués of that particular court—had each been given his opportunity by name, came the concluding, "Any more motions behind the bar?" and Tempest rose, and in a few words said that the parties concerned had agreed to ask his lordship to appoint them jointly to be receivers, pending the trial of the issue. The judge promptly assented to the proposal, and then at once the court began to empty of the public, baulked of the anticipated revelation; but Tempest lingered, curious to see what might happen. A tedious dispute as to a right-of-way injunction followed, but the lady sat on, apparently keenly interested. Concluding it to be a ruse to mask any apparent concern with the matter just concluded, and knowing she would be safe in the care of Yardley and Craven, Tempest signed to his clerk to collect his papers, and took his way to the King's Bench side, where another case awaited him. Marston followed him into the passage.

"Well, it unearthed the lady," said the barrister.

"Yes, and I saw Yardley was there."

"So was Craven, his chief assistant. By the way, what instructions did you give him, Marston?"

"He is to find out who she is and where she lives. I wish she had raised her veil in court. I'd have liked to have seen her."

"So should I; but I never for a moment expected that. She'll be much too downy a bird. How old would you guess her to be, Marston?"

"Forty to fifty."

"Yes, that's what I put her down to be; but one really cannot tell under that veil of hers. It's only guessing from her figure and manner. She might really be anything from thirty to seventy."

Late that evening Yardley came round to Tempest's chambers.

"Well, who is she, Yardley?" was the latter's greeting.

"She's staying at the Hotel Victoria, in the name of Mrs. Seymour. I've left Craven there, and he's subsidised one of the chambermaids as well, so I don't think she'll slip through our fingers."

"Where does she come from?"

"I don't know for certain yet. She's registered as from Paris. I've arranged that one of my young women shall go to the hotel as a chambermaid tomorrow, on the chance of an opportunity of going through the lady's belongings."

Three days later Yardley again came round to see Tempest, but only to report an ignominious failure. It was evident that Mrs. Seymour had become aware that she was being watched and had made her plans accordingly.

Asking for a hansom to be called one morning, she had ostentatiously given instructions to the hall porter that she was expecting a visitor at noon, and, if she herself had not returned, the visitor was to be asked to wait. She then gave the cabby directions to go to Paquin's showrooms in Doder Street, and had driven away. Craven had been inclined to follow; but feeling certain Mrs. Seymour would return, he decided that more was to be gained by overhauling her boxes, and he at once sought his confederate, who was figuring in the hotel as a chambermaid. Together they had thoroughly and systematically searched Mrs. Seymour's room. Not a scrap of writing did they find—not the faintest clue of any sort from which they could start to establish the identity of Mrs. Seymour. Finally, they had relinquished the search in disgust, and Craven had set himself to await the lady's return. She never did return; and when Craven reported, Yardley saw at once that the whole thing had been a ruse. The cabby, when found and questioned, told them that when they reached Trafalgar Square, his fare had told him to drive to Euston. He had done so, and the lady had entered the station. The most diligent inquiry failed to produce any person who had seen and recognised or had noticed the lady at the station. None of the booking-clerks recognised her from the description which was given. Her luggage, which remained at the hotel unclaimed, contained nothing of any sufficient

value for it to be in the least likely it would ever be claimed, if Yardley were correct in his surmise that Mrs. Seymour had by some means become aware that she herself was under surveillance, and had deliberately elected to withdraw herself from observation.

The court for Crown cases reserved having decided—much to the disgust of the police—that the privilege of a solicitor prevented the execution of the search warrant and the overhauling of the papers of the firm, the trial of Arthur Baxter could no longer be delayed, and took its place in the judge's list at the ensuing sessions of the Central Criminal Court. At the first reference by the prosecution to the secret trust, Tempest successfully objected. As he pointed out, Baxter had only been advantaged by the action of the Crown, which had, with full knowledge of the consequence, itself precipitated the circumstances, which vested the money in the hands of the surviving partners. That result Baxter could neither have produced nor anticipated; but for the moment assuming he could have produced it, then the three partners were equally concerned, and must be equally guilty; but the Crown had only indicated one, though, on an indictment of the three for conspiracy, a conviction would have been more easy to procure. Finally, he said that if his lordship admitted any reference to the secret trust on the ground of motive, then he should at once call the other surviving partners to prove that no one of the three had ever even suggested the division of the trust money, even after the court had formally declared it to be the absolute property of the partners; but that they had voluntarily reconstituted the trust, or rather had themselves constituted a trust for purposes which they declined to divulge, but which advantaged themselves personally no more than had the original will. In the end the judge upheld the objection. The trial was thus narrowed down to the fact that the partners possessed keys, and could have obtained access; that Baxter had been overheard to have had a difference with Sir John, when the latter had called at his chambers the night preceding the murder; and, what was most damning, that a revolver, with its marks of identification erased, together with bullets similar to the one which had caused the death of Sir John Rellingham, had been found at Mr. Baxter's chambers secreted in a seldom used suit-case.

The case at best was a weak one; and doubtless relying upon the fact that Arthur Baxter would go into the witness-box and might convict himself under cross-examination, the ruling out of the question of the secret trust

seriously handicapped the prosecution. Tempest had frankly told Baxter he didn't believe the explanation of the quarrel which the solicitor had vouchsafed him, but Baxter declined to give any other. For that reason the barrister was surprised that only one or two formal questions relating to the quarrel were put to Bailey, the factotum of Arthur Baxter, and one of the witnesses called for the prosecution. Consequently Tempest asked Baxter no questions on the point when he put him in the witness-box. But the matter was raised and pressed in his cross-examination. Question after question he cleverly fenced with; but at last, driven into a corner, he gave a full explanation: "I have tried to keep faith with Sir John," he said; "but you won't let me. The point was simply this: Sir John called at my chambers, and asked me if I would marry his daughter. Neither I nor my partners at that time had the smallest idea that Sir John had ever been married except to his late wife, whom we all knew, or had ever had a daughter; and when I was talking to him, I didn't know whether his daughter were illegitimate or legitimate. He showed me her portrait. She was a very beautiful girl; but all I felt inclined to promise was that I was quite willing to meet her, with the idea of marriage, if we mutually liked each other, and providing all knowledge was kept from her until after marriage that she had been the subject of discussion and arrangement between us. I wanted to win the affection of the girl on my own merits, or else I would be no party to such a marriage."

"But, Mr. Baxter," had been counsel's reply, "you say Sir John was asking a favour of you, or requesting you to fall in with a proposal of his? How do you account for the fact that it was Sir John who said, 'No, Arthur; don't say any more. It's quite final. I will not'? You admit, I suppose, that he did say that?"

"Oh, yes, he said it."

"Well, then, how do you reconcile that with your story?"

"I asked him if he would acknowledge the girl openly as his daughter. He wouldn't. I tried to persuade him, and then he answered in the words you put to me."

Then came a searching cross-examination about the two bills. Baxter explained the second one by saying he was acting for the late Lord Deverell. The other bill, which had reached the money-lenders who had

discounted it, with a request written in the name of the firm, Baxter absolutely repudiated any knowledge of. He likewise disclaimed the slightest knowledge of the revolver or the bullets, and emphatically denied having himself hidden them in the suit-case.

Tempest then called clerks in the office of the firm to prove that the letter to the money-lenders was not in the handwriting of Mr. Baxter or of any of the firm's clerks, and then played his trump card. Calling an expert, he proved that the revolver was of faulty construction, and that it had never been fired, and that it would have been quite impossible for the bullet which killed Sir John Rellingham to have been fired from it.

"What would happen if the attempt had been made?"

"It would have burst."

"Why?"

"Because the barrel of the revolver is imperfectly bored, and at one point the bullet could not have passed through."

The revolver, a bullet, and a ramrod were then passed to the jury, to satisfy themselves on the point.

With this disclosure the case for the prosecution practically collapsed; and though it pursued its formal course, to its completion, there remained no further doubt that the verdict would be one of acquittal, as eventually it proved to be. Arthur Baxter left the court a free man, honourably acquitted.

When the partners and Tempest were discussing the trial that evening over the dinner which Marston gave to celebrate the result of the trial, Tempest turned to Baxter and asked:

"Why on earth wouldn't you tell me before what that discussion was that you had with Sir John?"

"Simply because he said the disclosure would be the disclosure of a secret, not of his own, but of somebody else whom he couldn't give away."

"Ah! Then I guessed right?"

"What do you mean?"

And then Tempest explained how he had argued himself into the conclusion that the secret trust had been constituted to provide for Sir John's daughter, and arranged in its curious form that the secret of a third party might be safeguarded.

"Why didn't you tell me all that, Tempest?"

"I told Marston, but I didn't see at the time how it affected you. Did Sir John tell you who his daughter was, or what the name was that she was known by?"

"No, he wouldn't tell me even that, unless I would promise blindly to marry her. As I said in court, I only promised conditionally, and Sir John said that he must refuse to tell me her name."

"Marston, show him Sir John's watch."

The solicitor took the watch from his chain and passed it across the table to his partner.

"That's the girl whose portrait he showed me, though the face is in a different position."

"No, Baxter, it isn't the same girl. The portrait in the watch is an exact duplicate of a miniature I have hanging in my chambers. Twenty years ago I had a watching brief at the inquest of Dolores Alvarez, an actress——"

"I remember the case. Verdict of suicide, wasn't it?"

"Yes, that was it. It was my first cause célèbre. I saw the dead woman, and was very much struck by her beauty. I collected all the photographs I could purchase of her, and I had a miniature painted from them. It was not exactly like any of the photographs, and I was puzzled how Sir John could have got hold of what was undoubtedly a copy of my miniature till I made inquiries. Then I found that the firm—a big firm of photographers, whom I had commissioned—had been so struck by the miniature that they had ordered a copy of it from the artist, and they had exhibited this copy as a specimen. Sir John had seen it and bought it. Consequently, Baxter, the portrait in Sir John's watch was to him a fancy portrait, which I assume he must have bought on account of its likeness to his wife—oh, yes, he was married twice. We got the certificate of his first marriage all right—for a man would hardly carry about inside his watch a definite portrait of a person in whom

he had no interest. Besides, Baxter, I can probably tell you who Sir John's daughter was. She was Evangeline Stableford—the actress—the adopted daughter of old Lady Stableford. She was the living image of Dolores Alvarez, and she was murdered a few months ago—since the death of Sir John, in fact. The curious thing is, that every detail and every circumstance of her death exactly reproduces the death of Dolores Alvarez twenty years ago.”

“Were the two women related, Tempest?”

“The likeness is so remarkable that I think they must have been; but, as a matter of actual fact, I cannot prove it. Evangeline was certainly not the daughter of Dolores. The only relative I have unearthed of Dolores is Lady Madeley; and from the date of Lady Madeley's wedding and the date of Evangeline's birth, she could not have been the child of Lady Madeley. Besides, Sir John didn't marry a Miss Alvarez. The maiden name of Lady Rellingham, for I daresay she is still alive, or Sir John wouldn't have guarded her secret so closely, was Sarah Jane Manuel.”

“But Alvarez may have been only a theatrical name?”

“That's quite possible—likely even; only, Lady Madeley is married in the name of Alvarez. There's such a widespread idea, particularly in the lower classes, that a marriage in a false name is invalid, that I hardly think it probable that Lady Madeley would have risked the validity of her marriage by going through the ceremony in any other than her real name. She may have done so, of course; but the probabilities are vastly to the contrary. Frankly, Baxter, the idea of relationship rests exclusively upon the likeness.”

“Yes, that must be so; besides, assume Dolores and Evangeline were related. What's the nearest possible relationship? You say they can't be mother and daughter. The next nearest relationship is aunt and niece, on the supposition that Lady Rellingham is an undiscovered sister of Lady Madeley and Dolores Alvarez. You must take into account that it is not an identity of parentage. Evangeline is only a daughter of a supposed sister and Sir John. You must make allowance for her descent from Sir John as well.”

“No, I don't think you need do that. Given a parent of a pronounced type—what one would call an aggressive type—that type will be reproduced and

the type of the other parent submerged altogether. Probably Evangeline exactly reproduced her mother. She had nothing of Sir John in her appearance. Here I'll show you what I mean. Waiter!"

The obsequious servant hurried forward.

"Send out and buy me a copy of this week's *Sketch*, will you?" and Tempest handed a coin to the man.

Shortly afterwards the latter reappeared with the paper for which the barrister had asked. He rapidly turned the pages. "Now this," he said, "is what I mean. Here is a portrait of the young Lady Madeley—Consuelo, Baroness Madeley in her own right, the daughter of Eulalie Alvarez."

Folding the paper he indicated the portrait to which he referred. "You see," he added, "that's awfully like Dolores. There's the same type again, submerging any likelihood of a likeness to the other parent, for old Lord Madeley was fair and fat and podgy—blue eyes, as a matter of fact. Sir John was fair, and his features were very indefinite. Evangeline's mother and Lady Madeley, even if there were no relationship, were of the same physiological type, and that an aggressive one, and you see the type reproduces itself. I'm almost beginning to think it must be merely type and domination of type, and that alone, with no question of consanguinity. Besides, when all's said and done, it's a foreign type."

"But what does that matter?"

"What I mean is this: Just as all niggers look alike to an Englishman, and just as we find it hard to distinguish one Chinaman from another, so a strange type to us overrides in our observations the little differences by which in our own type we distinguish one another and recognise each other. Therefore, may not this type—Spanish, I suppose it must be, from the name Alvarez—override, in our observation (from the fact that it is foreign and unusual), the little niceties of difference by which those who belonged to the type would themselves differentiate?"

"Then, do you mean that these people may not really be so alike as we think they are?"

"That's precisely what I do mean. Here we have apparently Eulalie Lady Madeley, and Dolores Alvarez, and Consuelo Lady Madeley, whom we know to be related, all very much alike. We have Lady Rellingham and

another girl, Evangeline Stableford, and yet another, Sir John's daughter, if they are not one and the same, though I am sure they are. We are trying to presume an Alvarez relationship for Evangeline, solely on account of her remarkable likeness and the presumed likeness of Lady Rellingham. There is not one other single solitary reason from which relationship can be presumed; and after all, to a person familiar with the type, the likeness might not be so pronounced as to us it appears to be. To a Spaniard, for instance, it might not be sufficient to even suggest relationship. You've always got to bear that in mind. So long as the identity of Evangeline was a mystery, we had to clutch at any straw that might prove who she was, and perhaps I attached too great an importance to the likeness. It is nothing like so important now we are practically certain Evangeline was Sir John's daughter and that we know who her mother was. Besides, Lady Rellingham's name was Manuel. That name is Spanish or Portuguese, and very likely Jewish as well, which accounts for the occurrence of the type, and, as I said, the likeness may be no more than identity of type."

"Tempest," said Marston, "I'm beginning to understand your wonderful success with juries. We argued this likeness point once before, when you were putting forward a very different theory. I thoroughly accepted what you said then, but you have convinced me just as thoroughly of your new proposition."

The barrister laughed. "I'll tell you the secret of that. There are weak points in both propositions, because there is in each an unknown quantity, and one argues on the 'may' and the 'might' and the 'probable.' One can always persuade a reasonable man that a thing 'may' be so, if the proposition you offer is plausible and not self-negated. But when you lay down a proposition as not only possible but unquestionably correct, and one goes on to the words 'is' and 'must be' and 'therefore,' one needs to prove things. However, what are we going to do to-night? What do you say, Baxter? How about the Palace?"

Baxter shivered. "Don't let me stop you others, if you want to go; but I don't feel up to it. God! It's only a few hours since the noose was around my neck, and I haven't got over the horror of it yet."

The others looked at him with sympathy. They had been ready enough to forget what was over and done with.

“But I told you yesterday, Baxter, that I would get you off. Didn’t you believe I could?”

“It wasn’t you I doubted, Tempest; it was the jury. One does get such damned fools sometimes as jurymen, and there’s an awful lot of prejudice against us. That newspaper campaign was carried to ghastly lengths. Tempest, have you got any nearer in your own way to solving the mystery of either Sir John’s death or Evangeline’s death?”

“No, not an inch nearer; except that I’m pretty certain Evangeline was Sir John’s daughter. At present it’s arguing with several unknown quantities. Still, one has got a bit of a foundation now. Sir John has been proved to have married a certain Sarah Jane Manuel.”

“Then Sarah Jane Manuel was Evangeline’s mother, Q. E. D.? Go along, Tempest!”

“How do you know, Marston? I don’t feel by any means certain on the point. Look here, then, why didn’t Sir John acknowledge his wife and daughter? He told you, Baxter, that he couldn’t because that would involve the disclosure of somebody else’s secret. If she were his daughter by his wedded wife, what secret could there be about her birth? I can assure you that it looks very much as if Evangeline were his illegitimate daughter. Only, if she were, what earthly object could anyone have in murdering her? Sir John had left her nothing in his will. She was not his heir. She stood in no one’s way.”

“Why didn’t Sir John provide for her, Tempest? He was a just, honourable man, with plenty of money. He leaves the whole of his money practically to us—the three of us; and none of us had any claim on him. As a matter of fact, it was the contrary. We were all indebted to Sir John.”

“But you’ve forgotten the probability is that Sir John did provide for her by means of the secret trust. Evangeline was expected to be the heir of Lady Stableford. Here, of course, it won’t go any further. You fellows have got the old lady’s will at your office. Now, did she provide for the girl?”

“Yes. Sir John drew her will, so he knew what she had done.”

“Quite so; and if she did provide, Sir John was under no necessity to disclose the other person’s secret, which he was guarding, by providing for the girl in his own will. But Evangeline had quarrelled once with Lady

Stableford, and had been cut out of the will once before. There was always the risk of another quarrel and the same thing happening again. That was the risk for which the secret trust provides—of that I'm positive now. Yes, I think we can take that as certain;" and the barrister, lighting another of his eternal cigarettes, tilted his chair back and lapsed into silence as he thought.

The other men kept silent. Tempest was so obviously puzzling the thing out further. At last Marston broke the silence. "Granted all that, Tempest. But what on earth was the good to Evangeline of creating that trust at all, if we, the trustees, don't know when we are to call it into operation for her benefit?"

"Don't you forget your instructions. You were to wait till something happened from outside, to put you all in motion. You must assume Sir John had laid his plans for this something to be made to happen, if necessary. As he would then be dead, the making of the happening rested with some third person, probably Evangeline herself. Have you fellows forgotten the basis of a cryptogram? The key is divided into two parts, and those two parts must come together in unison before the key is apparent. You three have one part of the cryptogram in your hands contained in your instructions. It was probable Evangeline had the other part. She was probably to write to you, if through a change of Lady Stableford's will she needed the money. She is dead. She will never claim the money, and you three can spend it now with a light heart. Still, here's another thing. If Evangeline knew all, and could call that trust into operation merely by writing to you, what was to prevent her doing so, whether she needed the money or not? If Sir John left things in that state, the secret was at the mercy of Evangeline, and I don't think it was her secret. She may not have known what the secret was, nor indeed that there was one at all, but nevertheless its disclosure rested with her. There was probably a third part to the cryptogram in the hands of someone else."

"Who would that be likely to be?"

"Probably the person whose secret it was?"

"But if that were so, what would the inducement be to her to ever disclose her secret?"

“One or other of two things. Either she is to participate in the trust, or else Sir John depended on the affection of a mother to efface herself for her child in case of dire necessity. Remember, it’s only a disclosure to you three, and that’s not a very serious risk. Few people need mind that.”

“Then, why didn’t Sir John disclose it to us?”

“Firstly, his loyalty regarding the secret of another person; secondly, the risk run by putting it on paper, when very likely, in all probability, he would outlive Lady Stableford, and himself know whether or not Evangeline had been provided for; because, if in his lifetime he knew Lady Stableford had left her money to Evangeline, the trust was quite unnecessary, and Sir John would at once have destroyed his present will and made another. Now, assuming all that to be true, who stood to benefit by Evangeline’s death?”

“We three did.”

“Quite so. Consequently it was jolly lucky for Baxter the terms of the trust are not public.”

“God! Tempest. What a risk I ran!”

“You did at first, old man. But there was somebody else who would benefit. If Evangeline were illegitimate, the person whose secret was at stake might desire her death. If Evangeline were legitimate, her heir would benefit. In either case it is the mother. Now, didn’t I tell you once before—argued from a totally different standpoint—that Evangeline’s mother had murdered her?”

“But it’s such a horrible thought, Tempest, that a mother would murder her own child!”

“I know it is; but horrible or not, Marston, it’s a thing done every day. Scarcely a session at the Old Bailey goes by that some poor wretched girl or other isn’t taking her trial for it. We generally get them let off as Not Guilty, or else only guilty of concealment of birth, and then they are usually discharged. But it’s generally murder all the same. We all know it—the police know it—and the judge knows it; but there is a kind of unwritten code that in cases of infanticide the girl is to get off, if the facts can in any way be sufficiently twisted.”

“But Evangeline wasn’t an infant.”

“No; but you were objecting only on the score of maternal feeling. With an infant, the maternal feeling is often overcome; and as Evangeline’s mother got rid of her as an infant, the maternal feeling can’t have been any greater. It never had any opportunity of growing.”

“Then you think, Tempest, that if we find Evangeline’s mother, that we shall have got to the solution of the girl’s murder?”

“You’ll have got the guilty person; but assuming you do get hold of her, I don’t see how you will ever convict her or get a full solution, except by means of a confession.”

“Tempest, how about the murder of Sir John? That is what we are most concerned about.”

“Yes, I know; and it puzzles me far more than the other one. Outside you three, what earthly object could anyone have had in murdering him? Any client with a grievance has got to murder all the lot of you, either to wreak a revenge for a business grievance to alter the course of any events.”

“But, Tempest, we haven’t got such a client. We scarcely ever litigate in the ordinary sense. Chancery motions, by mutual arrangement to get orders of the court, and that kind of thing, don’t beget clients or opponents with a grievance. Our business is conveyancing and trust work and family settlements. In the whole history of the firm, we’ve never quarrelled with a client over his or her account.”

“Then you are arguing yourselves a bit closer. I’m certain of this much. Sir John had an appointment at the office that evening with someone over a matter which was not the business of the firm. If Smith’s tale be true, Smith was practically made to clear out. Therefore, Sir John himself answers the door and admits somebody. That somebody shoots him, and lets himself or herself out afterwards, taking the revolver with him. As far as I can see, that is all you are justified as taking to be provable by deduction, and you must start guessing. Now, what was the only thing we are any of us aware of that Sir John was keeping secret?”

“His secret trust.”

“Well, put it rather the secret of this other person to safeguard, which Sir John created, the secret trust?”

“What next?”

“Who were the people who knew the secret?”

“Sir John.”

“Yes, and also the person it concerned, and perhaps Evangeline Stableford, too, though I rather doubt if she knew the whole or indeed very much of it. Now, as I’ve told you, I believe it to be Evangeline’s mother whose secret is being safeguarded.”

“Then do you say it was Evangeline’s mother who murdered Sir John?”

“Oh, wait a bit! What was to prevent Sir John having arranged a meeting between the two of them there in his presence, to make arrangements about calling the trust into operation, if it were ever necessary? Let’s assume he did. Assume they met there, which of them would be the more likely to shoot him?”

“The daughter,” said Marston.

“Why do you think that?”

“She murdered him and then committed suicide.”

Tempest shook his head. “No, I think you are wrong. The mother shot Sir John in the presence of her daughter; then she murders the daughter as well, to cover up the disclosure. *Voila tout*. There you have a complete explanation—a logical explanation, and a sufficient one for both murders.”

“Tempest, I believe you’ve hit it.”

“I may have done; but it’s all pure guesswork. It won’t hang her.”

“How did she put the revolver in my suit-case?”

“God knows, old man! That I fancy will always be a mystery. When was the revolver put there?”

“I wish I knew.”

“If the woman had thought, as she probably did, she would know that you, with a man servant, would never pack for yourself. She couldn’t know which bag you used, nor could she know when you would use any particular one. If she put that revolver there any long time afterwards, she

must have guessed that the veriest fool would know that Bailey might have packed and unpacked in the interval, and could swear to the absence of the revolver on the days he packed and unpacked for you. No, she probably put it there soon after the murder—probably when Bailey’s wife was away. That was soon after the murder was committed. It’s quite likely you were watched.”

“But why should she pitch upon me?”

“Because the first person suspected of an unexplained murder is a person who would stand to profit by the death. Don’t forget she knew the broad outlines of the secret trust—probably was the only person to know them—and knew you three would benefit greatly. Any one of you three would satisfy her purpose. She simply followed the line of least resistance.”

“But you are making her out, and assuming her to be, as clever as yourself in thinking things out. It’s a wrong presumption, Tempest. I think I’d pass for a man of average intelligence any day, but I should never have thought of half the things you’ve laid down.”

“No! no! Baxter. You may be a wee bit surprised at my thinking them out—you may, even as you say, have failed to do it yourself, but the surprise to you rests on the arrival at the conclusion from apparently unknown premises. You must remember there was nothing unknown to her, whilst we are groping in the dark. She was in the full light of a complete knowledge of all the facts. I wish I knew whether the woman were Sir John’s wife, or the mother of Evangeline, or a third person altogether. She may be both wife and mother. What I advise you to do now is to search again for the birth of Evangeline under the names of Manuel and Rellingham. Search in England, Scotland, and Ireland, and France and Belgium and Holland. There’s hardly time enough for her to have been born further afield.”

“Is that all we can do?”

“Well, one step at a time isn’t a bad plan. But as it happens there is something else you can do. Look here! Assume that I am right, and that the interview with one or both of the women took place in reference to the trust. It’s a big assumption of course; but take it for granted for the moment. Why did Sir John provoke or permit that interview? Lady Stableford had altered her will, cutting out Evangeline nearly two years before; yet Sir John took

no steps. His will was certainly in existence some time before his death; but, as I explained to you, one, if not two, other people had to be let into their share of the cryptogram. If they knew before, we can hardly presume the meeting to have a reference to this point. On the other hand, why have the meeting at all, when Evangeline would come of age so soon after? The moment she came of age Sir John could have given her the money without any other explanation than that he was her father. He needn't even have told her that much. Any tale would have done, and he had plenty of money to provide for her in cash, and might just as well have done so, instead of putting the money in the trust. Why didn't he wait a few months longer? He had already waited twenty years. He wasn't an old man—only fifty-five. Why should he have anticipated his own death?"

"Goodness only knows! But go on. I can see you've got some idea. Out with it."

"Who was Sir John's doctor?"

"Old Allingham of Harley Street."

"I don't know the gentleman; but go to him, and ask him whether, at any time shortly before his death, Sir John consulted him? I expect you will find Allingham told him his heart was affected. If he did, then you have the reason why Sir John precipitated the matter. And mind you, if you do find that to be true, it's pretty good confirmation that all the rest of the supposition I put to you will hold water."

Soon afterwards the party broke off, and Tempest heard no more of the matter until ten days later, when Baxter called to show him a copy of the birth-certificate of an unnamed female child, born in Dublin on the 18th of August, 1881, and registered as the daughter of John Rellingham, solicitor, and Sarah Jane, formerly Manuel. Tempest laughed as he read the certificate through. "Isn't it funny," he said, "that when we were hunting high and low for the birth of that child, it never entered our heads to look for a daughter of Sir John? She's registered in the right name, too."

"I've seen Allingham. You were quite right in your guess. He thoroughly examined Sir John about a month before the date of the murder. It wasn't heart disease. It was cancer of the throat. He told Sir John he could count on at least three months. He strongly advised an operation, and Sir John was

very much inclined to agree; in fact it was almost arranged, but it would have been a very risky operation.”

“Then, that’s why he was making his arrangements? Didn’t he say anything to any of you three?”

“Not a word; but then he was always very reserved about himself.”

The barrister hummed a tune, and then, lighting a cigarette, fell to pacing his room, as he always did when working out his problems.

“Well, Baxter, Sir John provoked that interview, which we presume was about the secret trust, in order to make the different parts of the key to the cryptogram ready to work, in case he died before Evangeline came of age. Do you remember that letter you found copied in his private letter-book? That was an invitation to the interview. Now, knowing it was going to take place, knowing he had to provide for Evangeline’s future, he goes to see you the night before and asks you to marry the girl. Then he could have settled everything by leaving the money to you. That would have excited no comment, and probably he would have abandoned his secret trust, and no doubt he would have taken a different line at the interview. But you wouldn’t promise unconditionally to marry the girl?”

“He wanted me to marry her in a day or two’s time by special licence. I couldn’t do it. I’d never seen the girl.”

“And Sir John knew he couldn’t wait.”

“I almost wish I’d consented. I wonder if it would have altered matters?”

“That we shall never know.”

The solicitor was grave enough as he added, “Something else has happened.”

“What’s that?”

“What do you guess, Tempest?”

“How do I know, unless you’ve found the lady?”

Baxter pitched him a letter across the table. The barrister picked it up and read it.

“135 CHANCERY LANE, W. C.

“DEAR SIRs,—We are instructed by our client, Lady Rellingham, relict of Sir John Rellingham, deceased, late the senior partner in your firm, to make formal claim to the £20,000 held in trust for her, under Sir John’s will, by yourselves, his surviving partners and executors. The terms of the will are before us, and of course these do not specifically allude to Lady Rellingham by that or any other name or description; but we are enclosing a copy, and are prepared to produce, for your inspection, the original of a letter from the late Sir John Rellingham, in his own handwriting, which can leave no doubt of his intentions, and we have no doubt it will be in accord with those directions to yourself to which the will alludes. We should have ventured to express our surprise that the money should have remained in your hands so long, and that during that time no effort should have been made to fulfil the obligations of the trust, were it not that our client informs us that she has been abroad for many years past, that her marriage to Sir John has always been kept a profound secret, and that she was, until quite recently, unaware of Sir John’s death. We are prepared to produce, as and when required, proof of the marriage of Sir John to our client and of her identity. Our client has no desire to encourage any greater publicity than may be necessary in view of the terms of separation which had long existed between herself and her husband; in fact, she would prefer to maintain the silence which has hitherto been observed concerning the marriage. In this we trust you will feel disposed and able to act in unison and conformity with such expression of her wishes; and we should suppose, as he subsequently contracted a bigamous marriage, that for the sake of Sir John Rellingham’s reputation, you would yourselves prefer to do so. But, of course, the large sum at stake precludes any suggestion of less favourable terms being accepted merely to obtain an avoidance of publicity. If you require publicity, our client will not shrink from it.—We are, dear sirs, yours faithfully, CLUTCH & HOLDEM.

“To Messrs. Rellingham, Baxter, Marston & Moorhouse.”

The enclosure was as follows:—

“MY DEAR,—As a tangible evidence of my wish when you claim the money which I am leaving in trust for you to have, if you are so placed that you ever need it after I am gone, I write you this letter. You understand it, so will my partners when you produce it.—Yours most affectionately, JOHN RELLINGHAM.”

“What do you think of it, Tempest?” asked the solicitor.

“It’s precisely what I’ve been expecting.”

“Expecting! Why should you expect it?”

“When I told the judge in open court (I shouldn’t have said it, of course, if I hadn’t known of the duplicate set of papers), but when I told him that the directions for the disposal of the trust were in a sealed packet, and that that packet had been destroyed, and that you three didn’t yourselves know what were the original intentions of Sir John in creating the trust, I felt pretty confident you would have a crop of bogus claims. This is the first. I was inviting them, and I knew it.”

“But this looks genuine. They have the fact of the marriage. That is not public property, but we know it is true.”

“Quite so, Baxter; but at least three other people, the witnesses and the parson, must also have known it originally. And goodness only knows who they have since told, and very likely there are several other people as well,—the relatives of Sir John’s wife.”

“But the letter fits so well.”

“Of course it does; but in view of what the public know, anybody could have concocted that letter. It could have been made to fit. You weren’t likely to have a letter fired at you that wouldn’t fit. Now, there are these points you must bear in mind: (1) The letter may be a forgery. (2) There may be no Lady Rellingham now in existence, and this may be a simple ramp on the part of Clutch & Holdem—you know the sort of reputation that firm has? (3) They may have a client who is claiming to be Lady Rellingham, but who is nothing of the kind. (4) But even if she is Lady Rellingham, and even if the letter is genuine, it doesn’t follow that it refers to the secret trust. Then added to all that, by a decree of the court, under the terms of the will, the money now belongs to you three in fee simple.”

“But we’ve reconstituted the trust.”

“Yes, but who knows except yourselves? That didn’t come out in court. All that came out was, that you three still held the money.”

“Is that a complete answer?”

“I’m not quite sure. I work on the common law side, and I don’t want to dogmatise on a chancery point; but it seems to me at any rate arguable that if the trust is a simple trust for her benefit, claimable by her on Sir John’s death, if she were then alive, then it had already vested in her before the Treasury took action against you, and consequently the trust created by the will was at an end, and the money would be her absolute property before the court decrees it to yourselves. If it were hers I should fancy the decree could hardly divest her of her absolute property. You’ll probably have to open that packet, if the thing is pressed, for it has the semblance of being a genuine claim and one that looks *prima facie* as if it might be substantiated.”

“Do you recommend us to pay or get out the papers?”

“I wouldn’t get ’em out yet. Sir John trusted you all so implicitly that I wouldn’t get them out until the very last resort. If this is a mere bluff, you may stop it by bluffing back. Go and see the letter, and if it’s in Sir John’s handwriting, then ask for proof of the marriage and proof of identity. When those are forthcoming, if they are, simply point-blank refuse to pay, and see what happens. Say that under the judgment of the court the trust is over and the money vested in yourselves. Here, I’ll draft you the reply.”

Seating himself at his writing-table Tempest wrote as follows:—

“Messrs. CLUTCH & HOLDEM.

“DEAR SIRS,—Without attempting to discuss the merits of the claim, if any, which your client may conceive herself to possess, we would refer you to the terms of the will of Sir John Rellingham, of which you appear to have ample knowledge. We would remind you that the Crown commenced legal proceedings against us, to compel a disclosure of the terms of the trust; that we resisted this; and that the court decreed that under the expressed terms of Sir John’s will the capital funds had vested in

us as our absolute property.—Yours faithfully, RELLINGHAM,
BAXTER, MARSTON & MOORHOUSE.”

The solicitor read the draft.

“I don’t like it, Tempest. All three of us are ready and anxious to pay over the money, if this be really Sir John’s intention.”

“Of course I know that; but the odds are so heavy that this is a bogus claim that you are bound to fight it.”

By return of post came the following reply, which Baxter took round to his chambers for Tempest to see:—

“DEAR SIRS,—We are surprised at the tone and contents of your letter. We had not overlooked the facts you allude to, but we are advised by counsel that the trust moneys had already become vested in our client before the Crown took action, and that therefore the decree is of no weight. We shall be glad if you will give the matter further consideration, as we do not wish to resort to litigation unnecessarily.—Yours faithfully, CLUTCH & HOLDEM.”

“This seems to be getting interesting,” said Tempest as he read the letter.

“Now write to them, and ask them to produce, for your inspection, the original of the letter written by Sir John and the certificate of the marriage. You should also ask them how they propose to prove the identity of their client with the lady who married Sir John? Let me know what they say.”

The letter was duly written; and Tempest learned afterwards from Baxter that there could be no doubt whatever that the letter had been written by Sir John. “It’s on the firm’s paper. It’s all in his own handwriting. It couldn’t have been forged so perfectly. You see, it isn’t just the question of a signature.”

“Very well, then, I take it that Sir John wrote it. Did you ask to see the envelope.”

“Yes; and I was told it was given personally to Lady Rellingham by Sir John, and was never put into an envelope.”

“Oh, that’s important; as the admission, if it were true, would prove she had seen Sir John since or at the date of the making of the will. Anything else?”

“Yes, it was written in the new copying-ink. I told you about that once before, so it must have been written within a week or so before he died.”

“Had the letter been copied?”

“Yes, press-copied. That was evident.”

“Can you find the copy in Sir John’s private book?”

“No, I’ve looked carefully. It isn’t there.”

“Are there any pages torn out?”

“No, I’ve gone carefully through the pages. There are no numbers missing.”

“Then I’ll tell you where the press-copy is—it’s in the sealed packet. There were probably two copies taken. Baxter, that letter was never written to Lady Rellingham.”

“Why not?”

“It’s written in terms of genuine affection. If Sir John had been on such terms with his wife, he would not have been separated from her so completely that not one of you three had ever heard of her existence. Why, Sir John couldn’t have known she were still alive, or he wouldn’t have married a second time.”

“Then who was it written to?”

“Evangeline Stableford.”

“Then how did it come into Lady Rellingham’s hands?”

“Assuming there is a person posing as Lady Rellingham, you get a motive which may account for the fact that Evangeline was murdered. I’m not sure at present that it was the actual motive. There may, perhaps, have been another, but the letter was stolen at the time of her death. You know I’ve always said she was murdered by that woman who was staying in the hotel in the name of Mrs. Garnett. Mrs. Garnett is the woman who is now posing as Lady Rellingham. She is the woman who was in the court on those two occasions—the woman Yardley tracked to the Hotel Victoria, where she was staying as Mrs. Seymour. Now, mark you! the letter is not used on Sir

John's death. It is not used until I have declared, in open court, that the directions for disposing of the trust have been destroyed. Clutch & Holdem have probably got as their client that woman Mrs. Garnett, but it doesn't absolutely follow she is identical with Lady Rellingham. Still, I think she must be. You see, Evangeline was the legitimate daughter of Sir John. I've felt fairly certain all along that Mrs. Garnett was Evangeline's mother."

"Well, what had we better do? I'm here for professional advice, Tempest."

"Oh! you must decline to pay. Say you will accept service of a writ, as you prefer to submit the matter to the arbitrament of the court. I'll keep your name straight before the court. Nobody shall go away with the impression that you were declining to pay simply so that you could stick to the money. You see, Baxter, they must produce their client in court. They can't get out of doing it. The only documents they can cite are the will and this letter. As the two stand together they don't prove their case. They must obviously explain the letter by the evidence of their client. You must have the papers in court, in case the jury seem inclined to believe the woman. We'll open the packet there, if necessary. This letter from Sir John is obviously the eventuality he created and ample justification for your opening the packet; but, as I am pretty sure it has got into the wrong hands, we won't meddle with the secret until it becomes unavoidable, and then we'll cross-examine this Lady Rellingham."

"Can we keep the papers secret until then? Surely Clutch & Holdem will get discovery?"

"How can they? They can't get a general fishing order. They can only get discovery of documents they can specify."

"But they'll require an affidavit of documents?"

"I suppose they will. Put into the affidavit the sealed packet you had, and say that it was destroyed. They know that much. They will never dream of there being a duplicate set of papers. Why, this action is only brought because they know the papers have been destroyed. Besides, the set which are now at the safe deposit place have never been reduced into custody yet. I tell you what. Don't swear an affidavit of documents at all. Don't wait till you are asked for one, but treat it as all in the day's march; and, before they ask, send them an informal list of your documents. Send it with a kind of

put-off letter, saying you don't wish to inconvenience them, so send them at once a list of the documents, and say that a thorough search is being made amongst the office papers for additional papers, if any; and consequently, with their consent, you will postpone swearing a formal affidavit till the last moment. Then forget all about it. They'll probably never tumble to what your game is. They've very likely got one or two documents themselves which they would rather keep up their sleeve at the moment, so, if you don't worry them for their affidavit, very likely they won't bother you. They think they know you have nothing of the least importance."

In due course the case came on for hearing in one of the chancery courts. Barnett, K. C., and Mr. Hayford were for Lady Rellingham; Tempest was alone, as usual, for the surviving partners in the firm of Rellingham, Baxter, Marston & Moorhouse.

In an easy tone the well-known K. C. opened the case. He dwelt at some length on the strange circumstances of the death of Sir John Rellingham, described how he had been found murdered, and mentioned the newspaper agitation which had resulted first in the action taken by the Crown against the partners to compel disclosure of the terms of the trust, which action had resulted in the court decreeing the capital moneys to be the property of the surviving partners in their own right. "We now know," said Mr. Barnett, "that in defiance of the injunction of the court, certainly an order obtained *ex parte*, but a valid injunction nevertheless, the partners and executors of Sir John took it upon themselves to destroy the sealed packet containing Sir John's instructions as to the conduct and disposal of the trust."

"How do you know that, Mr. Barnett?"

"My lord," answered the K. C., "my learned friend who is against me in this case made a statement to that effect a few weeks ago, when acting for one of the partners in a motion in one of the other courts concerning the distribution of the money. I presume he will not contradict his previous statement?"

"Oh, dear no!" said Tempest, without rising from his seat. "If my learned friend's client hadn't known the papers had been destroyed, she wouldn't have dared to bring this action."

“I can only say,” continued the K. C., “that this is a most improper observation to have made, and I am surprised at my learned friend allowing such a scandalous suggestion to have been put into his mouth.”

“Mr. Barnett,” said the judge with a smile, “we hear many scandalous suggestions of that kind in this court. I should have thought that, with your experience of them, you would hardly allowed your imperturbable equanimity to be ruffled by what Mr. Tempest said. He has still to prove it, you know.”

“Quite so, my lord;” and then the K. C. passed to another result of the newspaper agitation which had been “the cause of the arrest and trial of Mr. Baxter, one of the defendants in the present case, for the murder of his partner, the late Sir John Rellingham. I know your lordship will permit me to dissociate myself and my client from any possible accusation of repeating any such suggestion here. Rather, if I may, would I tender to Mr. Baxter congratulations on behalf of our mutual profession at the happy issue of those proceedings, and I would congratulate my learned friend as well, for he was closely concerned in that issue.”

“Mr. Barnett, aren’t you rather on the horns of a dilemma? If you congratulate Mr. Tempest too much, you’ll be making the very suggestion you repudiate.”

A smile went round the court, and, as the ushers called for “silence,” the learned counsel resumed his speech.

“The delay in bringing this action, my lord, or rather the delay in making the claim which has resulted in this action, was not due to the reason suggested in the innuendo of my learned friend, but simply to the fact that Lady Rellingham was absent from England, and was not aware of the death of Sir John. I cannot ignore the unhappy fact, my lord—it is bound to come out in these proceedings; but Sir John and Lady Rellingham separated within a few months of their marriage, and since that separation never again cohabited with each other, and I understand never again met each other. So complete was this separation, that it came as a great surprise to all of us, including those of us who had known the late Sir John Rellingham intimately, to be informed that he had ever been married before his marriage to the late Lady Rellingham, whom we all knew. My client will go into the box, my lord, and will give the court the short history of her brief married

life. I shall put in the certificate of the marriage. None of the witnesses are now alive. It was a marriage in a London city church; and the two witnesses, the verger and a cleaner, were then both old, and they and the clergyman who performed the ceremony are all dead. But I shall call before your lordship the mother of the plaintiff, who will identify her daughter. She was aware of her marriage; and there cannot therefore be any objection, successfully upheld, that my client, Lady Rellingham, is any other person than the lady who went through the ceremony of marriage with Sir John. The real difficulty I have to face, my lord, is that the terms of Sir John's will are so strange. Not only does he create a secret trust, but he attached to it this curious clause:

“And I further direct that if at any time this trust or the capital moneys of this trust shall be or shall become the subject matter of litigation through the interference or intervention of any party or parties other than my said partners, or the survivor or survivors of them, then and forthwith, and from the commencement of such litigation, the said trust shall cease and determine, and the capital sums of the said trust shall be distributed and applied in the form and manner next above provided.”

“What was that form and manner, Mr. Barnett?”

“Your lordship has a copy of the will before you. The previous clause directs the distribution of the money amongst the partners for their own benefit in a certain eventually.”

“Oh, yes, I see.”

“Now, the surviving partners of the late Sir John profess ignorance of the original purposes of the trust. They assert that their instructions were sealed in a packet which was only to be opened in a certain eventuality; and they say, also, that those instructions directed them, in the event of litigation, to destroy the parcel unopened.

“The Crown commenced litigation. The parcel was destroyed. But the result of that litigation was that, under the clause in Sir John's will, which I have just read to your lordship, the court decrees the trust funds to have vested in the three surviving partners in their own right. But if the trustees and executors are really in the entire ignorance they suggest, we are not. Not only was Lady Rellingham aware of the purposes of the trust, but what we

believe are the actual terms of the instructions concerning it were within her knowledge. Amongst certain papers of Sir John's, which were in her possession, is a paper containing these words:—

“‘Upon trust, to be settled tightly for her exclusive use and benefit, without power of alienation or anticipation in the names of suitable trustees, the new trust deed to be executed immediately after my death, and to contain a clause cancelling the trust created by my will.’

“That paper was given to Lady Rellingham at the same time as the letter which I shall presently read to your lordship and which she was to show to the trustees and executors. Now, my lord, if, as I submit, we have a right to assume those were either the actual words or an epitome of the instructions Sir John left to his executors, then I submit to your lordship that it was their duty to at once transfer this money, and themselves create this trust in favour of Lady Rellingham. I submit it had vested in her as the beneficiary, and, as a new trust, was not subject to the clause by which litigation transferred it to the surviving partners. Alternatively, my lord, I shall submit, that if the old trust still existed, and the money therefore under the terms of the will was still subject to the forfeiture clause, and was accordingly forfeited, then the trustees were guilty of negligence in not having constituted the new trust, and through their negligence Lady Rellingham has found the provision made for her forfeited through causes over which she had no control, and for which negligence she is entitled to damages. Her statement of claim, my lord, as you will see, alleges the further negligence that the forfeiture was consequent upon the refusal of the partners to disclose the terms of the trust, and that they were not justified in that refusal, but, on the other hand, deliberately provoked the litigation which resulted in the forfeiture. Before calling my client, my lord, I propose to proceed chronologically by first proving the marriage.”

Formal proof of the marriage and the certificate was given, and then Mr. Barnett called “Esther Manuel.”

An old woman, dressed plainly but inexpensively, came forward, and was sworn. She gave her name and her residence in Nassau Street, Dublin, and said that she was the widow of Pedro Manuel.

“Who was Pedro Manuel?”

“He was a hairdresser.”

“Where did he carry on business?”

“In Dublin.”

“When did he die?”

“Eight years after my marriage, in 1865.”

“How many children had you?”

“Two daughters.”

“When were they born?”

“Sarah Jane was born in 1858 and Dorothy in 1860.”

“What has become of Dorothy?”

“She died about twenty years ago. I don’t know the exact date.”

“Where did she die?”

“In London.”

“Now, your elder daughter. Do you see her in court?”

“Yes—that lady;” and the old woman pointed to the plaintiff, who was seated at the solicitor’s table.

“Will you raise your veil, please, Lady Rellingham?” said the judge. “Now,” he added, turning to the witness, “is that your daughter Sarah Jane?”

“Yes. I’m positive. I should know her anywhere.”

As Lady Rellingham raised her veil for a moment, Tempest saw her face and started in amazement. An older woman certainly, but nevertheless the likeness to Evangeline Stableford was startling in the extreme. There could be no doubt of the relationship of those two.

Tempest rose to cross-examine. “When did your daughters leave home?”

“Oh, many a year ago! I couldn’t tell you the date.”

“How old were they?”

“I think Sarah Jane was seventeen or eighteen, and Dorothy was two years younger.”

“Why did they leave home? Was there any quarrel?”

“Oh, no, sir. They left home to go into service. I found it very hard to support them, and they had good situations offered to them.”

“What were the situations?”

“They went to some dressmaker’s shop here in London. I forget the name.”

“When was the next time you saw them?”

“I never saw Dorothy again. She died.”

“Did they write to you?”

“Sometimes; but not often. I’m not much of a scholar myself, and I couldn’t write back, so I suppose they got tired of writing.”

“When did you next see your daughter Sarah Jane?”

The witness hesitated, but the question was pressed, and finally came the answer, “Yesterday.”

“Then, from the day they left home until yesterday, an interval of between twenty and thirty years, you have never set eyes on your daughter?”

“No, sir.”

“And yet you are positive she is your daughter?”

“Quite sure, sir.”

“Did you know of her marriage?”

“Yes.”

“When did you hear of it?”

“I can’t say exactly. She wrote and told me she had married a rich man, and since then she’s always allowed me ten shillings a week, and with the little bit of money I had that made me very comfortable.”

“Did you know whom she married?”

“No. I didn’t know the name.”

“How did you address your letters to her when you wrote?”

“I used to write them to Miss Manuel. She told me to.”

“What address did you send them to?”

“I always sent them to her at an address she gave me.” The old lady mentioned the address, but it told Tempest nothing. He guessed it to be an accommodation address—a surmise which subsequently proved correct.

“How did you get to know of your daughter Dorothy’s death?”

“Sarah Jane—her ladyship—wrote and told me.”

“Did she tell you where she died?”

“I don’t remember, sir. I don’t think so.”

“Did she tell you what was the cause of her death?”

“No, sir. I wrote and asked her to send me word about it, but I didn’t hear again after that from Sarah Jane for a long time, and then she wrote and said she’d been living in France.”

“Did you ever write and ask your daughter Sarah Jane who it was she had married?”

“Yes, sir.”

“Did she tell you?”

“No. She said she had to keep her marriage quite secret, and it was safest to say nothing.”

“Did either of your daughters tell you when they left their situation?”

“No, sir.”

“Then, for all you knew to the contrary, Sarah Jane might still have been there all these years?”

“Well, sir, she said she had married a rich man, so naturally I didn’t suppose she would have to go on working for her living.”

“Did she ever send you word whether she had a child?”

“No, sir.”

“Do you know now whether or not she has ever had one?”

“No, sir.”

Lady Rellingham was the next witness called, and, in answer to her counsel, said she left home about the year 1875. It might be 1876; she could not be certain. She had left home with her sister, and they both obtained situations in the same milliner’s shop. There she had met Mr. John Rellingham, as he then was, and she had married him after a very short engagement. Their marriage had been kept secret by her wish at first. She did not wish to give up her employment. They never had a joint home. She and her sister shared rooms, and she used to go away with her husband for week ends.

“Then I think you separated from your husband. Can you tell the court the reason?”

“We couldn’t get on. We were always quarrelling, and we both felt it was hopeless to pretend to keep up the farce of appearing fond of each other. So we just agreed to part. That was easy. Because no one knew of our marriage except my sister.”

“Did Sir John make any provision for you?”

“He allowed me an income for a few years, and then it ceased.”

“Did you ever see Sir John again?”

“Not until shortly before his death, when he gave me the letter and paper I produce.”

“Do you identify this letter (and it was handed to the witness) as in the handwriting of Sir John?”

“Yes, it is in his writing.”

“You are perfectly familiar with his writing? Now, this other paper—is that in his handwriting?”

“No. He had it ready written out, and he gave it me with the letter.”

“Why were they given to you?”

“So that I could claim the money which he told me he was putting into trust for me under his will.”

“What was the reason for making it a secret trust and not leaving it to you by name?”

“Sir John still wished our marriage kept secret. You see, he had been married again himself.”

“Do you swear on your oath that Sir John intended that trust for your benefit?”

“He told me so. He told me I should only have to show that letter to his partners, that they would understand it; and he gave me the paper, and told me that those were the instructions he had left for his partners.”

“I really don’t know how much of this is evidence,” interrupted the judge.

Tempest rose. “I make no objection to it, my lord. I am not here to assist my clients to retain money which should rightly go elsewhere; and under the curious, I might say the utterly weird, circumstances of this present case, I think it very desirable we should have all possible information we can get.”

“If you raise no objection, Mr. Tempest, I am very much inclined to agree with you;” and the examination was continued.

“When did you hear of Sir John’s death?”

“Only a few weeks ago. I have been travelling in Egypt.”

“And that is the reason, I understand, why you have only recently instructed your solicitors to claim the money?”

“That is so;” and the examination then closed, and Tempest began to cross-examine.

“For how long, Lady Rellingham, have you used that title?”

“Only since I commenced this claim.”

“That, I take it, is since the death of Sir John, and since he has been unable to raise objection to your doing so. Is not that the case?”

“Yes.”

“What name were you known by previously?”

“My maiden name was Sarah Jane Manuel.”

“What name were you known by previously, Lady Rellingham, if you please?”

“I decline to answer.”

“Will you answer my question, please?”

“I decline to.”

“Was it the name of another man?”

“Yes.”

“Was that why Sir John Rellingham ceased to pay your allowance?”

“I don’t know.”

The question was pressed.

“I don’t think it was.”

“What was the reason?”

“My husband thought I was dead.”

Tempest’s face plainly showed his surprise.

“How did you know he thought you were dead?”

“He heard of the death of my sister, and must have thought it was my death, for he wrote to my sister to condole with her, and offering to pay the expenses of the funeral. It suited me to let him think so, so I answered it in my sister’s name, and I never undeceived him.”

“If he thought you were dead, then why did he wish to provide for you by making this trust?”

“He found out his mistake.”

“How?”

“We met, and he recognised me.”

“When did you meet?”

“It was just before his death, when he gave me that letter and the paper.”

“How was it you came to meet?”

“He wrote that he had some business he wanted to discuss with me.”

“But he thought you were dead?”

“Yes; but he thought my sister—his sister-in-law—was alive.”

Tempest hunted through his papers, and then, turning to the witness, asked, “Was this the letter?” and Tempest read out:

““Sir John Rellingham has received and carefully considered the letter. In the exercise of his discretion, he must decline the request. He cannot but think the interview was essential.””

“It was something like that.”

“Was that the letter, please? Yes or no?”

“I believe it was.”

“Did the interview take place after you received that letter?”

“Yes.”

“Then we can date it. That letter was written within a week of Sir John’s death.”

“Do you propose to prove that, Mr. Tempest?” asked the judge.

“Certainly, my lord—now that it has become material.—Now, do I understand that, until that interview took place, Sir John Rellingham had no idea that you, his wife, were still alive?”

“That is so.”

“Lady Rellingham, Sir John died in the week preceding Easter in 1902. If he were not aware you were alive until the interview took place in 1902, how do you account for the fact that his will was made in 1900—the trust drawn up in 1900—a trust which you say was for your benefit, whereas he did not know in 1900, when he drew his will, that you were alive?”

There was no answer, and, time after time, the question was repeated. Lady Rellingham got whiter and whiter, till her face was a pale ashy grey; but she made not even a suggestion in reply. At last came her whispered reply, “I cannot say.”

“Mr. Tempest, of course it’s quite possible—mind, I do not say it is so—but it is possible that the trust may have been created for the benefit of someone else, and Sir John may have changed his mind, when he became aware that his wife was still alive.”

Tempest listened in growing irritation as the judge helped the witness out of the pitfall he had dug so carefully for her, and curtly answered:

“That is a point I shall have to discuss at some length a little later;” and then, turning to the witness, he asked: “Did Sir John write this letter and this paper in your presence?”

“Yes, and handed them to me.”

“Where did this interview take place?”

“At his office.”

“How is it, then, that neither of Sir John’s partners nor any of the clerks in the office are aware of such an interview having taken place?”

“It was after office hours, and all the clerks had gone.”

“Who admitted you?”

“Sir John himself. He had made the appointment, and expected us.”

“Did Sir John leave you in his room and go into any other room whilst you were there?”

“No.”

“Then, Lady Rellingham, how do you account for this letter having been press-copied?”

“I really cannot tell. Perhaps he did it in his own room, and I never noticed him copying it. I don’t know how letters are copied.”

“But I do know, Lady Rellingham. It needs a press to press-copy a letter, and the press is in the clerks’ office.”

“Perhaps we were in the clerks’ office?”

“Will you describe the room, Lady Rellingham?”

“It was a room on the first floor, not looking into the square, and it had a large table and some chairs.”

“Then, Lady Rellingham, if I can prove the clerks’ offices are all on the ground floor, and that none of them have chairs or tables, but all have desks and stools, you must be mistaken?”

“Are you going to prove that, Mr. Tempest?”

“Oh certainly, my lord; if you wish it. Now, Lady Rellingham, a moment ago you said Sir John admitted you. Your exact words were, ‘He had made the appointment and expected us.’ Who was the other person?”

“That was a mistake. I went alone.”

“Did you expect to meet anyone else there?”

“No.”

“Did anyone else go there?”

“No.”

“Was no one else present at the interview between yourself and Sir John?”

“No one at all.”

“What time was it when the interview took place?”

“About a quarter to seven.”

“And none of the clerks were present?”

“No.”

“Now, Lady Rellingham, if I can prove, as I am going to do presently—now just listen, please—if I can prove that that letter was written less than a week before Sir John died, and that during that week there was only one evening on which all of the clerks had gone before seven o’clock, and that on that evening Sir John sent the last one away at half-past six, that must have been the evening the interview took place?”

“Yes, I suppose so.”

“And if that evening was the evening Sir John was murdered, you must have been the last person who saw Sir John alive? Now, Lady Rellingham, I will ask you again, was no one else present at the interview between Sir John and yourself?”

“There was someone else.”

“I thought so. Who was that other person?”

“I decline to say.”

“But don’t you see, Lady Rellingham, that if that other person can corroborate what you say, you have won your case. If, as you admit, there was another person, and you don’t call that person as a witness, the natural presumption is that you are afraid to do so because that person would tell a different story. Now, who was that other person?”

“The other person is dead.”

“Well, we’ll leave that point for the present. Have you any children, Lady Rellingham?”

“No.”

Tempest handed the witness a birth-certificate. “Isn’t that the certificate of the birth of a daughter of Sir John and yourself?”

“Yes.”

“Then, why did you say you had no children?”

“You asked me if I have any children. That child was adopted by somebody very soon after it was born. I didn’t want anyone to know I had had a child.”

“Who adopted it?”

“I don’t know. I told the monthly nurse to make arrangements, and it was adopted on condition that I was not to know where it went, and I was never to claim it.”

“Was your husband with you when the child was born?”

“No.”

“Did he know you had had a child?”

“Yes.”

“Did he know what became of it?”

“I think he found out afterwards.”

“Did he tell you what name it was known by, or what had become of it when you had this interview with him?”

“Yes.”

“What was the name?”

“I decline to say.”

“I insist on your answering;” and as the witness remained silent, the judge intervened. “You know, Lady Rellingham, I can commit you to prison if you do not answer; and if you do not tell the truth, you will be guilty of perjury.”

“Lady Rellingham, I put it to you that your daughter went by the name of Evangeline Stableford. Is not that a fact?” And reluctantly came the admission that it was.

“Now, then, I put it to you that the other person who was present was Evangeline Stableford. Isn’t that so?”

And that was admitted.

“Now, didn’t Sir John tell you he was suffering from cancer of the throat, and was going to be operated on?”

“Yes.”

“Didn’t he remind you that Evangeline had not yet come of age?”

“Yes.”

“Didn’t he say he hoped Lady Stableford would provide for her adopted daughter, Evangeline, in her will?”

“Yes.”

“But there was always the chance that Lady Stableford might change her mind, and that Evangeline had no legal claim on her?”

“He might have done.”

“Didn’t he?”

“Yes, I think he did.”

“Now, you say he thought you were Evangeline’s aunt and not her mother?”

“Yes.”

“Then, was it that he wished to leave Evangeline in your charge in case he died under the operation, and before Evangeline came of age, that he had sent for you?”

“I suppose so.”

“And your story is that when he saw you he recognised you as his wife?”

“Yes; that is what happened.”

“And that, whatever may have been his previous intentions, he thereupon changed his mind and wrote the letter, so that you should benefit by the trust.”

“Yes. I promised him to leave the money to Evangeline at my death, that is, if Lady Stableford did not provide for her.”

“Lady Rellingham, isn’t the real fact that Sir John had known you were alive for some five or six years—before he ever made the will which you say was to benefit you?”

“He may, perhaps, have done. He may have seen me, and recognised me, without my knowledge.”

“Lady Rellingham,” said Tempest in his quiet voice as he leaned forward, “isn’t it the fact that Sir John had found out you were alive and living under another man’s name, and he sent for you and sent for Evangeline, and he told you, in her presence, that he knew and had known, but that he was going to respect your secret, if it could be protected, so long as you lived; and that if he died before Evangeline came of age, and that if then Lady Stableford had not provided for her, Evangeline was to be able to claim the money he put in trust; but that, as that would probably result in your secret being disclosed, he gave you the opportunity of providing for Evangeline during your lifetime, so that your secret need not be revealed whilst you were alive? Isn’t that the real fact?”

“No, it is not.”

“Isn’t it the fact that that letter was written for Evangeline and given to her in your presence?”

“No, certainly not.”

“Lady Rellingham, I know your secret. Isn’t what I put to you the fact?”

“Certainly not.”

“Did Evangeline know?”

“No. I stopped him telling her. She only knew I was her mother.”

“I’ve tried to keep your secret. I’m afraid it will have to come out now;” and then, turning to Baxter, he said, “Let me have that parcel,” and a sealed packet was handed to him.

“Lady Rellingham,” said Tempest, “did Sir John tell you that the instructions to his partners as to the execution of the trust were in a sealed packet, and that they would not be aware of the contents until the time came for them to act?”

“He did.”

“You were aware that that parcel was destroyed unopened?”

“I saw it in the papers that you said so in court.”

“Did Sir John tell you he had created a duplicate, in case that parcel was destroyed?”

“No, he did not.”

“It’s news to you, then, that there was such a duplicate?”

“Quite news. I don’t believe it.”

“You won’t believe me, then, if I tell you this is the duplicate?”

“No, I shall not. You’re only trying to frighten me.”

“Are you willing to let this case depend upon the result of opening this duplicate?”

“Certainly not. How do I know it’s genuine?”

“I shall require you to prove that, Mr. Tempest,” said the judge.

“As your lordship pleases,” replied the barrister.

“My lord,” said Mr. Barnett, “I shall strongly object to the production of that document. It is not mentioned in their affidavit of documents.”

“I haven’t the remotest idea what is in the parcel,” said Tempest. “I imagine the documents it contains will be in the handwriting of Sir John, and will practically prove themselves. But I can assure my learned friend that I was only intending to use the contents in cross-examination. He seems much more afraid of them than I am.”

As Tempest took a pen-knife from his pocket and cut the sealed string, there was a dramatic pause, and the court hushed into breathless silence. One could hear the wax breaking as the string was cut; and Lady Rellingham, gripping the rail of the witness-box, gasped towards her solicitor, “I withdraw! I withdraw!”

“Then, my lord, I ask you to order the arrest of the witness.”

“On what ground, Mr. Tempest?”

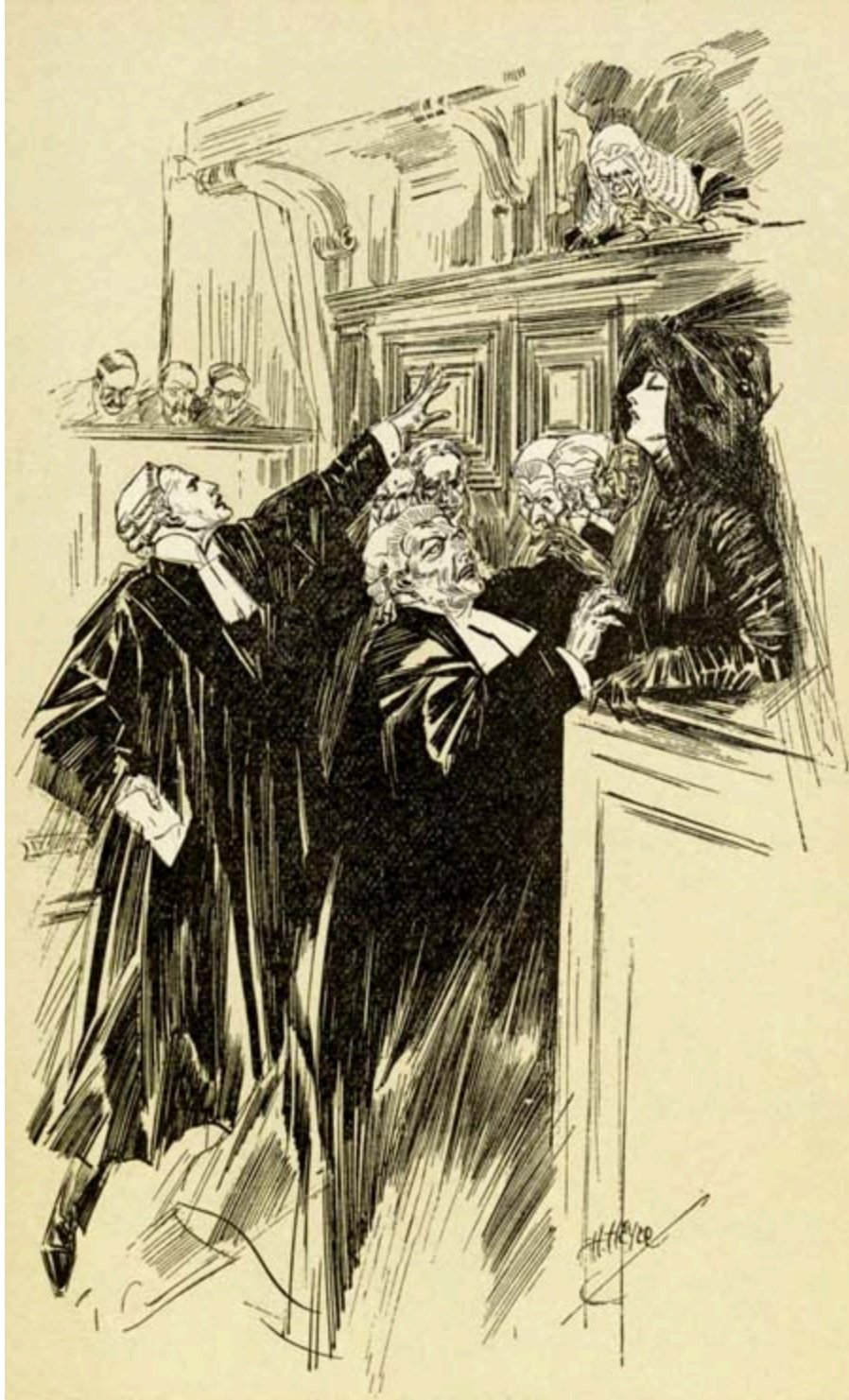
“Perjury, my lord, at least.”

“But you haven’t proved that her evidence is incorrect?”

“I take it, my lord, that her withdrawal is tantamount to such an admission.”

Mr. Clutch hurriedly passed to the witness-box and urged his client not to withdraw.

Tempest’s voice was clear above the racket and bustle in the court. “I object to anyone tampering with the witness.”



“I object to anyone tampering with the witness”

“No—no. She has a right to take counsel with her advisers on such a matter as a withdrawal of her claim. You mustn’t forget, Mr. Tempest, she has practically admitted there is some secret of hers mixed up in this matter.

You yourself have suggested it is a secret that Sir John created this trust to obviate the disclosure of, and you have practically threatened the witness with a disclosure of her secret, if she continues her claim. She may well prefer to forfeit a just claim rather than have it disclosed; and, Mr. Tempest, I must remind you I shall not permit any disclosure of a matter which is entirely irrelevant to the issue for the mere purpose of harassing the witness."

"As your lordship pleases. I could have hoped, my lord, that you would not have thought such a warning necessary to me."

As Tempest finished speaking there was a momentary hush, and Clutch was heard to say, "I tell you he's simply bluffing. He often does. Very likely it's only waste-paper."

A few whispered words passed between the solicitor and the K. C., and the latter rose, and said, "My client does not withdraw, my lord."

Tempest calmly broke the remaining seals, and in the dead silence every eye watched him as he took the papers one by one from the packet and unfolded them. The first two were obviously Somerset House certificates. The next was a buff-coloured piece of tissue-paper—obviously the press-copy of a letter. With a cursory glance that also was laid aside. The last remaining paper was a letter which Tempest read through as the court waited. Refolding it he slipped the papers back into the parcel, and resumed his cross-examination.

"Lady Rellingham, I will ask you again, were not the letter and the other paper you produce given to Evangeline Stableford?"

"They were not."

"How did they come into your possession?"

"Sir John gave them to me himself with his own hands."

"Didn't you take them from the dead body of Evangeline Stableford?"

"Don't answer. I object to such a question, my lord," said Mr. Barnett.

"I think you must take your answer, Mr. Tempest," replied the judge.

"As your lordship pleases. What was your occupation, Lady Rellingham, at the time of your marriage?"

“I had a situation at a milliner’s.”

“Lady Rellingham, when did you go on the stage? Weren’t you on the stage when you married?”

And in a whisper the admission came.

“Now, wasn’t your stage name Eulalie Alvarez?”

“Yes.”

“And your sister Dorothy Manuel was Dolores Alvarez?”

“Yes.”

“Now, when your husband heard of your engagement to Lord Madeley, didn’t he object strongly and threaten to make your marriage to him public?”

“Yes.”

“And didn’t you tell him that you were about to have a child, and that it wouldn’t be possible for you to marry Lord Madeley, and that, taking advantage of Lord Madeley’s inexperience of women, you and your sister had arranged that, though Eulalie Alvarez was engaged to him, it was Dolores Alvarez who was going to go through the ceremony of marriage with Lord Madeley in the name of Eulalie Alvarez?”

“Yes.”

“So that, when Dolores Alvarez was found dead, Sir John Rellingham thought it was his wife who was dead, and troubled no more, and stopped the allowance. Isn’t that so?”

And without waiting for a reply Tempest went on:

“Now, then, are you Sarah Jane Manuel—Eulalie Alvarez—Lady Rellingham? or are you Dorothy Manuel—Dolores Alvarez—Lady Madeley?”

“I’m Lady Rellingham—Eulalie.”

“Then it was Lady Madeley—Dolores—who died, and you have been living all these years masquerading as Lady Madeley? Isn’t that so?”

There was no answer.

“That was the secret Sir John tried to protect for you?”

Again there was no answer.

“Now, once again I ask you: Was not the letter you have produced given to Evangeline Stableford, and wasn’t the trust created for her benefit?”

Tempest hesitated, and then sat down; but the witness had fainted. Barnett, K. C., rose, and remarked that he felt he had no alternative consistent with the dignity of his profession but to retire from the case, and his junior did the same. The judge adjourned, and the court slowly emptied.

With a grave face Tempest returned to his chambers.

Baxter and Marston joined him in the corridor, and the three men walked in silence across New Square.

“Come along in. I know a great deal more than you do, and I’m at my wits’ end what to do,” said the barrister. Handing his wig and gown to his clerk he lighted a cigarette, and backwards and forwards he paced along the narrow pathway across his carpet.

“I ought to have done it, but I simply couldn’t. Very few people in court could know all the facts. It’s simply a coincidence that all of them happen to have come into my hands. The chances can be only one in a thousand that such a thing could happen. The two Manuel girls were the two sisters Alvarez, and to-day Lady Rellingham has given the explanation of the whole thing. Do you remember the suicide of Dolores Alvarez twenty years ago?”

“Yes, I remember something of it. It was a nine days’ wonder at the time.”

“That’s Dolores,” said Tempest, as he pointed to the painted miniature over the mantelpiece. “I was in that case, and it has always puzzled me. You remember she was found dead in her flat—stark nude on the bed, and by the side an opened bottle of champagne, with prussic acid in the glass? The evidence was that her sister, Lady Madeley, called; that she sent her maid out; that the maid came back, found Lady Madeley gone, and her mistress at once sent her out again, and the maid came back to find the dead body of Dolores. The coroner’s verdict was suicide. Now, I’ve puzzled over that for twenty years. Then comes the death of Evangeline Stableford—the body found nude at the Charing Cross Hotel, and again the opened bottle of

champagne and prussic acid; and then there was the utterly marvellous likeness between Dolores and Evangeline. But they could not be mother and daughter, for Dolores had never had a child, and I had always assumed Evangeline could not be the daughter of Lady Madeley, because she was born on the day Lord and Lady Madeley were married. It never dawned on me that the two sisters changed places.”

“But, even if they did, you can’t make it fit. Look here——”

“My dear Baxter, it does fit. They changed places, and then changed back again. I’d thought of the possibility of one change; it never dawned on me that there were two changes. This is what happened: Eulalie married Sir John, and keeps her marriage secret, and Sir John makes her an allowance. His father was alive then, and probably didn’t approve of actresses. Then she gets engaged to Lord Madeley, for I daresay Rellingham wasn’t much catch then. Now, she can’t marry Lord Madeley—that would be bigamy; and she’s just going to have a child, so she persuades her sister Dolores to go through the ceremony in her place and in her name; and I have no doubt whatever that the arrangement was that Eulalie was to take the place of Lady Madeley when the honey-moon was over. I knew Lord Madeley, and it would have been quite possible with him. He never noticed the difference between one woman and another.

“Now, Sir John Rellingham hears of the engagement and protests. Eulalie tells him of the expected child, and explains that it is her sister who is really to marry Lord Madeley, and that it was arranged that she would marry him in the name of Eulalie Alvarez. That being merely an assumed name, one sister has no greater right to it than the other. So Sir John was content, for, of course, he wouldn’t be told the sisters intended to change places after the marriage. Well, the marriage does take place, and Eulalie’s child Evangeline is born and adopted by Lady Stableford. Then Lord and Lady Madeley come back from the honey-moon, and Eulalie, of course, wants her sister to stand down and carry out the arrangement they had come to. Dolores, who has found her feet, very naturally objects. Then she goes to tea with her sister. The maid sees the two sisters together, and is sent out on an errand. Eulalie poisons Dolores in the bedroom. The maid comes back, is told Lady Madeley has gone, and is at once sent out again. Then Eulalie strips the body of Dolores, and puts those clothes on. She leaves her own clothes in the bedroom, because she cannot dress the dead body in them. From that

moment she becomes Lady Madeley, and she leaves the flat before the maid returns. She bears Lord Madeley a child, the present Consuelo, Baroness Madeley. Lord Madeley dies. Lady Madeley has a small jointure, but she has a handsome allowance for the maintenance of Consuelo, and has the use of Madeley Manor. Consuelo will be of age in a year's time, and Eulalie's income would be reduced to her jointure. Consuelo, I hear, is engaged already, so there was no chance of staving off the drop to the jointure. Sir John, believing his wife was dead, later on marries again. Now Sir John, as time goes by, discovers that his first wife, whom he had thought was dead, is really alive, and masquerading as Lady Madeley. He ought to have shown her up at once, but he hesitates to do so, because not only does it lay his wife open to a charge of fraud and probable imprisonment, but it also bastardises Consuelo and creates a huge scandal, and, moreover, it is a slur on the memory of his second wife, to whom he was very devoted. Added to all, it means that he himself has committed bigamy. So he lets things slide. Then Lady Stableford quarrels with Evangeline, and alters her will, and Sir John realises that somehow or other he must provide for his daughter. He therefore creates the secret trust, knowing that if he puts everything in your hands in that way he can trust his wife's secret not to be revealed, if this can possibly be avoided; but he is so loyal that even to you he won't reveal it, unless this becomes absolutely unavoidable. If he hadn't been murdered, none of this would ever have come out. Then, knowing he was going to be operated upon whilst Evangeline was still a minor, he sends to Lady Madeley to come to his office, and he sends for Evangeline. He gives that paper and letter to Evangeline, but tells her she is not to use it if Lady Stableford provides for her. But if he himself dies before she comes of age, and if Lady Stableford does not provide for her, then she is to use it, unless, to obviate the risk of her secret being disclosed, Lady Madeley, her mother, prefers to make the necessary provision. He probably tells them in each other's presence, so as to give each the hold on the other. But Lady Madeley, knowing she will be reduced to her jointure in a year or two, or else trying to avert the disclosure, or in temper, kills Sir John. I fancy it must have been a right down quarrel, and she probably killed him in temper, though the use of the revolver looks as if she had planned it out beforehand. It may have been that she was fond of Consuelo, and was willing to sacrifice anything to prevent her succession being interfered with or jeopardised. Sir John may have threatened her with disclosure, or she may

have shot him to stop his speaking. Anyhow, she kills him, and then it dawns on her that she is at the mercy of Evangeline, who knows she has killed him. So she determines to murder Evangeline. She remembers that Dolores' death was put down to suicide, and the nude body was used as an argument to suggest insanity. So she lays her plans, takes a room at Charing Cross Hotel, and entices Evangeline there, and poisons her. She takes away her clothes, to prevent or delay a discovery of the identity of the body, and to suggest insanity, forgetting all the time that at an hotel the absence of any clothes in the room would establish the complicity of another person. She finds the letter from Sir John in the pocket of Evangeline, and appropriates it. As soon as I had stated in court that the directions to your partners had been destroyed, she sees her chance, and, knowing her income will very shortly be reduced, and relying on this letter, she brings the action against you three. As to the other paper, very likely Clutch & Holdem wrote that out, and were responsible for that part of the story. Now, that's the whole explanation of everything."

"Shall you tell the police, Tempest?"

"No, old man. I don't hunt murderers for a living. The police read the papers. If they like to put two and two together, from what came out in court to-day, let them. It's not my business or yours."

"Would she be convicted?"

"I doubt it. I'm certain of what I've told you; but there's too much deduction for a jury. A jury will only convict for murder on cold-drawn facts, and plenty of them. But that woman will save them the trouble. Unless they've arrested her already, I expect she'll commit suicide before the morning. She's shown up to the world—utterly discredited. She isn't Lady Madeley, and consequently she hasn't got any income now. And she knows what the chances are, that she'll be arrested for murder. You'll see she won't risk it."

"Then Consuelo isn't Lady Madeley either?"

"As it happens, she is, because I happen to know that her trustees very wisely got letters patent of confirmation when she succeeded. It only means that Billy Fitz Aylwyn succeeds to the old barony, whilst the girl gets a new peerage, dating from her patent."

The next morning the daily papers announced that during the passage of the Dover-Calais boat a lady passenger had been missed. The unclaimed luggage left behind proved her to have been Eulalie, Lady Madeley.

Some six weeks later, Tempest received a letter:

“DEAR MR. TEMPEST,—In thinking things over quietly, I have come to the conclusion that you probably knew a great deal more than you made public at the trial. If I am right, I am grateful to you, though you left me no alternative but to leave England at once. If you will do one generous action, you will do another. Evangeline I never knew or cared about; Consuelo is and was the delight of my life. Will you, whatever happens, whatever comes out, please do everything that is possible for her? She has no one to guard her now, for, as an illegitimate child, she has not inherited the property, and so the trustees who have been acting are not really her trustees at all. Will you please do what you can to straighten out the tangle I have made? You will never hear of me again. I am going to Australia, to earn my living, and start again, if I can. If I cannot, then in reality I shall end it, as the world already thinks I have done. Please don’t try to find me.

“Now, for the last time I sign myself by the name to which I have no right.—Yours, EULALIE MADELEY.”

Sometimes things straighten themselves out without much outside interference. Billy Fitz Aylwyn preferred to waive his own claims in view of the realisation of his great desire. Let the *Times* tell the conclusion of the story.

“FITZ AYLWYN—MADELEY.—On the 17th inst., at St. Peter’s, Eaton Square, Wilbraham Plantagenet de Bohun, only son of the late Sir Brabazon Fitz Aylwyn, G.C.B., to Consuelo, Baroness Madeley.”

TRANSCRIBER'S NOTES:

Obvious typographical errors have been corrected.

Inconsistencies in hyphenation have been standardized.

Archaic or variant spelling has been retained.

The Table of Contents was created by the transcriber for the reader's convenience and is entered into the public domain.

*** END OF THE PROJECT GUTENBERG EBOOK THE DUPLICATE
DEATH ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.